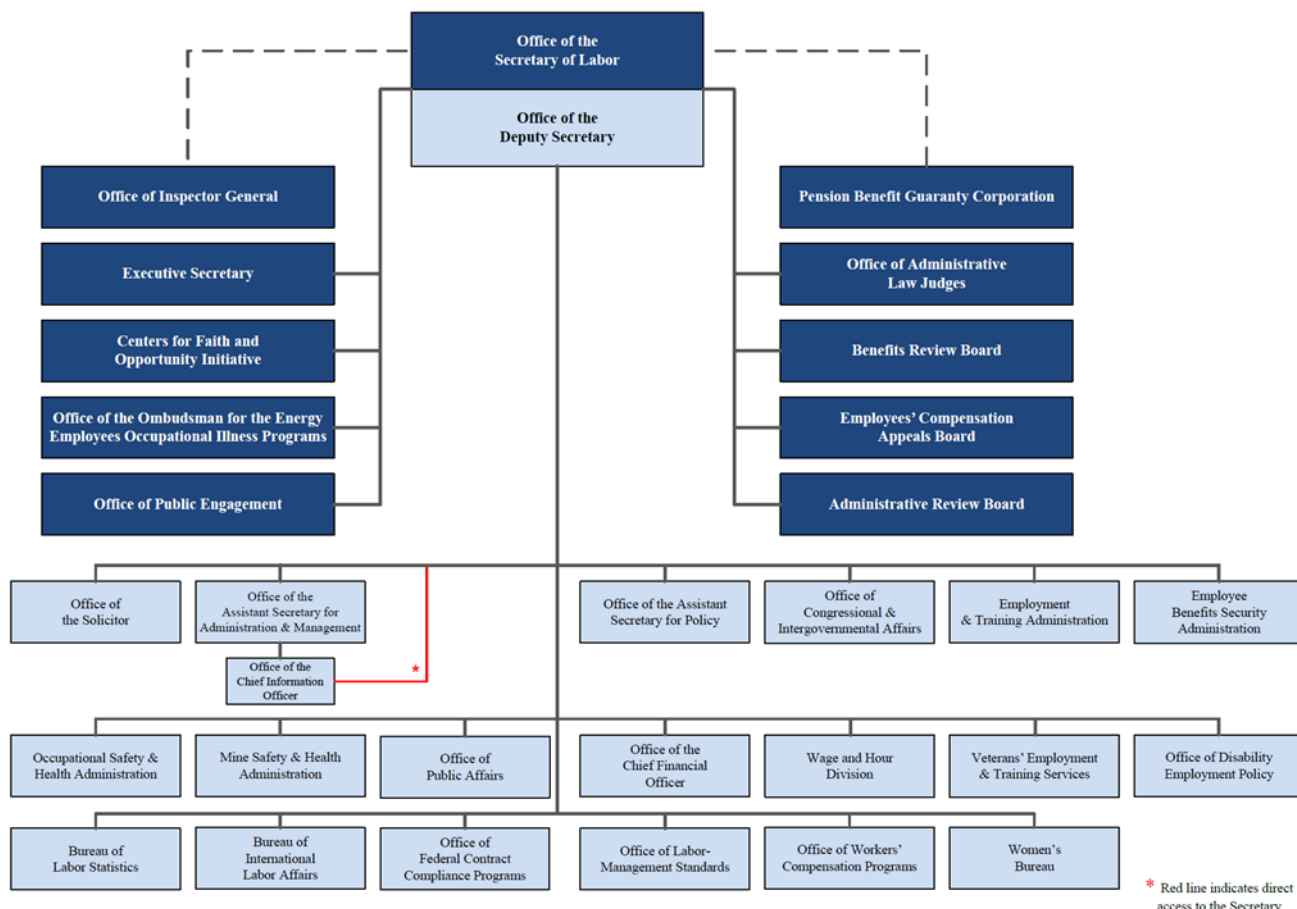


Organization Chart



This document explains how the Department of Labor (DOL) improves the lives of America’s workers through the management of its agencies and programs. As required by the Government Performance and Results Modernization Act of 2010 (GPRMA), it provides information on planned and actual performance and progress in achieving the four strategic goals, one management goal, ten strategic objectives, and twenty performance goals identified in the [DOL FY 2022-2026 Strategic Plan](#) and presented in the table below.

FY 2022 – 2026 DOL Vision, Mission, and Strategic Goals

Vision: Empowering all workers morning, noon and night.

Mission: To foster, promote, and develop the welfare of the wage earners, job seekers, and retirees of the United States; improve working conditions; advance opportunities for profitable employment; and assure work-related benefits and rights.

Goal 1: Build Opportunity and Equity for All			
1.1 Advance training, employment, and return-to-work opportunities that connect workers to higher-wage jobs, especially in ways that address systemic inequities.			
ETA 1.1 Create customer-focused workforce solutions that serve all workers, including underserved communities.	VETS 1.1 Provide veterans, service members, and military spouses with resources and tools to gain and maintain employment.	WB 1.1 Formulate policies and initiatives to promote the interests of working women.	ODEP 1.1 Develop evidence-based policies, practices, and tools to foster a more inclusive workforce to increase quality employment opportunities for individuals with disabilities.
Goal 2: Ensure Safe Jobs, Essential Protections, and Fair Workplaces			
2.1 Secure safe and healthful workplaces, particularly in high-risk industries.			
OSHA 2.1 Secure safe and healthful working conditions for America’s workers.		MSHA 2.1 Prevent fatalities, disease, and injury from mining, and secure safe and healthful working conditions for America’s miners.	
2.2 Protect workers’ rights.			
WHD 2.2 Enforce labor standards to protect and enhance the welfare of the nation’s workforce.	OFCCP 2.2 Promote equitable and diverse workplaces for America’s federal contractor employees.		OLMS 2.2 Promote union financial integrity, transparency, and democracy.
2.3 Improve the security of retirement, health, and other workplace-related benefits for America’s workers and their families.			
EBSA			
2.4 Strengthen labor rights, improve working conditions, promote racial and gender equity, and empower workers around the world.			
ILAB			

Goal 3: Improve Administration of and Strengthen Worker Safety Net Programs		
3.1 Ensure timely and accurate income support when work is unavailable by strengthening benefits programs and program administration.		
OWCP 3.1 Increase the efficiency and accuracy with which OWCP provides workers’ compensation benefits for certain qualified workers who are injured or become ill on the job and improve return-to-work outcomes for injured workers.	ETA/UI 3.1 Support states’ timely and accurate benefit payments for unemployed workers.	
Goal 4: Statistical Goal – Produce Gold-Standard Statistics and Analyses		
4.1 Provide timely, accurate, and relevant information on labor market activity, working conditions, price changes, and productivity in the U.S. economy.		
BLS		
Management Goal: A Department Grounded in Innovation, Evidence, and Employee Engagement		
M.1 Drive innovation in administrative, management, and financial services.		
OASAM M.1 Optimize the Department of Labor’s enterprise services.	OCFO M.1 Promote fiscal integrity and the effective and efficient use of resources through innovation.	
M.2 Strengthen the Department’s commitment and capacity for evidence-based decision-making.		
OASAM M.2 Integrate budget and performance with evaluation and risk management to improve decision-making.	OCFO M.2 Integrate risk-based decision-making to enhance the Department’s operations.	OASP M.2 Invest in strategic and evidence-based decision-making, policy and regulatory development.
M.3 DOL as a model workplace		
OASAM M.3		

This plan, which also serves as DOL's FY 2025 Annual Performance Plan, updates measures and targets for FY 2024 and establishes targets consistent with those reflected in the FY 2025 Congressional Budget Justification. Some measures are deleted or modified between annual updates. To present the most current information, this plan provides complete information for the budget year measures only—in this case, those retained or added for FY 2025—including actual performance for the five preceding years, if available.

How This Document Is Organized

Outlined below is the basic structure of this document, which provides an overview of each Strategic Goal and Objective,¹ a Strategic Review Summary of Progress at the objective level, and an overview of each partner agency’s performance goal.

Strategic Goal

Strategic Objective

Partner Agencies Driving this Objective

DOL agencies with performance goals contributing to the objective are listed; a brief introduction follows.

FY 2023 Strategic Review Summary of Progress

This section includes highlights of progress or obstacles for each strategic objective.

Partner Agency Performance Goal

Each DOL partner agency section includes a brief introduction of their mission and programs.

Analysis and Future Plans

The narrative in this section presents performance information supported by a table with applicable measures, targets, results, and status (whether or not results reached or exceed the target, indicated by Y or N). Where “baseline” appears in the target cell for new indicators, no data were available for establishing a numerical target. If results improved over the prior year but did not reach the target, “I” appears in the status cell. The last three columns help explain the level of success and plans to improve results.²

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Measure name	Target										
	Result										
	Status										

¹ OMB Circular A-11, Part 6 defines a Strategic Goal as a statement of aim or purpose that the agency wants to achieve to advance its mission and address relevant national problems, needs, challenges, and opportunities. Strategic Objectives reflect the outcome or management impact the agency is trying to achieve and generally include the agency’s role.

² Some measures are “contextual”; i.e., they are important for management purposes but not for judging Agency performance. Contextual measures do not have targets, but they may have projections, which are marked in the target cell as [p]. Status (Y, N, or I) does not apply. Similarly, [r] indicates that results have been revised since last reported, and [e] means the results in that cell are estimated.

Agency Priority Goals

Agency Priority Goals (APGs) identify near-term improvements in outcomes, customer service, or efficiencies that advance progress toward longer-term strategic goals and objectives. They are two-year goals that reflect the top implementation-focused, performance improvement priorities of agency leadership and the Administration, and therefore do not reflect the full scope of the agency mission. Implementation and management of APGs require decisions about agency priorities, trade-offs, measurement, evidence, strategies, timing, and leadership that are reviewed at least quarterly to see that sufficient time, resources, and attention are allotted to addressing specific problems or opportunities related to the goal.

For the two-year period ending September 30, 2025, DOL has established two goals:

An Economy for All Workers

Building upon the work of the previous two years, by September 30, 2025, DOL will demonstrate concrete and sustained progress toward outcomes in the advancement of diversity, equity, inclusion, and accessibility through key strategies and priority measures and milestones.

Strengthening America's Safety Net for Workers

By September 30, 2025, the Department will 1) increase intrastate first payments of unemployment benefits made within 21 days by at least 10 percent towards the regulatory target of 87 percent and 2) reduce the estimated improper payment rate of unemployment benefits. The Department will also plan and offer new, innovative technical assistance and grants to strengthen Unemployment Insurance (UI) service delivery, fraud prevention, and equitable access.

More information about each goal is available on [Performance.gov/agencies/dol](https://performance.gov/agencies/dol).

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Strategic Goal 1: Build Opportunity and Equity for All

Strategic Objective 1.1

Advance training, employment, and return-to-work opportunities that connect workers to higher-wage jobs, especially in ways that address systemic inequities.

Partner Agencies Driving this Objective (select the hyperlink to learn more about each agency)

[Employment and Training Administration](#) (ETA)

[Veterans' Employment and Training Service](#) (VETS)

[Women's Bureau](#) (WB)

[Office of Disability Employment Policy](#) (ODEP)

The American economy must work for all workers. ETA, VETS, WB, and ODEP oversee programs and develop policy as part of the nation's public workforce system, providing support to workers and employers. In the coming years, these agencies will strengthen their efforts to expand opportunities to advance equity, inclusion, and job quality.

These agencies invest in workforce development and modernized employment practices; they also build upon established collaborations with other DOL agencies, as well as federal, state, community-based, non-profit, and other organizations to influence evidence-based policy changes, conduct important research, and strengthen employer engagement.

Collectively, these agencies' performance goals contribute to helping workers access quality jobs today and tomorrow, and to improving DOL's agility to evolve in an ever-changing environment. Additionally, DOL's Civil Rights Center investigates and adjudicates alleged discrimination and other violations of equal opportunity requirements and provides technical assistance (TA) to ensure that the workforce system is operating in compliance with the law.

FY 2023 Strategic Review Summary of Progress (Adequate Progress)

Findings for this objective were grouped into three themes: Promote Inclusion and Address Systemic Inequities; Advance Employment Entry, Retention, and Higher-Wage Opportunities; and Diversity and Hiring. Evidence of progress included the advancement of equity goals through grant programs and technical assistance. Challenges were identified in limited staffing and resources to meet the increased demand for services.

Promote Inclusion and Address Systemic Inequities

ETA: Awarding Grants

In FY 2023, ETA adjusted its competitive grant award criteria to prioritize grantees with plans to address inequities. Adjustments included scoring criteria that recognized applicants who serve low-income communities, have staff who share experiences with the population served, and who explicitly name strategies and services to improve equity as a grant activity. The scoring criteria also took into account whether the applicant was working with a union or worker voice partner.

ETA awarded over \$65 million in State Apprenticeship Expansion Formula Grants to 46 states to increase their ability to serve, improve, and strategically enhance the National Apprenticeship system. These awards included annual formula funding to 46 states and territories and additional funding to seven states committed to increasing sustainability, increasing the diversity of Registered Apprentices, and increasing the number of Registered Apprenticeship Programs (RAPs) that support in-demand industry sectors.

ETA awarded \$49.4 million in Pathway Home grants to provide training, employment and supportive services to adults reentering the workforce following incarceration in a local jail or state correctional facility. ETA also awarded \$45 million in Growth Opportunities grants, serving justice-involved youth and young adults, which incorporated Community Violence Interventions strategies as a key focus in serving populations that have higher incidence of poverty and violence in their communities.

ETA awarded \$50 million in Strengthening Community Colleges Training Grants to 15 community colleges to expand their capacity to meet the skill development needs of employers and workers. Specifically, these grants focused on addressing equity gaps and expanding accelerated career pathways for historically marginalized populations.

ETA awarded approximately \$78 million in DOL Nursing Expansion Grants to 25 public-private partnerships to increase the number of nursing instructors and educators and to diversify the pipeline of nursing professionals who can fill quality jobs. The grant program placed an emphasis on training individuals from historically marginalized and underrepresented populations to address growing health equity gaps and the lack of diversity in the healthcare workforce, particularly within the middle-to-high skilled nursing professions.

ETA awarded approximately \$94 million in DOL Building Pathways to Infrastructure Grants to 34 public-private partnerships to develop, implement, and scale worker-centered sector strategy training programs. These programs will train and prepare the skilled workforce needed to meet the demands of the sizeable infrastructure investments made through the Bipartisan Infrastructure Law (BIL). This grant program will train individuals from historically marginalized and underrepresented populations, as well as individuals from smaller and/or rural communities.

Strategic Goal 1

ETA awarded \$16 million in Critical Sectors Job Quality Grants to 12 organizations to pilot strategies to improve job quality and increase the availability of good jobs in the care, climate resiliency, and hospitality sectors. The grants will enable recipients to design and deploy programs aligned with the [Good Jobs Principles](#) developed by the Department of Labor and Department of Commerce. These grantees will help create worker-centered partnerships and support established partnerships that incorporate equity, job quality, and worker voice.

ETA: Equity in Partnerships and Stakeholder Engagement

In FY 2023, ETA continued to engage with stakeholders that represent underserved communities. Engagements included participation in stakeholder events with Historically Black Colleges and Universities (HBCUs) and other minority-serving institutions, community-based organizations, tribal representatives, apprentices of color, and professional and trade organizations that represent communities of color.

ETA worked closely in partnership with the Diversity and Inclusion Registered Apprenticeship Technical Assistance Center to provide customized support to employers, education providers, intermediaries, and government entities. Support focused on improving the understanding of registered apprenticeship equal employment opportunity regulations, outreach to underrepresented populations, diversity and inclusion in the RAP, recruitment and retention, and gathering recipients' feedback from web-based trainings.

ETA continued the Department's Scaling Apprenticeship Readiness Across the Building Trades initiative with TradesFutures, and in partnership with the National Urban League. This initiative advances equitable opportunities in construction and bolsters commitments from the Department to increase the use of pre-apprenticeship to improve access to good jobs with family-sustaining wages, particularly for underserved communities. From April 1, 2023, through June 30, 2023, TradesFutures served 1,126 participants, of which 924 were male, 199 were female, and 821 were people of color.

ETA: Workforce Innovation and Opportunity Act (WIOA) Performance Outcomes

WIOA Adult program performance data indicate that the number of individuals with disabilities served under WIOA is incrementally increasing (6.6 percent of total participants served in Program Year (PY) 2017, 7.3 percent in PY 2018, 7.6 percent in PY 2019, 6.9 percent in PY 2020, 7.7 percent in PY 2021, and 8.3 percent in PY 2022).

VETS: Transition Assistance Program (TAP) Data Analytics

In FY 2023, VETS established employment-based performance metrics for TAP that the agency will baseline in FY 2024. This represents the culmination of a multi-year effort to match Transitioning Service Member information with National Directory of New Hires data and will allow VETS to monitor outcome data for the TAP program for the first time.

Strategic Goal 1

VETS: Jobs for Veterans State Grants (JVSG) Revised Performance Report and Multi-Year Trend Analysis

In FY 2023, VETS issued a revised quarterly performance report to states to improve awareness of outliers in JVSG record counts for participant services and demographic data. VETS expects these reports will lead to more complete and accurate demographic data. VETS also completed the development of a multi-year trend report that compares participant outcomes by relevant demographic categories. VETS will use the outcomes from these reports to continue program improvements, specifically for underserved populations.

VETS: Homeless Veterans' Reintegration Program (HVRP) Technical Assistance Events

In FY 2023, VETS worked with the National Veterans' Technical Assistance Center (NVTAC) to deliver technical assistance. On October 31, 2022, NVTAC hosted a Diversity, Equity, Inclusion, and Accessibility (DEIA) webinar for grantees to learn about successful delivery methods and best practices for helping reduce disparities in the homeless services system, specifically related to serving underserved communities and historically marginalized veterans. On March 30, 2023, NVTAC conducted a grantee community of practice listening session on Service Delivery in Rural Areas that discussed the infrastructure and labor market challenges specific to rural locations, shared best practices for addressing those challenges, and provided useful resources for connecting veterans with partner services in rural communities.

VETS: Uniformed Services Employment and Reemployment Rights Act (USERRA) Revised 1010 Claim Submission Form

In FY 2023, VETS completed revisions to the VETS 1010 claim submission form. The revised form allows for entry of claimants' disability status, age, race, ethnicity, and gender. These new data fields will allow VETS to capture additional demographic information. VETS will use the information to continue program improvements, specifically for underserved populations.

WB: Women in Apprenticeship and Nontraditional Occupations (WANTO) Grants

In FY 2023, WB awarded a record-high \$5 million in funding via seven new WANTO grants. WB capitalized on the moment of historic federal investments by giving preference to applicants that detailed a plan to accelerate local efforts to increase women's inclusion and equity in projects funded through the Infrastructure Investment and Jobs Act, Creating Helpful Incentives to Produce Semiconductors (CHIPS) and Science Act, Inflation Reduction Act, and other federal funding. These efforts were supplemented by two related sole-source, place-based grant awards to firmly embed equity practices and principles into local-level projects and job sites.

Strategic Goal 1

WB: Fostering Access, Rights, and Equity (FARE) Grants

WB launched the FARE grant program in FY 2021 to help women workers who earn low wages learn about and access their employment rights and benefits. In 2021, the FARE grant program awarded approximately \$2 million to six state and territory agencies. In 2022, to continue and extend WB's education and outreach efforts among marginalized and underserved communities, the FARE grant program awarded approximately \$2 million to six non-profit organizations to connect women workers to services, benefits, and legal assistance. In 2023, the FARE grant program awarded almost \$1.6 million to five community-based organizations to support women who have been impacted by gender-based violence and harassment in the world of work. The period of performance for FARE grants is 18 months.

ODEP: Technical Assistance Events

In FY 2023, ODEP held 291 technical assistance events, significantly exceeding its target of 257. The Retaining Employment and Talent After Injury/Illness Network (RETAIN) and the State Exchange on Employment and Disability (SEED) are two of several ODEP initiatives that have contributed to this measure.

In Phase 1 of RETAIN (launched in September 2018), ODEP awarded eight cooperative agreements to state applicants. In FY 2022 and FY 2023, Phase 2 grantees implemented program expansions and began serving injured and ill workers in geographic areas that have a high concentration of residents from underserved communities.

In FY 2022, ODEP expanded and strengthened partnerships with organizations representing critical state and local legislative and administrative bodies. In FY 2023, SEED established a multi-intermediary Mental Health and Employment Policy Task Force consisting of state legislators, mayors, and governors' office representatives. The Task Force reviewed and proposed a range of mental health-related policies, plans, practices, and implementation strategies for adoption by states and localities.

Advance Employment Entry, Retention, and Higher-Wage Opportunities

ETA: Job Corps Program – Actual Onboard Strength

In FY 2023, Job Corps required operators to submit a Build-Up Plan to improve student enrollment and retention in the program. Job Corps' onboard strength recovery continued to progress more slowly than expected due to ongoing center staff vacancies and turnover, student retention challenges with competitive labor markets, and construction rehabilitation challenges with campus buildings. In FY 2023, the result for student onboard strength was 20,354, below the target of 30,000 students.

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ETA: Office of Foreign Labor Certification (OFLC) Program Efficiency

Agricultural employers submitted a record 21,018 H-2A applications requesting 389,908 temporary workers in FY 2023. Despite the record workload, OFLC exceeded its target, issuing decisions on 98.2 percent of complete H-2A applications at least 30 days before the date of need. Employers also filed a record number of applications in the Permanent Labor Certification (PERM), H-2B, and Prevailing Wage Determination programs. Total employer application levels in OFLC's most workload-intensive programs (H-2A, H-2B, CW-1, PERM, and PWD) have more than doubled in the last decade, from 219,141 applications in FY 2014 to 452,243 in FY 2023. Employers requested over 1.7 million worker positions through the foreign labor certification programs in FY 2023.

ETA: Disseminating and Promoting Evidence-Based Findings

In FY 2023, ETA [published](#) the final set of American Apprenticeship Initiative (AAI) evaluation reports, issue briefs, and infographics. Key findings show registered apprenticeship is a viable workforce training option for all job seekers. Over half of AAI apprentices were from underrepresented populations, compared to 46 percent of all registered apprentices. Findings also show that pre-apprenticeship programs can promote diversity in registered apprenticeship programs. Following their release in November 2022, these reports, briefs, and infographics were posted on [apprenticeship.gov](#) and shared widely during National Apprenticeship Week.

During FY 2023, ETA and the Department of Labor's Chief Evaluation Office (CEO) released an implementation study and related issue briefs from the America's Promise Job-Driven Training Grants program, an H-1B Training Grant. This grant program encouraged the development of regional partnerships that meet employers' needs and prepare American workers for middle- and high-skilled jobs. This report and related issue briefs highlighted lessons learned and promising practices to inform how workforce agencies identify and engage employers in sector-based strategies, support individual participants with wraparound and supportive services, and engage local partners in developing training aligned with employer needs. These studies, which were issued in December 2022, and future releases from this evaluation will increase ETA's understanding of how to operationalize sector strategies and career pathway approaches that benefit employers and program participants.

DOL continued to promote the use of the Career Trajectories and Occupational Transitions Dashboard to share information about career pathways with career advisors and American Job Center staff from state and local workforce agencies.

ETA continued to collect and disseminate Occupational Information Network (O*NET) information on occupations, including new and emerging tasks, technological aptitudes, and skills on all occupations, with renewed emphasis on those related to the green economy, to monitor changes in skill demands and provide information to help individuals make informed training and career choices. The release of the O*NET 27.1 Database, in November 2022, updated the approach to identifying "Hot Technologies" and introduced the concept of "In Demand" technology skills. Hot Technologies are software and technology requirements most frequently included across all employer job postings, data that now augments the long-

Strategic Goal 1

standing statistically rigorous survey of incumbent workers. In Demand technology skills are software and technology requirements frequently included in the employer job postings for a particular occupation.

VETS: Wage Measures

VETS continues to support the Good Jobs Initiative through the development of resources focused on job quality. The JVSG program median earnings (2nd quarter after exit) increased from \$6,420 in PY 2018 to \$8,853 in PY 2022. The HVRP Median Earning (2nd quarter after exit) increased from \$4,373 in PY 2018 to \$8,650 in PY 2022. VETS is committed to ensuring median earnings at minimum align with the state living wage.

VETS: USERRA Engagement and Outreach

Each year, VETS conducts a robust public outreach campaign to educate service members, employers, and others on their rights and responsibilities under USERRA. In FY 2023, VETS conducted over 1,425 compliance assistance events nationwide, informing employees and employers alike of their rights and responsibilities under USERRA.

WB: Paid Leave

WB published multiple interactive dashboards highlighting the results of the 2017/2018 American Time Use Survey (ATUS) Leave and Job Flexibilities Module, including data on how access to and use of leave varies by sex, race and ethnicity, age, educational attainment, and occupational grouping. WB finalized the survey instrument for the 2024 ATUS Leave and Job Flexibilities Module in FY 2023. WB commemorated the 30th anniversary of the Family and Medical Leave Act in February 2023 by publishing a micro website aggregating a variety of WB- and DOL-developed resources about state-level paid leave programs.

In May 2023, WB published the study, Lifetime Employment-Related Costs to Women of Providing Family Care. The study provides a better understanding of the personal economic cost caregiving has on mothers and the differences across race, ethnicity, and educational attainment. It used dynamic microsimulation modeling to project the lifetime earnings and retirement income lost due to child and adult caregiving. The estimated employment-related costs for mothers providing unpaid care averages \$295,000 over a lifetime or 15 percent of a mother's lifetime earnings. When measured as a share of lifetime earnings, lifetime caregiving related earning losses are especially high for less-educated mothers and Hispanic mothers.

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WB: National Database of Childcare Prices (NDCP)

In 2022, WB published the NDCP, the only federal data source that provides county-level childcare prices. In January 2023, in conjunction with a formal launch of the database, WB published interactive maps of childcare prices by county and share of family income, as well as a brief showing how prices vary across the country and how these prices impact maternal employment. Counties that had higher childcare prices had lower rates of maternal employment. This data will allow researchers and policymakers to accurately measure potential economic impacts of childcare affordability, evaluate how childcare prices are linked with gender and racial inequality in the labor force, and identify strategies for enhancing employment options and economic security for women. As originally published in 2022, the NDCP made use of data collected between 2008 and 2018. In FY 2023, WB contracted to update the NDCP for 2019-2022 data and began the preparation of the Office of Management and Budget (OMB) package for another round of data collection from the states.

ODEP: Policy Outputs and Implementation Tools

In FY 2023, ODEP produced 43 policy outputs (recommendations of laws, regulations, orders, or guidance related to disability employment), exceeding the target of 42. ODEP produced most of its policy outputs from its state intermediary work. Through this work, state legislatures and governors introduced or passed legislation, executive orders, and other policies designed to improve employment outcomes for people with disabilities.

In FY 2023, ODEP issued 140 implementation tools (formally developed tools that support the adoption/implementation of ODEP-recommended practices, policies, strategies, models, or theories), exceeding the target of 122. These tools aided entities in adopting and implementing proven practices in disability employment. An important example is the “Creating a Disability-Inclusive Workplace: The Role of Accommodations” learning guide developed by the Employer Assistance and Resource Network, which was released in September 2023.

Diversity and Hiring

ETA: Increased Demand for Apprenticeship Programs

The Office of Apprenticeship (OA) has reorganized and leveraged information technology (IT) to streamline operations, but risk remains around having sufficient capacity to properly manage historically high numbers of active RAPs and participants. The OA management portfolio also includes performance and risk management of OA’s grants and contracts, and implementation of new initiatives related to proposed rulemakings, the Infrastructure Investment and Jobs Act, CHIPS and Science Act, and Inflation Reduction Act of 2022. Additionally, infrastructure funding and new recommendations from the Secretary’s Advisory Committee on Apprenticeship are putting pressure on the National Apprenticeship system’s capacity to support the demand for RAPs.

ETA Performance Goal 1.1 – Create customer-focused workforce solutions that serve all workers, including underserved communities.

ETA oversees the provision of training and employment assistance, labor market information, and education through programs authorized by the WIOA—for adults, dislocated workers, youth, Job Corps, and employment services authorized by the Wagner-Peyser Act, amended by title III of WIOA, and National Programs; Trade Adjustment Assistance (TAA) authorized by the Trade Act of 1974, as amended; Foreign Labor Certification activities authorized by the Immigration and Nationality Act; the Senior Community Service Employment Program authorized by the Older Americans Act; and Apprenticeship programs authorized by the National Apprenticeship Act. Additionally, ETA oversees the federal-state UI program, which is authorized under the Federal Unemployment Tax Act and Title III of the Social Security Act (see ETA Performance Goal 3.1).

The public workforce system provides access to training, employment services, and supportive services to a broad array of customers at all skill levels. These services include career counseling, case management, assessments that identify transferable skills, and skill development. ETA and the workforce system are committed to expanding access to Registered Apprenticeships; providing and improving strategies and tools that help connect employers and skilled workers and connect workers to quality jobs; and continuously improving the effectiveness, efficiency, and equity of workforce development programs by ensuring accountability and applying evidence of what works in these programs.

Analysis and Future Plans

Since Program Year 2016,³ the WIOA core programs and ETA's other WIOA-authorized and partner programs have been required to report on six WIOA primary indicators of performance: employment in the 2nd quarter after exit, employment in the 4th quarter after exit, median earnings in the 2nd quarter after exit, credential attainment, measurable skill gains, and effectiveness in serving employers. ETA has established national targets for many of these measures. In addition, ETA has aligned performance reporting definitions and calculations and implemented a streamlined performance reporting system for WIOA and other DOL partner programs. Eighteen workforce grant programs use a common record layout (the Participant Individual Record Layout) to report program participant service and outcome information. Using one system enhances data reliability and accuracy.

In PY 2022, ETA exceeded the target for the percentage of exiters engaged in work-based learning opportunities, including apprenticeships. Performance fell below the target for the percentage of exiters attaining credentials within one year after exit and exceeded the target for percentage of program participants employed in the second quarter after exit. The percentage of exiters engaged in work-based learning opportunities not only

³ Most DOL employment programs are forward-funded and report performance on a Program Year (PY) that lags the fiscal year by nine months (e.g., PY 2022 – July 1, 2022 to June 30, 2023). Exceptions that report on a standard fiscal year are the Apprenticeship program and the Trade Adjustment Assistance program.

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exceeded the target of 42 percent, but was the highest outcome achieved in the four years of tracking this measure. The metric for credential attainment fell short of the target of 65 percent but was higher overall than the prior year's result of 53.1 percent. This measure remains difficult for states to track due to the manual nature of customer follow-up one year after exit. The second quarter employment performance indicator outcome of 71.7 percent is ten percentage points higher than two years ago and is even higher than pre-pandemic levels in PY 2019. States are emphasizing these outcomes in their service delivery and have matured data collection systems and processes nearly a decade after the inception of WIOA. The PY 2022 result reflects a cohort of participants who exited the program in the transition period out of the most severely pandemic-impacted quarters, and therefore saw increases in many of these indicators that had previously dropped due to the pandemic's effects. ETA continued to provide TA and guidance to assist grantees in adjusting their program delivery models as needed to virtual settings, and where available, to virtual work experiences. ETA continues to provide TA to grantees to assist and support programs' ability to identify, provide, and report on quality credentials. Throughout the adjustment to virtual service delivery and services, ETA also provided guidance and TA on best practices for remote delivery. In PY 2023, ETA will continue to improve performance outcomes by providing technical assistance using numerous methods. ETA staff is committed to providing group presentations specific to performance-related topics and providing one-on-one assistance to states for nuanced topics. ETA is updating the Participant Individual Record Layout in FY 2024, which will add new data elements and streamline existing variables.

H-1B Skills Training Grants provide training and supports to workers to gain the skills needed to obtain or upgrade employment in high-growth industries or economic sectors, particularly through the development of worker-centered sector strategies. Grantees train participants for the good jobs in middle- and high-skill occupations for which employers hire foreign workers using H-1B visas. Recent H-1B Training Grant investments addressed critical training needs for skilled nurses, and occupations key to the jobs created by the Invest in America agenda. These included advanced manufacturing, information technology, and certain occupations that support renewable energy, transportation, and broadband infrastructure sectors. In FY 2024, ETA will launch technical assistance for Building Pathways to Infrastructure Jobs grantees and additional community stakeholders to continue strategic partnerships that support infrastructure-related worker pipelines in FY 2025.

Strengthening Community Colleges Training Grants, authorized as WIOA demonstration grants, build community college capacity to meet the skills development needs of employers and workers more effectively. The fourth-round opportunity, announced in August 2023, focuses on equitable access to good jobs in high-demand industries.

Critical Sectors Job Quality Grants, also WIOA demonstration grants, pilot strategies to improve job quality and increase the availability of good jobs in the care, climate resiliency, and hospitality sectors. Tier One recipients received funding to help create worker-centered partnerships, while Tier Two recipients received funding to support established partnerships that incorporate equity, job quality, and worker voice.

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The WIOA Youth formula-funded program continued focusing on work experience. ETA continued to provide technical assistance which included ETA's inaugural cohort of the Youth System Building Academy where nine communities received intensive technical assistance to develop strategic plans around connecting youth systems in their community. In FY 2024, ETA will select and provide assistance for a second cohort of Youth System Building Academy communities.

The Reentry Employment Opportunities grants prepare individuals who were involved with the justice system for employment that stabilizes their income and creates opportunities for career pathways. The Partners for Reentry Opportunities in Workforce Development (PROWD) grants and Pathway Home grants build upon evidence from the Linking Employment Activities Pre-release grants and seek to determine if consistent services begun while in federal custody, state prisons, or local jails lead to better employment outcomes. Meanwhile, the Growth Opportunities grants prepare justice-involved youth and young adults for the world of work. With a focus on youth (15-18) and young adults (18-24) most impacted by community violence, particularly in areas of concentrated crime and poverty, the grants partner with community violence interrupters and deliver employment and training services. In PY 2023, the Department plans to continue its investments in and support of PROWD, Pathway Home, and Growth Opportunities grants.

The WIOA Adult program is integral to reaching adults most in need of assistance from the public workforce system in a rapidly evolving environment. In PY 2022, ETA was below the target for the number of states in which at least 75 percent of the state's WIOA Adult program participants are from at least one of the three priority groups. For the states with the lowest enrollments, ETA will conduct targeted technical assistance and continue to broadly coordinate state efforts to achieve higher levels of success in PY 2023.

In FY 2023, ETA's nationwide Job Corps program facilitated a path to economic security for opportunity youth. Job Corps continued implementing Job Corps 2.0 – a student-centered program design that focuses on innovation, modernization, automation, and strategic partnerships with national employers and organizations to accelerate program performance and improve student outcomes. Job Corps repositioned itself as a pre-apprenticeship academy to meet the increased demand for infrastructure jobs created by the Investing in America Agenda. Job Corps also launched an IT application to modernize the enrollment process for applicants and integrated refinements to promote diversity, equity, inclusion, and accessibility (DEIA) into the program.

Leveraging partnerships and demonstration grants, Job Corps built substantive relationships with employers of the Office of Federal Contract Compliance Programs (OFCCP) designated Megaprojects, Community Colleges, HBCUs, and the Department of Navy's shipbuilding Industrial Base Task Force. These relationships will expand career development resources for students. Job Corps also assessed its career technical training (CTT) offerings for clean energy skills. Through Job Corps' demonstration grants, 64 Job Corps-eligible students received services on campus at two HBCUs. The period of performance for the demonstration grants ended on September 30, 2023.

Strategic Goal 1

In FY 2024, Job Corps will continue to improve all aspects of the program, including exploring new ways to strengthen its relationship with RAPs.

In FY 2023, ETA supported workforce system alignment through a Registered Apprenticeship (RA) Technical Assistance (TA) Center of Excellence focused on national strategic partnership and system alignment. Partnerships support alignment of the national workforce and education systems to accelerate RAP adoption and expansion. In FY 2024, ETA will develop and publish assessments reports related to education system and registered apprenticeship system alignment to identify gaps and corresponding technical assistance opportunities.

ETA is committed to expanding Registered Apprenticeships, through increasing the number of apprentices served. In FY 2023, 886,677 apprentices were served, exceeding the target of 850,000. In FY 2022, OA implemented the Secretary's Advisory Committee on Apprenticeship. In FY 2023, OA expanded registered apprenticeship into high-demand, priority industries including clean energy, infrastructure, healthcare, agriculture, and early childhood education, and will continue these efforts in FY 2024. In FY 2024, OA expects to continue to fund a range of initiatives that increase access for underrepresented populations and ensure registered apprenticeship opportunities are available for all Americans.

U.S. employers filed a record number of applications for foreign labor certification in FY 2023, with requests reaching all-time highs in the PERM, H-2A, H-2B, and Prevailing Wage Determination programs. The majority of OFLC case adjudications are financed by Congressional appropriations rather than by application fees. Therefore, the resources available to the Department to process applications do not automatically adjust as more applications are filed. In the H-2A program, for example, agricultural employers requested over three times more H-2A temporary foreign workers than a decade ago (389,908 in FY 2023; 123,528 in FY 2014). Despite these surging application levels, OFLC exceeded its performance target, resolving over 98 percent of complete H-2A labor certification applications at least 30 days before the employer's date of need. Enactment of the Department's Budget proposal enabling the Department to retain existing H-2A fees—which it has collected under statutory authority since 1987 but does not currently have a mechanism to keep—would help DOL manage these sharply increasing application levels and reduce the risk of delays without imposing additional fees on employers or increasing federal appropriations.

In FY 2024, OFLC will continue to seek operational improvements and IT enhancements to reduce barriers to timely processing and help manage its rapidly rising workloads. OFLC will also continue its efforts to focus grant resources on State Workforce Agencies where H-2A and H-2B workload demands are greatest, conduct on-site grant-monitoring reviews, and provide technical assistance to state staff to improve program administration.

As a result of outreach to members of underserved communities, ETA continued to take steps to increase access to ETA programs, including making significant adjustments to virtually all of its competitive grant programs. Adjustments included scoring applications based in part on the degree to which applicants would increase services to underserved communities and focusing on quality jobs as a strategy to achieve equitable outcomes. ETA also clarified common myths that were limiting outreach and thus impeding potential participants from knowing about or accessing its programs.

Strategic Goal 1

ETA – Create customer-focused workforce solutions that serve all workers, including underserved communities.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY ⁴ 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percentage of exiters engaged in work-based learning opportunities, including apprenticeships (OWI/OJC/OTAA/OA)	Target	Base	27.9%	42.0%	42.0%	48.0% [r]	50.0% [r]	52.0%	Making resources available for work-based learning, including apprenticeship, within grants. Emphasizing work-based learning as a strategy in guidance, Funding Opportunity Announcements, and workforce convenings.	Workforce boards underutilize apprenticeship opportunities. In PY 2022, less than five percent of participants were reported as enrolled in an apprenticeship program.	ETA will capitalize on infrastructure investments to deliver tailored technical assistance. ETA will continue to include an emphasis on work-based learning in Funding Opportunity Announcements.
	Result	27.8%	41.1%	41.5%	46.6%	TBD	--	--			
	Status	--	Y	I	Y	--	--	--			
Percentage of exiters attaining credentials within one year after exit (OWI/OJC/OTAA/OA)	Target	Base	64.9%	64.9%	65.0%	65.2%	66.0%	68.0%	Technical assistance on reporting this measure. Published Training and Employment Guidance Letter 21-22 on improving access to training.	The need for states to manually track credential attainment up to one-year after exit creates a reporting burden, especially in the absence of a national database for credential verification.	Continued emphasis on supportive services to enable completion of training that results in a credential, and on training and resultant credentials aligned to industry needs.
	Result	68.9%	59.8%	53.1%	55.4%	TBD	--	--			
	Status	--	N	N	I	--	--	--			

⁴ The four measures with TBD in the results cells are reporting on a Program Year timeframe (12 months ending June 30). PY 2023 results will be reported in the FY 2024 APR.

Strategic Goal 1

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY ⁴ 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percentage of program participants employed in the second quarter after exit (OWI/OJC/OTAA)	Target	Base	68.4%	68.4%	69.0%	73.0% [r]	74.0% [r]	75.0%	This cohort is now post-pandemic, with an employment rate higher than pre-pandemic levels. Technical assistance on connecting individuals to employment opportunities in infrastructure investments.	States rely on automated state wage records for employment verification. If employers do not report timely, or a participant does not provide a Social Security Number, the unknown outcome is counted negatively.	Emphasis on supportive services, and on training aligned to industry needs. Continued technical assistance on connecting individuals to employment opportunities in infrastructure investments.
	Result	69.8%	61.8%	67.4%	71.7%	TBD	--	--			
	Status	--	N	I	Y	--	--	--			
Number of states at or above 75% of participants who come from vulnerable populations (WIOA Adult program priority populations)	Target	--	--	37	42	44	46	48	Fewer states met the target this year, but those that previously struggled are closing the gap. ETA published an effective practices document and delivered technical assistance to several states.	One state (New York) is still more than 40 percentage points below the priority of service goal, however a recent change in the state policy should impact improved implementation.	ETA will continue to conduct local-level data analysis for states identified as falling below the goal and will deliver targeted technical assistance to those states.
	Result	29	36	41	38	TBD	--	--			
	Status	--	--	Y	N	--	--	--			
	Target	--	--	--	--	850,000	900,000	925,000	As of FY 2023 Q4, all states are	There were no significant	ETA will continue to provide strategic
	Result	822,478	827,360	811,133	835,632	886,677	--	--			

Strategic Goal 1

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY ⁴ 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Total Annual Number of Apprentices Served (Rolling 4 Quarters)	Status	--	--	--	--	Y	--	--	reporting to the Registered Apprenticeship Partners Information Data System (RAPIDS), providing a complete account of apprentice participation.	challenges with the states that uploaded files into the RAPIDS State Apprenticeship Agency portal and continue to use their existing case management system to track apprentices.	investments to support RAP expansion, diversification, and modernization.
Percent of Complete H-2A Employer Applications Resolved 30 Days Before the Date of Need (OFLC).	Target	95.0%	95.0%	97.0%	97.0%	97.0%	97.0%	97.0%	Despite record-setting application levels, OFLC timely resolved the highest percentage of complete H-2A applications in its history.	Meeting the H-2A employer application resolution times necessitated shifting staff from other OFLC program lines, increasing their adjudication times.	To help meet the rising H-2A labor certification workload, more staffing is needed both at the federal and state levels. To help fund the administration of the program, the FY 2025 Budget proposes authority for DOL to retain the H-2A certification fee it currently collects.
	Result	86.1%	96.8%	97.0%	97.6%	98.2%	--	--			
	Status	N	Y	Y	Y	Y	--	--			

Sources: State and grantee reports submitted through the Workforce Integrated Performance System (WIPS), RAPIDS, and OFLC electronic Filing and Case Processing System.

VETS Performance Goal 1.1 – Provide veterans, service members, and military spouses with resources and tools to gain and maintain employment

VETS oversees programs that assist veterans seeking employment and provides outreach to employers seeking skilled workers. These efforts are focused on enabling all veterans to reach their full potential in the workplace. VETS administers several programs to meet the employment and training needs of veterans, service members and spouses. The JVSG program provides funding to states for Disabled Veterans' Outreach Program (DVOP) specialists and Local Veterans' Employment Representative staff. The HVRP addresses one of the most vulnerable populations by reintegrating homeless veterans into society and the workforce. DOL's TAP, administered in conjunction with the Department of Defense and the Department of Veterans Affairs, provides workshops to support a successful transition from military to civilian employment. Pursuant to the USERRA and the Veterans' Employment Opportunities Act of 1998, VETS investigates complaints received from individuals who believe their employment or reemployment rights under USERRA and federal employment preference rights under Veterans' Preference were violated. Also, VETS operates the Honoring Investments in Recruiting and Employing (HIRE) Veterans Medallion Program—the only federal-level veterans' employment award that recognizes a company or organization's commitment to recruiting, employing, and retaining veterans.

Analysis and Future Plans

VETS provides veterans, service members, and their families with targeted training and resources, through four programs that leverage partnerships to improve employment outcomes.

DOL offers a mandatory one-day Employment Fundamentals of Career Transition workshop, as well as the DOL Employment Workshop and the Career and Credential Exploration workshop, which are both elective two-day courses. In addition, VETS offers specialized TAP curricula: Transition Employment Assistance for Military Spouses and the Wounded Warrior and Caregiver Employment Workshop. VETS reviews the Transition Assistance Curriculum Participant Assessment (TACPA) results received quarterly from the Department of Defense and TACPA written comments for use in improving facilitator performance and curricula content. In FY 2023, the post-course survey result for facilitator satisfaction was 96 percent through the third quarter.

DVOP specialists provide individualized career services to veterans with significant barriers to employment, eligible transitioning service members, and wounded, ill, or injured service members and their caretakers. VETS tracks the employment outcomes for those served by DVOP specialists, such as the median earnings in the second quarter after exit. The PY 2022 result for this measure was \$8,784. VETS began tracking state median earnings quarterly outcomes against their goals and found that over 96 percent of states met or exceeded their goal in PY 2022. While the national targets have been adjusted to account for the increase in wages, JVSG state-level goals have not. States set goals in two-year increments, and due to the inherent lag in reporting for this measure, states establish median earnings goals using historical data that is up to three years older than the

Strategic Goal 1

targeted outcome. VETS is committed to improving the methodology used to forecast participant wages and will consider adjustments for inflation in relation to state-level targets in FY 2024 and FY 2025.

HVRP grantees provide a variety of services along with federal, state, and local partners to best serve the unique needs of veterans experiencing homelessness. Median earnings in the second quarter after exit have continued to increase, as the PY 2019 result was \$4,836, and the PY 2022 result was \$8,650. Additionally, HVRP served 17,389 participants and placed 55.2 percent of program exiters into employment with an average hourly wage of \$18.34 in PY 2022. VETS recently introduced participant location information in the HVRP reporting form and is committed to ensuring median earnings align with the state living wage.

VETS manages its USERRA investigations to ensure each complaint is investigated appropriately in terms of quality and timely completion. In FY 2023, VETS continued to monitor and report on its current statutory requirement measuring the percentage of cases closed within 90 days or within an extension of time agreed to by the claimant, resulting in an outcome of 99.8 percent for the year.

VETS – Provide veterans, service members, and military spouses with resources and tools to gain and maintain employment.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Median Earnings (2nd quarter after exit) for veterans served by DVOP	Target	\$6,500	\$6,500	\$6,500	\$6,600	\$7,000	\$7,500	\$8,000	VETS began tracking state median earnings outcomes against its goals on a quarterly basis. Over 96 percent of states met or exceeded their goal at the end of PY 2022.	JVSG sets goals in two-PY increments (e.g., PY 2022-2023). States set goals based on historical data that is 2 to 3 years older than the forecasted wage earnings, with no adjustment for inflation.	VETS will review the JVSG State Performance Target Tool and consider adjustments for inflation when the states set their PY 2024-2025 median earnings goals.
	Result	\$6,679	\$6,957	\$7,998	\$8,784	TBD	--	--			
	Status	Y	Y	Y	Y	--	--	--			

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
HVRP Median Earnings 2nd Quarter After Exit	Target	\$4,200	\$4,200	\$7,000	\$7,100	\$7,500	\$8,000	--	VETS published a new performance reporting Desk Guide that clarified acceptable documentation for verifying wages when reporting post-exit employment outcomes.	In PY 2022, VETS' HVRP reporting forms did not collect participant location information, a necessary component for the program's wage comparisons.	VETS will review the new participant location data collected in the PY 2023 reporting form and compare earnings outcomes to the state living wage.
	Result	\$4,836	\$7,540	\$8,216	\$8,650	TBD	--	--			
	Status	Y	Y	Y	Y	--	--	--			
Percent of USERRA cases completed within 90 days, or within any approved extensions	Target	--	--	--	100.0%	100.0%	100.0%	100.0%	Timely case completion rates remained high.	Two cases exceeded their deadline.	VETS will continue its diligent investigative work to minimize the number of cases that exceed established timelines.
	Result	100.0%	100.0%	99.8%	100.0%	99.8%	--	--			
	Status	--	--	--	Y	N	--	--			
Facilitator satisfaction through post-course survey	Target	--	--	90%	90%	90%	90%	90%	VETS workshops were highly rated by attendees.	Reporting delays of survey results.	VETS will continue to use survey results in the future but has created outcome measures that will become the primary TAP performance metrics.
	Result	--	--	96%	96%	96%	--	--			
	Status	--	--	Y	Y	Y	--	--			

Sources: TACPA, WIPS (Median Earnings 2nd Quarter After Exit measure), VETS-701 Technical Performance Reports (HVRP Median Earnings 2nd Quarter After Exit measure), Veterans' Case Management System (Closed Cases Quality measure).

Notes: The measures with TBD in the results cells are reporting on a Program Year timeframe (12 months ending June 30). PY 2023 results will be reported in the FY 2024 APR. Median Earnings results were adjusted by one year to align with their associated Program Year and ETA reporting processes. Previously they were reported on a fiscal year basis. The results themselves remained unchanged. The FY 2023 result for the facilitator satisfaction post-course survey measure is through the third quarter.

WB Performance Goal 1.1 – Promote policies and support programs focused on improving women’s employment and economic outcomes.

WB conducts research to formulate practices and policies aimed at increasing economic and employment opportunities and advancement for the more than 77 million working women and their families in the U.S. WB identifies trends, data gaps, policy and programmatic needs, and strategic mechanisms to safeguard the interests of working women. These efforts allow WB to inform and educate individuals and organizations at the local, state, and national levels about the issues facing women in the labor force.

Analysis and Future Plans

For more than 100 years, WB has been committed to advocating for equality and economic security for working women and their families. In FY 2023, WB focused on reducing occupational segregation for women workers, increasing equity in pay and hiring, increasing access to paid leave and affordable child care, increasing access to benefits and knowledge of worker rights, and eliminating gender-based violence and harassment in the world of work. WB exceeded its target for the number of policy and research deliverables, producing a total of 61 deliverables focused on equity for marginalized sub-groups of working women. In FY 2023, WB invested more than \$8.1 million in grants to fund effective programs working to increase women’s equity and inclusion in higher-paying, non-traditional jobs. Through a combination of grants, programming, stakeholder engagement activities, communications products, and sustained participation in a variety of intra- and inter-agency equity initiatives, WB led efforts to bring greater gender and racial equity to the workforce and the skilled trades.

In FY 2024 and FY 2025, WB will engage with worker organizations, community-based organizations, and other stakeholders to advance equity, job quality, and worker voice as part of DOL’s place-based strategy for implementing the Biden-Harris *Investing in America* agenda. Through a cooperative grant agreement with Accelerator for America (AFA), WB and AFA will provide technical assistance and capacity-building support to scale partnerships with the goal of training and placing more underrepresented populations in infrastructure-funded good jobs. WB will support OFCCP Megaproject implementation, conduct an analysis on the economic impact of care infrastructure, continue working with elected officials to support investments in care infrastructure, and provide technical assistance on paid leave program design and strategies to increase female recruitment and retention in infrastructure jobs. In partnership with DOL’s Wage and Hour Division, WB created sample employment agreements for domestic workers that provide child and long-term care and will initiate a coordinated outreach and dissemination plan in FY 2024 to encourage widespread use. In FY 2024, WB and the Bureau of Labor Statistics will engage in a data collection effort for the updated American Time Use Survey Leave and Job Flexibilities Module. The data will provide insight about leave and work policies before and after the onset of the COVID-19 pandemic.

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WB – Promote policies and support programs focused on improving women’s employment and economic outcomes.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of policy & research deliverables	Target	16	15	17	32	40	45 [e]	50 [e]	WB published new data on gender and racial pay disparities, and developed resources on equal pay protections, child care, paid leave, and other strategies for ensuring equity for workers.	As DOL and the Office of Personnel Management (OPM) did not sign a Memorandum of Understanding and data sharing agreement by the end of FY 2023, WB had to postpone work on its analysis of leave-taking behavior under the Federal Employee Paid Leave Act until FY 2024.	WB will collect updated childcare price data to expand the NDCP and sponsor the 2024 American Time Use Survey Leave and Job Flexibilities Module to collect data on disparities in access to and use of leave.
	Result	21	17	23	45	61	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Number of strategic partnerships with organizations primarily serving underserved communities	Target	--	--	--	--	225 [p]	250 [p]	260 [p]	WB engaged with worker organizations, community-based organizations, elected officials, states, and other stakeholders to advance women’s inclusion and equity in jobs created by the BIL.	While WB succeeded in counting the number of partnerships formed over the course of the fiscal year, current measures failed to account for impact in any quantifiable way.	WB will test and document indicators of the impact of the agency’s influence strategy and measures of stakeholder interest, such as the number of external citations, web traffic, and event participation.
	Result	--	--	36	221	383	--	--			
	Status	--	--	--	--	--	--	--			

Sources: WB quarterly productivity reports.

ODEP Performance Goal 1.1 – Develop evidence-based policies, practices, and tools to foster a more inclusive workforce to increase quality employment opportunities for individuals with disabilities.

ODEP promotes policies and practices, and coordinates to increase the number and quality of employment opportunities for individuals with disabilities. ODEP employs strategies to help employers meet their business objectives by fully integrating the skills and talents of job seekers and employees with disabilities. Additionally, ODEP uses data and evidence to promote the adoption and implementation of policy strategies and effective practices to increase the number and quality of job opportunities for people with disabilities. Based on research and evaluation, ODEP develops or identifies effective policy and practices, conducts outreach to share this critical information, and provides technical assistance to all levels of government and employers to aid them in adoption and implementation.

ODEP plans to continue engaging all of its stakeholders as it seeks input to address their specific needs. For example, ODEP will continue efforts with state intermediaries to identify state-level policy development opportunities. ODEP will also continue to seek ways to incorporate input from stakeholders in the development of implementation tools and to provide targeted technical assistance that meets their needs. Aligned with the Department's broader equity efforts, ODEP will expand its reach and assist underserved communities in culturally and linguistically competent ways. This includes developing tools that are customized to meet the needs of the diverse groups ODEP engages with.

Analysis and Future Plans

In FY 2023, ODEP exceeded each of its four targets. ODEP will continue to fund RETAIN and SEED, as well as initiatives supporting competitive integrated employment for people with disabilities. ODEP funded a cooperative agreement targeted to employers through the Employer Assistance and Resource Network as well as an agreement to continue the work of the Center for Advancing Policy on Employment for Youth. In FY 2024, ODEP will fund a new initiative, the Equitable Transitions Models Demonstration, to develop scalable strategies to enable low-income youth and young adults with disabilities ages 16-24, including those experiencing homelessness, leaving foster care, or involved in the justice system, to successfully transition into the workforce.

Strategic Goal 1

ODEP – Develop evidence-based policies, practices, and tools to foster a more inclusive workforce to increase quality employment opportunities for individuals with disabilities.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of policy outputs	Target	44	35	37	42	42	39	40	ODEP again excelled in leveraging state intermediaries to generate state-level policy supporting and increasing disability employment by influencing state-level business environments.	While ODEP exceeded this target, ODEP will focus on outputs that address equity for underserved communities and aid in the development of policies that address issues of importance to those groups.	ODEP will continue to engage state intermediaries to seek additional state-level policy development opportunities.
	Result	66	51	41	44	43	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Number of implementation tools	Target	60	84	107	112	122	102	104	ODEP continues to excel in producing implementation tools as requested by practitioners at all levels of government and employers.	While ODEP exceeded this target, ODEP will continue to look for ways to enhance the use of the implementation tools through targeted technical assistance, including making them more accessible.	ODEP will continue to engage practitioners and stakeholders in providing input to develop implementation tools that address their dynamic business needs.
	Result	110	98	128	112	140	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Number of Technical Assistance Events (Targeted)	Target	402	236	234	243	257	294	302	ODEP continues to excel in providing intensive, targeted technical assistance to all its stakeholders to ensure consistent support.	While ODEP has exceeded this target, ODEP will further customize technical assistance events for all stakeholders in a culturally and linguistically competent way.	ODEP will continue to provide targeted technical assistance and gather input from stakeholders to support better implementation of its initiatives including outreach to underserved communities.
	Result	403	195	246	273	291	--	--			
	Status	Y	N	Y	Y	Y	--	--			

Strategic Goal 1

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of customers that find technical assistance center information useful	Target	85%	85%	85%	90%	92%	92%	92%	ODEP continues to excel in providing technical assistance that customers find useful and meets their needs.	While ODEP has exceeded this target, ODEP will continue to look for ways to expand the reach of its technical assistance center materials to more underserved communities.	ODEP will continue to engage customers to identify ways to develop useful products and information for its technical assistance centers.
	Result	96%	92%	98%	91%	92%	--	--			
	Status	Y	Y	Y	Y	Y	--	--			

Sources: ODEP Data Management System

Strategic Goal 2: Ensure Safe Jobs, Essential Protections, and Fair Workplaces

Strategic Objective 2.1

Secure safe and healthful workplaces, particularly in high-risk industries.

Partner Agencies Driving this Objective (select the hyperlink to learn more about each agency)

[Occupational Safety and Health Administration](#) (OSHA)

[Mine Safety and Health Administration](#) (MSHA)

All workers have a right to a safe and healthful work environment. OSHA and MSHA recognize that some workers are more vulnerable than others and that some workplaces are more hazardous than others. By strategically scheduling inspections and outreach in high-risk areas, in addition to completing mandated enforcement activity, DOL expects to have the greatest effect on overall compliance. With more employers in compliance, workplace injuries, fatalities, and illnesses should decline – the ultimate outcome for workers.

The Administration’s vision provides workers a voice in the workplace so that they may actively participate in the protection and promotion of their workplace rights without hindering their employment growth opportunities. Workers are more likely to have a voice in the workplace if they are better informed of their employment rights and are better able to freely exercise those rights and overcome their fear of adverse consequences. OSHA and MSHA provide a range of protections for workers who claim that their rights are being violated.

FY 2023 Strategic Review Summary of Progress (Area for Improvement)

Findings for this objective were grouped into three themes: Safe and Healthful Workplaces; Ensuring Equity and Protecting the Most Vulnerable Workers; and Workers’ Rights/Whistleblower and Miners’ Rights. Evidence of progress included targeted enforcement of workplace safety and health standards and protecting miners’ rights. Challenges were identified in keeping up with the volume of workplace retaliation complaints received under the Whistleblower Protection Program, efforts to protect the safety and health of miners, and in attracting, hiring, training, and retaining a diverse workforce.

Safe and Healthful Workplaces

OSHA: Enforcement of Workplace Safety and Health Standards

In FY 2023, OSHA conducted 34,249 inspections, exceeding the 33,790 targeted. Of these, 28,114 were safety inspections and 6,135 were health inspections. This represents a seven percent increase over the number of inspections conducted in FY 2022. OSHA conducted 955 fatality inspections in FY 2023, a 14 percent reduction from FY 2022. Additionally, OSHA exceeded the number of hazards abated for powered industrial vehicle hazards in the warehousing industry by 55 percent.

OSHA: Voluntary Protection Program (VPP)

OSHA's VPP establishes cooperative relationships between participants, management, and labor to implement comprehensive safety and health programs to exceed OSHA standards. In FY 2023, approvals and reapprovals of VPP sites continued to be impacted by COVID-19 due to the backlog of on-site evaluations caused by the pandemic that needed to be addressed in the fiscal year. Despite this impact, new approvals increased from 19 in FY 2022 to 23 in FY 2023 and re-approvals increased from 264 in FY 2022 to 279 in FY 2023.

MSHA: Protect the Safety of Miners

The 5-year rolling average of fatal injuries per 200,000 hours worked increased for the third consecutive year. The estimated FY 2023 result of 0.0132 was a 19 percent increase from FY 2022. The 5-year rolling average of reportable injuries associated with powered haulage equipment per 200,000 hours worked increased four percent from FY 2022 and the 5-year rolling average of all injuries per 200,000 hours worked increased one percent from FY 2022.

MSHA: Protect the Health of Miners

The DOL Office of Inspector General (OIG) has identified Protecting the Safety and Health of Workers as a top management and performance challenge. A concern for MSHA to address is exposure in coal mines to high levels of crystalline silica, a carcinogen and contributing cause of black lung disease. More than three times as many coal miners were identified as having black lung disease from 2010 to 2014 compared to 1995 to 1999, and crystalline silica, a component of respirable coal mine dust, has been linked to this increase. In November 2021, the OIG reported that MSHA's allowable limit for respirable crystalline silica has remained unchanged for more than 50 years, and MSHA has been working on a rule to lower the limit for over two decades. In June 2022, MSHA implemented a Silica Enforcement Initiative to protect miners' health by limiting their exposures to respirable crystalline silica. The four components of the initiative are inspections, sampling, compliance assistance, and miners' rights.

In July 2023, for the first time, MSHA published a proposed rule lowering miners' exposure to respirable crystalline silica and improving respiratory protection at all mines. MSHA held three public hearings to give stakeholders the opportunity to present testimony, written comments, and other

documentary evidence on the proposed rule. The comment period on the proposed rule ended in September 2023. After reviewing public comments, MSHA will develop and publish a final rule that will improve health protections for all miners and lower the risk of material impairment of health or functional capacity.

MSHA: Impact Inspections

MSHA initiated impact inspections in April 2010 after an explosion at the Upper Big Branch Mine in West Virginia claimed the lives of 29 miners. The program continued until 2017 when MSHA began conducting a limited number of targeted inspections at mines that warranted additional enforcement. The agency ended the practice of publishing the results in March 2020. MSHA continued to conduct targeted inspections through December 2022. In January 2023, MSHA resumed conducting monthly impact inspections at mines that merit increased agency attention and enforcement due to factors that include poor compliance history; previous accidents, injuries, and illnesses; and other compliance concerns. MSHA also resumed the practice of publishing the results on the agency's website. In FY 2023, MSHA's impact inspections identified 2,092 violations, including 604 significant and substantial and 40 unwarrantable failure findings. Some of these were repeat violations.

Ensuring Equity and Protecting the Most Vulnerable Workers

OSHA: Community Engagement and Outreach Efforts to Vulnerable Workers

Safety training is a critical piece of OSHA's effort to prevent workplace fatalities, injuries, and illnesses. OSHA conducts training programs at the OSHA Training Institute (OTI) and administers the OTI Education Centers Program and the Outreach Training Program. OSHA also provides training through its compliance assistance efforts in support of agency regulatory, enforcement, and outreach initiatives. OSHA continued to use a mix of traditional in-person and virtual training. In addition, it enabled events that were planned and implemented at an area or regional office level to be accessible to a national audience. The implementation of virtual training increased access to training for many workers and OSHA personnel.

OSHA: Agency Engagement with Marginalized and Underserved Communities to Improve Policies and Programs

OSHA developed a performance measure to track the percentage of Susan Harwood Grant Applicants proposing to deliver or develop materials for training in languages other than English. In FY 2023, OSHA achieved a result of 71 percent, just below the target of 75 percent. In FY 2023, the agency laid groundwork for significant changes to its Capacity Building funding opportunity, which will be proposed in the FY 2024 funding opportunity announcement. The changes are intended to solicit more applications from smaller non-profit organizations that do not have a current capacity to deliver occupational safety and health training. OSHA also secured approval from OMB to collect demographic data from Susan Harwood Grant trainees. OSHA will begin demographic data collection, including race, ethnicity, and gender. OSHA will use this demographic information when establishing future program priorities and initiatives.

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In FY 2023, OSHA developed and implemented enhanced audience-tracking capabilities to the OSHA Information System Compliance Assistance module. These modifications will better position the agency to understand the extent to which its outreach and compliance assistance activities are reaching vulnerable and underserved populations, and to identify opportunities for improvement.

MSHA: Competitive Grant Money – Underserved Populations

In FY 2023, MSHA aimed to award 20 percent of the competitive funds to Minority Serving Institutions. Prospective grantees for MSHA's competitive grant program included nonprofit institutions that are not eligible to be identified as a Minority Serving Institution. While MSHA only awarded one grant to Minority Serving Institutions, it also awarded a grant to the United Mine Workers of America to create a training program that focuses on minority communities by developing bilingual training materials. Despite not meeting the specific goal, MSHA achieved its overall objective of awarding funds to underserved communities.

MSHA: Evaluating Conditions in Underserved Communities

In FY 2022, MSHA worked to identify mines located in medically underserved populations as defined by the Health Resources and Services Administration (HRSA), which include Health Professional Shortage Areas, Medically Underserved Areas, Medically Underserved Populations, Exceptional Medically Underserved Populations, and Governor's-Designated Secretary-Certified Shortage Areas for Rural Health Clinics.

In FY 2023, MSHA completed its analysis of whether miners in underserved communities face any particular vulnerabilities. MSHA used HRSA data and found that 13 percent of mines are located in a primary care shortage area, 7 percent are located in a dental health shortage area, and 41 percent are located in a mental health shortage area. MSHA will develop an electronic tool on its website that utilizes coordinate/address data for Black Lung clinics, HRSA health centers, and Substance Abuse and Mental Health Services Administration substance use facilities to aid miners in locating health resources. Additionally, the tool will allow a miner to search for treatment resources by facility type, service setting, treatment approaches, language services, recovery support services, and payment options. MSHA will foster communication with the mining community to improve knowledge of accessing primary care, dental, and mental health providers within close proximity to a mine location. MSHA will actively engage with the mining community through alliance group partnerships to collaborate on the development of the tool, increase awareness of the tool, and conduct technical sessions demonstrating tool features.

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MSHA: Building Our Team

If MSHA cannot attract diverse candidates and address diversity and inclusion in the workplace, then it will be challenged to attract the talent needed to increase enforcement effectiveness; modernize training and education programs; and strengthen mine safety and health standards. MSHA has had large full-time employee lapses in recent years as hiring has occurred at a slower rate than planned. MSHA launched an apprenticeship program to hire new inspectors, creating opportunities for a more diverse workforce that represents miners and mining communities.

Workers' Rights/Whistleblower and Miners' Rights

OSHA: Whistleblower Protection Program (WPP)

The volume of workplace retaliation complaints received under the WPP continued to increase. The program received 13,432 new complaints in FY 2022 and 15,758 in FY 2023. In addition, the number of new complaints filed that were docketed for investigation also increased from 2,756 in FY 2022 to 3,269 in FY 2023. To address the increase in cases, OSHA overhauled its Whistleblower Investigatory Process to streamline investigations without compromising case quality.

MSHA: Protect the Rights of Miners

In FY 2023, MSHA completed 100 percent of investigations of miner complaints related to requests for temporary reinstatements within 20 days of receipt. As part of several new safety and health initiatives, MSHA will continue to educate miners about their rights and the Mine Act's protections against retaliation, discrimination, and interference.

OSHA Performance Goal 2.1 – Secure safe and healthful working conditions for America’s workers.

OSHA was established by the Occupational Safety and Health Act of 1970 with the mission to ensure employers provide America’s workers safe and healthful working conditions. OSHA ensures the safety and health of America’s workers by setting and enforcing workplace safety and health standards; delivering effective enforcement; providing training, outreach, and education; and encouraging continual improvement in workplace safety and health. Through these efforts, OSHA aims to reduce the number of worker illnesses, injuries, and fatalities and contribute to DOL’s broader goals.

Analysis and Future Plans

OSHA implements strategies along a “safety curve” that reflects employers’ commitment to providing workers a safe and healthful workplace. OSHA uses the range of mechanisms provided under the Act including criminal and civil penalties, inspections, compliance assistance, consultation, and recognition programs to move employers up the curve from a lower to a higher commitment to safety. OSHA has traditionally implemented a full range of programs and activities targeting each part of the safety curve. For example, enforcement interventions that are proactive in preventing injuries include increased use of OSHA’s imminent danger authority, comprehensive settlements that require safety and health management systems with real worker participation, and strategic engagement with worker stakeholders to better understand and address the health and safety challenges in their workplaces. While enforcement and standards setting continue to be the leading tools across Administrations, for enforcement activities to have a scalable effect that reaches all workers, especially vulnerable ones, it must be thought of in the context of a larger system that leverages enforcement to gain wider behavioral change.

OSHA’s compliance assistance and outreach, On-Site Consultation Program, and other OSHA cooperative programs, including recognition programs such as the Safety and Health Achievement Recognition Program and VPP, are proactive and collaborative in nature and assist employers in amplifying their commitment to improve workplace safety. These and other OSHA recognition programs showcase employers with a greater commitment to occupational safety and health and demonstrate the feasibility of developing and maintaining an exemplary safety and health management system (SHMS). In FY 2023, OSHA began a project to modernize VPP to assist more employers in reaching exemplary SHMS. The project, which is expected to continue through FY 2024, initiated a contract to analyze other successful SHMS and to hold listening sessions in high volume regions during safety and health conferences. In FY 2024, the Electrical Transmission and Distribution Partnership will enter its 20th year with its renewal. This Partnership has resulted in several best practices in the industry and has reduced fatalities in the industry over its term. The National Association of Tower Erectors Partnership will be renewed for the first time in FY 2024 and will continue to address severe injuries and fatalities in the communications tower erection industry through development of best practices and training.

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OSHA intends to use all established emphasis programs, agency priorities, and enforcement policies in FY 2024 and FY 2025 to protect America's workers. Often workers in OSHA's targeted industries and workplaces, those with the highest illness and injury rates, belong to ethnic or racial minorities groups, are non-English speakers, are first-generation immigrants, belong to economically disadvantaged populations, or exhibit mental or physical disabilities. Therefore, protecting these workers also advances racial and economic equity and supports underserved communities. In FY 2024, OSHA's enforcement of the new National Emphasis Program Warehousing and Distribution Center Operations (Warehouse NEP) will begin. In addition, OSHA is expanding the goal of abating powered industrial vehicle hazards in warehousing. Regarding heat-related illnesses, OSHA will conduct and assess a Heat NEP Pilot for H-2A Visa applicants Targeting Agricultural Industries. For respirable crystalline silica hazards, OSHA will perform a focused subset of inspections at facilities where employees are exposed to engineered stone particulates, often containing high concentrations of respirable crystalline silica. In the healthcare industry, OSHA continues to probe methods and practices to ensure employees are removed from hazards, such as ergonomic and workplace violence.

OSHA's reframing the enforcement portion of the OSHA Weighting System (OWS) in FY 2023 to the new OSHA Enforcement Impact Index (EII), is another strategy OSHA uses to account for and leverage its resources beyond the simple metric of number of inspections. The EII is a monitoring tool that provides better information on managing and prioritizing OSHA enforcement resources, as well as an aid for managers to make resource allocation decisions. The EII categorizes and calculates an enforcement impact value in the form of points to prioritize inspections that have the greatest impact on reducing workplace fatalities, injuries, and illnesses. The formula is driven by factors that target emphasis program hazards and address agency priorities, industries, or goals. OSHA uses the impact criteria and various data sources to monitor how its efforts to encourage more complex and impactful inspections in high hazard industries intersect with its goals of serving vulnerable worker populations.

Safety training is a critical piece of OSHA's effort to prevent workplace fatalities, injuries, and illnesses. OSHA conducts safety training programs at the OTI and administers the OTI Education Centers Program and Outreach Training Program. OSHA also provides training through its compliance assistance efforts in support of agency regulatory, enforcement, and outreach initiatives (e.g., National Stand Down to Prevent Falls in Construction, Heat Illness Prevention, and the Safe + Sound Campaign). In FY 2023, OSHA provided training for 1,619,892 individuals through a mix of traditional in-person training and virtual training. Virtual training increased access to training for many workers and OSHA personnel and enabled events that were planned and implemented at an area or regional office level to be accessible to a national audience.

In FY 2023, OSHA focused on inspections conducted through emphasis programs. Specifically, the agency focused its emphasis on reducing or eliminating employee exposure to fall, struck-by, caught-in, and electrical hazards in all workplaces. This is compared to prior years when the emphasis was solely on the total number of inspections for hazards that are among the leading causes of death in the workplace. In FY 2024 and FY 2025, OSHA will maintain focus on emphasis programs (EPs) targeting safety hazards while researching a new method of EP rotations to allow field resource concentration on safety EPs.

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OSHA also administers and enforces 25 whistleblower protection statutes that protect workers who experience retaliation for reporting violations of the law. Principally, this includes Section 11(c) of the Occupational Safety and Health Act, which prohibits employers from retaliating against employees who bring workplace safety and health hazards to the attention of the employer or the agency. The additional 24 whistleblower protection provisions protect workers in a variety of industries who speak out against unsafe and/or unlawful behavior, including violations of transportation, environmental protection, consumer protection, health insurance reform, or fraud and financial reform laws.

In FY 2023, OSHA met its target for the average age of pending Whistleblower cases. In addition, OSHA met its target of 8 days, with a result of 5 days, for the average time to complete the new complaint screening process. OSHA lowered its inventory of pending investigations from 2,355 cases at the end of FY 2022 to 2,009 cases at the end of FY 2023.

OSHA implemented its Whistleblower Outreach Plan for FY 2023 by concentrating its efforts on reaching migrant and other traditionally underserved workers, especially those who do not speak English. OSHA coordinated with worker advocacy groups to identify and meet the needs of these categories of vulnerable workers and developed a tracking mechanism to capture all compliance assistance activity regarding these vulnerable populations. In addition, OSHA started a pilot which provides a simplified procedure to address complaints that are not covered by OSHA administered whistleblower statutes, untimely filed, or alleged safety or compliance concerns but not retaliation. Moreover, the agency updated its webpage to improve navigation for its users. These initiatives will assist the agency in tackling the still-large inventory of pending cases and backlog of over-aged cases while promoting greater customer service in FY 2024 and FY 2025.

OSHA – Secure safe and healthful working conditions for America’s workers.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Safety Inspections	Target	26,240	16,523	24,810	25,120	27,032	27,477	27,931	Weekly, monthly, and quarterly reviews of safety inspection goal and tracking progression. Available resources used with an inspection plan to meet or exceed goal.	Sustained unplanned activity reduced the available resources to carry out programmed emphasis safety inspections.	OSHA will maintain focus on EPs targeting safety hazards while researching a new method of EP rotations to allow field resource concentration on safety EPs.
	Result	27,890	17,558	19,948	25,388	28,114	--	--			
	Status	Y	Y	I	Y	Y	--	--			

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Health Inspections	Target	6,560	4,131	6,203	6,280	6,758	6,869	6,983	Weekly, monthly, and quarterly reviews of safety inspection goal and tracking progression.	Sustained unplanned activity reduced the available resources to carry out health inspections. Larger populous regions had many new Health Certified Safety and Health Officials (CSHOs) which limited the breadth of health inspections conducted due to lack of experience and training.	OSHA will maintain its focus on EPs while targeting health hazards and cross-training Safety CSHOs to perform less technical health inspections (Noise and Silica). OSHA will also research a new method of EP rotations to allow field resources to direct their attention to safety EPs.
	Result	5,511	4,116	4,407	6,498	6,135	--	--			
	Status	N	N	I	Y	N	--	--			
Percent of inspections conducted through emphasis programs specifically focused on reducing or eliminating employee exposure to fall, struck-by, caught-in, and electrical hazards in all workplaces	Target	--	--	--	32%	33%	34%	35%	Regional/Area office management of emphasis program resources targeting hazardous worksites/places/ assignments focusing on controlling four main hazards associated with death or injury on the job.	Sustained unplanned activity reduced available resources to carry out programmed emphasis safety or health inspections.	OSHA will research a new method of EP rotations allowing resource to focus on addressing the four leading causes of fatalities and injuries on the job and plan for infrastructure targeting in Construction.
	Result	--	31%	33%	32%[r]	33%	--	--			
	Status	--	--	--	Y	Y	--	--			
Number of people trained by OSHA	Target	--	1,058,728	1,209,920	1,329,000	1,401,000	1,375,000	1,520,000	The number of persons trained by OSHA grew as the pandemic emergency subsided. The country continued to resume more in-person work and training demand in	OSHA's Outreach Training Program, OTI Education Centers, and compliance assistance activities are all operating as intended and did not experience any significant issues	OSHA will continue to provide training at the same level of excellence through the Outreach Training Program, OTI Education Centers, and compliance assistance activities.
	Result	1,627,368	1,371,943	1,371,488	1,378,581	1,619,892	--	--			
	Status	--	Y	Y	Y	Y	--	--			

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
									the labor market grew.	that needed to be addressed.	
Average age of pending whistleblower investigations.	Target	340	340	340	330	320	300	300	The divergent case initiative to redistribute cases across regions for processing. The redistribution allowed the WPP to meet a record processing time of 199 days.	Even though the result was 199 days nationally, one region ended the year at 331 days. Another redistribution of cases may lead to higher aged inventory nationally.	Monitor and prioritize aged case inventory nationally to assess if another redistribution is required. Reach out to parties as soon as the case is docketed to encourage Alternative Dispute Resolution.
	Result	307	333	350	332	199	--	--			
	Status	Y	Y	N	I	Y	--	--			
Average days to complete new complaint screening process. (Whistleblower)	Target	13.0	13.0	13.0	10.0	8.0	8.0	8.0	The National Intake Pilot was beneficial to participating regions. Participants allowed to close complaints without conducting a Competent Person interview that on their face were not within OSHA jurisdiction.	Although the program was successful in meeting the goal, the National Intake Pilot identified areas for improvement.	Conduct final evaluation of the National Intake Pilot. Increase outreach and education efforts. Improve the On-Line Complaint system to reduce the number of intakes that are not in OSHA's jurisdiction.
	Result	11.0	11.8	7.0	5.4	5.0	--	--			
	Status	Y	Y	Y	Y	Y	--	--			

Sources: OSHA Information System and Integrated Management Information System

MSHA Performance Goal 2.1 – Prevent fatalities, disease, and injury from mining, and secure safe and healthful working conditions for America’s miners.

MSHA protects the safety and health of the nation’s miners through enforcement of the Federal Mine Safety and Health Act of 1977 (Mine Act), as amended by the Mine Improvement and New Emergency Response Act of 2006. MSHA’s mission is to prevent death, disease, and injury from mining and to promote safe and healthful workplaces for the nation’s miners. This mission is carried out through the promulgation and enforcement of mandatory safety and health standards; mandated inspections, which require four complete inspections annually at active underground mines and two complete inspections annually at active surface mines; miner training; and technical compliance assistance activities.

To prevent miner injuries, occupational illness, and fatalities, operators must have in place effective safety and health programs that are constantly evaluated to identify and eliminate mine hazards and provide training for all mining personnel. MSHA has undertaken several measures to prevent mining deaths including: increased monitoring and strategic enforcement through impact inspections at mines with identified problem areas; a Pattern of Violations program; special initiatives such as focusing on inexperienced miners and miners working alone; outreach efforts such as “Miner Health Matters” through which MSHA is conducting enforcement and outreach efforts to ensure miners working in potentially dangerous mining environments take proper precautions to limit exposures to silica and other dangerous toxins; outreach campaign on “Stand Down to Save Lives”; Enhanced Enforcement Program on contract/customer truck drivers and managers/supervisors performing mining tasks; and emphasis on fall protection to protect miners working from heights.

Analysis and Future Plans

MSHA prioritizes efforts to reduce workplace hazards that represent a primary cause of occupational illnesses, fatalities, and injuries. Accidents involving surface mobile equipment are among the leading causes of mining fatalities. MSHA is working on a final rule for a Safety Program for Surface Mobile Equipment which will reduce powered haulage accidents and injuries. The written safety program's final rule includes actions mine operators will take to identify hazards and risks to protect miners’ safety and reduce accidents, injuries, and fatalities related to surface mobile equipment at surface mines and surface work areas of underground mines. Under this proposal, mine operators would have flexibility to develop and implement a written safety program that would work best for their mining conditions and operations. In FY 2023, accidents caused by powered haulage equipment, which is a category of moving machines used to transport miners or haul materials in mines, contributed to 24 percent of fatalities and 9 percent of total injuries. MSHA continued to promote best practices to prevent injuries and fatalities associated with powered haulage accidents. The [Powered Haulage Initiative](#) website includes pages highlighting large equipment blind spots, seat belt usage, and conveyor safety. Inspectors at all field offices continued to focus on conveyor safety during mine visits, discussing best practices and distributing hardhat stickers and brochures. MSHA focused on fatalities involving contractors and provided compliance assistance to address causes of these deaths. MSHA

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continued to promote its outreach efforts through social media, the agency’s public website, and quarterly stakeholder calls. In FY 2023, MSHA also awarded \$1,000,000 in grant funding through its Brookwood-Sago grant program to support education and training opportunities for miners that focused on safety and health topics, including powered haulage safety.

During the “Stand Down to Save Lives”, MSHA leadership and enforcement and compliance assistance staff visited mines across the country to encourage mine operators to focus on adequate training, workplace examinations, and other important safety and health requirements designed to protect miners and prevent fatalities, accidents, and injuries. MSHA staff visited 1,902 mines and spoke to 30,152 miners and 5,262 supervisors, for a total of 35,414 people in the mining industry throughout the country.

In FY 2024 and FY 2025, MSHA will continue enforcement efforts and compliance assistance to reduce overexposures to silica dust in the mining industry. As part of the Silica Enforcement Initiative, MSHA will continue to increase inspections at mines with a history of repeated silica overexposure; increase sampling in targeted conditions; analyze sampling data; develop health alerts; provide guidance for training plans; and establish a team of experts to address critical health issues. MSHA will conduct spot inspections where citations are not totally abated within the set abatement timeframe and additional action will be considered as appropriate, to ensure miners are being protected. MSHA will also continue its Miners Health Matters campaign, with a focus on making sure that miners and operators are aware of the adverse health effects of silica and other contaminants and best practices for reducing miners’ exposure.

In FY 2024 and FY 2025, MSHA will track and analyze the number of coal miners participating in the 30 CFR, Part 90 program, which was designed to protect miners with evidence of pneumoconiosis. MSHA will provide guidance for training plans to focus on exposure risks and informing miners of their Part 90 rights that allow them to continue working in healthier parts of the mine.

MSHA continues to advance the Administration’s priorities by focusing on diversity, racial and gender equity, and bilingual needs in underserved communities to build a more modern, inclusive workforce. MSHA provides miners with information that can empower them to improve working conditions through the free Miner Safety and Health Application (app). The app provides users with information regarding safety, health, and miners’ rights. As of the end of FY 2023, the app has over 67,000 downloads. To uphold equity and provide support for Limited English Proficiency (LEP) miners, the application is available in both English and Spanish.

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MSHA – Prevent fatalities, disease, and injury from mining and secure safe and healthful working conditions for America’s miners.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
5 year rolling average of reportable injuries associated with powered haulage equipment per 200,000 hours worked	Target	0.170	0.171	0.164	0.169	0.169	0.169	TBD	MSHA did not meet the target based on the estimated result. Powered haulage and machinery injuries remain a priority as part of the MSHA accident prevention efforts.	MSHA did not identify any enforcement efforts or initiatives that did not work. MSHA continues to work on consistency in enforcement, and increased compliance assistance initiatives.	MSHA is working on a final rule for a Safety Program for Surface Mobile Equipment. MSHA will also continue its enhanced enforcement program.
	Result	0.179	0.171	0.172	0.171	0.178 [e]	--	--			
	Status	I	Y	N	I	N	--	--			
5 year rolling average of fatal injuries per 200,000 hours worked	Target	0.0114	0.0100	0.0091	0.0091	0.0091	0.0091	TBD	MSHA did not meet the target based on the estimated result. MSHA utilizes stakeholder outreach and safety initiatives to address safety and health concerns, such as the Stakeholder Conference Calls.	MSHA did not identify any enforcement efforts or initiatives that did not work. MSHA continues to work on consistency in enforcement, and increased compliance assistance initiatives.	Apart from outreach efforts and stakeholder engagement, MSHA will continue its enhanced enforcement program.
	Result	0.0102	0.0095	0.0107	0.0111	0.0132 [e]	--	--			
	Status	Y	Y	N	N	N	--	--			
5 year rolling average of all injuries per 200,000 hours worked	Target	2.25	2.13	1.99	1.99	1.99	1.99	TBD	MSHA met the target based on the estimated result. MSHA utilizes stakeholder outreach and safety initiatives to address safety and health concerns, such as the Stakeholder Conference Calls.	MSHA did not identify any enforcement efforts or initiatives that did not work. MSHA continues to work on consistency in enforcement, and increased compliance assistance initiatives.	MSHA will continue with increased inspection and enforcement effectiveness, modernized training, and increased efforts to protect miners’ rights.
	Result	2.18	2.08	2.03	1.97	1.99 [e]	--	--			
	Status	Y	Y	I	Y	Y	--	--			

Sources: Injury data – Mine operators' and non-exempt contractors' Mine Accident, Injury, and Employment reports and MSHA's Standardized Information System.

Notes: MSHA’s fatality and injury rates reflect the number of fatalities or injuries per 200,000 hours worked during the prior five-year period.

Strategic Objective 2.2

Protect workers' rights.

Partner Agencies Driving this Objective (select the hyperlink to learn more about each agency)

[Wage and Hour Division](#) (WHD)

[Office of Federal Contract Compliance Programs](#) (OFCCP)

[Office of Labor-Management Standards](#) (OLMS)

All workers have the right to be paid properly and treated equitably. WHD, OFCCP, and OLMS promote fair pay, worker rights, and equal opportunity, and serve as the voice of America's workforce. These agencies enforce laws and provide compliance assistance that address worker pay and leave, equal rights, and labor-management transparency. Together, these agencies protect tens of millions of employees in millions of workplaces across the country.

FY 2023 Strategic Review Summary of Progress (Adequate Progress)

Findings for this objective were grouped into two themes: Strategic Enforcement and Performance and Outreach to Vulnerable Workers. Evidence of progress included strengthened outreach efforts focused on essential workers, expanding partnerships with stakeholders with a focus on access and equity, and process improvements to achieve ambitious hiring goals. Challenges were identified in training and resources needed to target enforcement and outreach efforts to underserved communities.

Strategic Enforcement and Performance

WHD: Alignment with Strategic Initiatives

In FY 2021, 83 percent of agency directed investigations were tied to an initiative. For FY 2022, WHD changed the measure to include complaint investigations to reflect its renewed focus on developing strategic partnerships that will result in complaints aligned with agency priorities. As such, WHD adjusted the target downward to 65 percent to encompass both agency initiated and complaint cases. Including complaints in the measure recognizes the potential for both types of cases to deter violations and support broader industry efforts. The FY 2022 result for this new measure, percent of compliance actions associated to a strategic initiative, was 73 percent. In FY 2023 the result for this measure was 72 percent, exceeding the target of 67 percent. Variations in results during this initial implementation phase may be partly explained by the shifting balance of complaint and agency-initiated cases associated with initiatives.

WHD: Severity Index

In FY 2019, WHD created a severity index capturing key dimensions of high impact cases under the Fair Labor Standards Act (FLSA). The corresponding performance measure (percent of FLSA compliance actions with a severity score of 30 or more) builds on the previous performance measure—which treated all types of violations equally—by incentivizing and recognizing the development of higher impact cases. These higher impact cases increase opportunities for the types of press releases that, evidence has shown, achieve deterrent effects. The index is comprised of multiple data points covering the egregiousness, culpability, and magnitude of violations in a given case. In FY 2021, 18 percent of all investigations met the severity index definition of a high impact case, and, by FY 2022, the result was 26 percent. The return to full investigations following the pandemic has sustained this upward trend. In FY 2023, the result for this measure was 30 percent, exceeding the target of 25 percent.

OFCCP: Remediating Discrimination

OFCCP protects workers by ensuring those who do business with the federal government, contractors and subcontractors, are accountable for fulfilling their equal employment opportunity obligations. As part of its enforcement efforts, OFCCP conducts compliance evaluations of federal contractors to identify and remedy systemic discrimination and promote greater federal contractor compliance. In FY 2023, OFCCP completed 898 supply and service (S&S) compliance evaluations covering 922,567 workers and 175 construction compliance evaluations covering 16,310 workers. The agency found discrimination in the employment practices, including hiring and compensation practices, of 4 percent of the federal contractors that it evaluated. These discrimination findings resulted in OFCCP obtaining \$40 million in monetary recoveries for 16,005 workers. OFCCP also found non-discrimination violations, which resulted in changes to policies and practices related to disability in 6 percent of all evaluations; related to protected veteran status in 8 percent of all evaluations; and related to race, color, religion, sex, sexual orientation, gender identity, national origin, or discussing or disclosing compensation in 14 percent of all evaluations.

OFCCP: Timeliness of Compliance Evaluations

OFCCP continued to balance conducting efficient compliance evaluations with identifying and remediating employment discrimination in FY 2023. OFCCP established timeliness goals to encourage the closure of evaluations unlikely to result in discrimination findings sooner and focus the agency's resources on remedies for workers. OFCCP consistently monitored the median number of days to complete compliance evaluations and found that the agency closed S&S evaluations with discrimination findings in 1,189 median days compared to the established goal of 1,200 days.

Compliance evaluations often consist of potential discrimination indicators that resolve only after a further in-depth investigation, causing delays in case closures. OFCCP recognized the need to implement new tools and processes to identify, prioritize, and resolve cases more efficiently. Therefore, the agency implemented a multi-pronged approach that includes 1) providing new and improved tools to staff to assist in identifying potential areas of discrimination during compliance evaluations earlier in the evaluation process; 2) providing new training and decision-making tools to assist staff with identifying evidence of hiring discrimination sooner and prioritizing resources for additional investigation; 3) monitoring

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performance weekly; and 4) conducting monthly meetings with each regional office to discuss compliance evaluations at several decision points and phases of a case and identify efficiencies and solutions to challenges hindering resolution.

OFCCP: Complaints Process

In FY 2023, OFCCP received over 2,900 complaints from workers and perfected 95 percent of the nearly 3,000 closed complaints within the standard timeframe, exceeding the target of 90 percent. In FY 2024, the agency will continue its efforts to promote greater awareness among individual workers, worker organizations, and other stakeholders of OFCCP's complaints process. OFCCP will also implement a pre-complaint process and deploy the complaint module in its Compliance Management System (CMS).

OLMS: Targeted Audits

OLMS has instituted a risk-based audit targeting model to more effectively identify unions where criminal activity may be present by identifying anomalies in union financial reports and using other targeting strategies. OLMS uses this model to strategically utilize its enforcement resources when there is strong suspicion of illegal activity in a particular union or local, thereby avoiding auditing the majority of unions that are in compliance with the law, and efficiently utilizing government resources. The effectiveness of this methodology is measured by the percent of audits resulting in the opening of a "fallout" criminal case. In FY 2023, OLMS achieved a rate of 18.3 percent, above the 17.5 percent target. OLMS's focus on this measure has allowed the targeting skills to peak and improved techniques are now engrained throughout the agency. OLMS is retiring the fallout goal and implementing a new Compliance Audit Program (CAP) goal that focuses on resolving violations through voluntary compliance.

OLMS: Workers Exercise Their Rights to Organize and Collectively Bargain

OLMS seeks to increase disclosure of employer efforts to persuade workers on how to exercise their rights to organize and collectively bargain. OLMS also seeks to increase disclosure of expenditures of employers who surveil employees in connection with a labor dispute. Disclosure of employer activities that constitute "unfair labor practices" is also a priority. In FY 2023, OLMS promulgated a final rule that revises an employer reporting form, LM-10, to clarify that filers must identify the group of employees subjected to the persuasion, surveillance or interference reported. This revision ensures that filers fully explain the circumstances of all covered payments, as required by the statute. This clarification will also enable better National Labor Relations Board (NLRB) cross-matching by employees and the public viewing completed LM-10 forms on the OLMS website. When filers identify the unit of employees subjected to their persuader activity, representation and Unfair Labor Practice cases before the NLRB that have similar information documented can be matched more easily by employees, allowing them to know whether they were subjected to persuader activities more readily. In addition to promulgating this rule, OLMS is sending letters to employers informing them of their filing requirements when circumstances warrant. OLMS also conducted a national compliance assistance seminar on employer and labor relations consultant reporting and held a roundtable discussion with industry leaders on labor-management cooperation, showcasing how labor-management partnerships bring workers

and employers together to solve workplace issues, boost productivity, and increase job satisfaction. OLMS also published a Summer 2023 edition of “Organizing at WORK” Worker Organizing Research and Knowledge Center newsletter, devoted to labor-management partnerships.

Outreach to Vulnerable Workers

WHD: Targeting Underserved Communities

In FY 2022, WHD established a new performance measure, percent of compliance actions in industries with a high proportion of workers in underserved communities, which also supports the DOL Agency Performance Goal: An Economy for All Workers. The FY 2022 result for this measure was 39 percent, six percentage points above the target of 33 percent. In FY 2023, the methodology was refined to incorporate occupational data, which strengthened the measure’s focus on industries employing low-wage workers from underserved communities. In FY 2023, WHD met the target of 78 percent.

WHD: Essential Workers Essential Protections Campaign

WHD worked to integrate the themes, information, and lessons learned from the Essential Workers Essential Protections campaign into how the agency plans and conducts outreach overall. In FY 2023, WHD conducted approximately 4,700 outreach events and activities reaching community-based organizations, worker centers, unions, industry associations, consulates, faith-based organizations, and worker advocacy groups. In FY 2023, 79 percent of outreach events designed to reach a larger audience were carried out as part of strategic initiatives.

OFCCP: Outreach to Underserved Communities

In FY 2023, OFCCP hosted 300 education and outreach events focused on workers’ rights, approximately 58 percent of all outreach events hosted by the agency, exceeding the target of 50 percent. Nearly 35,000 workers attended these events. The agency also held listening sessions with a range of stakeholders, including contractors and worker advocates. In FY 2022, OFCCP and the Equal Employment Opportunity Commission launched the Hiring Initiative to Reimagine Equity, a multi-year collaborative effort that engages a broad array of stakeholders to expand access to good jobs for workers from underrepresented communities and help address key hiring and recruiting challenges. The agencies held public roundtables to explore the barriers in hiring and identify best practices. The public roundtables focused on hiring barriers for workers with gaps in employment, skills-based hiring, and equity in artificial intelligence.

OFCCP: Monetary Recoveries

In FY 2023, OFCCP completed 1,073 compliance evaluations and 44 complaint investigations resulting in 197 conciliation agreements settled, including 56 discrimination cases totaling \$17.3 million in monetary recoveries for 13,861 victims of discrimination and negotiated 833 job

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opportunities. The agency recovered an additional \$22.7 million in salary adjustments for 2,144 affected class members, bringing the total FY 2023 monetary recoveries to \$40 million for 16,005 victims of discrimination.

The monetary recoveries that OFCCP secures for victims of discrimination vary based on the type of discrimination and number of affected class members identified through compliance evaluations or complaint investigations. In FY 2023, the agency settled more aged cases with discrimination findings than in FY 2022, which resulted in nearly double the financial recoveries (from \$20.4 million in FY 2022 to \$40 million in FY 2023). The discrimination rate also increased in FY 2023, moving from three percent in FY 2022 to four percent in FY 2023.

OLMS: Electronic Filing

OLMS' investments in expanding the number of forms available electronically, outreach to facilitate electronic filing of union financial reports, and a rule that required electronic filing of the Form LM-3 and LM-4 reports for fiscal years beginning on or after January 1, 2017, led to great progress in transparency. OLMS made electronic filing mandatory for additional forms in FY 2021 which is reflected in OLMS' e-filing rate of 97.4 percent in FY 2021, 97.9 percent in FY 2022, and 99.6 percent in FY 2023, up from 58 percent in FY 2017. This measure has been met with overwhelming success and there is very little room for improvement. OLMS is retiring this goal but still intends to finalize the electronic filing requirement of the remaining forms that are filed less frequently.

WHD Performance Goal 2.2 – Enforce labor standards and ensure workers in the U.S. are paid the wages they have earned.

WHD is responsible for administering and enforcing laws that establish the minimum standards for wages and working conditions. WHD enforces and administers the minimum wage, overtime pay, and child labor provisions of the FLSA; the prevailing wage requirements and wage determination provisions of the Davis-Bacon Act and Related Acts, Service Contract Act, Contract Work Hours and Safety Standards Act, Walsh-Healey Act, and Copeland Act; the wages and working conditions under the Migrant and Seasonal Agricultural Worker Protection Act; the Family and Medical Leave Act; the Employee Polygraph Protection Act; the garnishment provisions of the Consumer Credit Protection Act; and the Labor Value Content requirements of the United States-Mexico-Canada Implementation Act. WHD also enforces the field sanitation and temporary labor camp standards in agriculture and certain employment standards and worker protections of the Immigration and Nationality Act. Collectively, these labor standards cover most private, state, and local government employment. They protect over 165 million of America's workers in more than 11 million establishments throughout the U.S. and its territories.

WHD carries out its mission to ensure the most vulnerable, marginalized, and underserved workers can fully exercise their workplace rights. To overcome the challenges posed by the agency's size relative to the universe of regulated employers, WHD uses strategic initiatives to maximize the impact of its enforcement activities. The agency's core values emphasize allocating resources in priority industries employing low-wage workers who are most vulnerable to labor violations. These workers include individuals from historically marginalized communities and workers overrepresented in certain low-wage jobs—particularly Black workers, women, and immigrants. These workers also include labor trafficking victims, workers with disabilities who are paid sub-minimum wages under Section 14(c) of the FLSA, and children working in dangerous or exploitative conditions.

Analysis and Future Plans

WHD uses strategic initiatives to achieve cross-cutting goals in industries that employ workers vulnerable to labor violations. These goals include advancing equity, identifying and addressing systemic and egregious violations of child labor, addressing the misclassification of workers as independent contractors, protecting workers from retaliation and exploitation, recovering wages for all workers, and cultivating strong stakeholder relationships focused on improving compliance. Since 2019, WHD investigations have found an 88 percent increase in children being employed in violation of the child labor provisions of the FLSA. In FY 2023, WHD found that 955 of the employers it investigated had violated child labor laws impacting nearly 5,800 children. WHD reviews child labor compliance as part of every FLSA investigation, investigates child labor complaints, and conducts agency-initiated child labor investigations. On February 27, 2023, the Department of Labor announced that it was launching a National Strategic Enforcement Initiative on Child Labor (Strategic Initiative) using data-driven strategies to initiate investigations that are likely to uncover

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children employed in violation of the child labor provisions of the FLSA, 29 U.S.C. 212(c), and use all of its available enforcement tools, including child labor civil monetary penalty assessments and injunctions stopping the movement of goods made with child labor (hot goods actions), to hold employers accountable for those violations and to deter future violations. WHD uses a balance of performance measures designed to drive evidence-based strategies in achieving these goals. The targets promote continuous improvement and, in some cases, stretch goals.

WHD will maintain its commitment to conducting the majority of compliance actions and outreach through strategic initiatives. Both complaint and agency-initiated compliance actions have the potential for impact, and as such, can advance WHD efforts to improve industry compliance. WHD defines “impact” in several ways, including cases that: deter violations beyond the investigated employer; address violations that are egregious, willful, and/or persistent; and reach the greatest number of vulnerable workers and workers from underserved communities. WHD will continue prioritizing outreach events and stakeholder relationships that reach essential workers and underserved communities. Linking outreach to strategic initiatives has increased the focus on strategic partnerships and their role in improving compliance. Developing relationships with stakeholders provides critical information for planning and conducting strategic initiatives.

In FY 2023, WHD continued to measure the percent of FLSA compliance actions with a severity score of 30 or more. The case severity index captures the magnitude and egregiousness of violation findings and indicators of employer culpability. The measure aims to increase the proportion of high impact cases with significant deterrent effects. Performance targets for this measure prioritize developing impact cases as a larger share of overall compliance actions. Increased investments in technology and the WHD workforce provides the needed capacity to develop significant cases, including those involving liquidated damages, civil monetary penalties, and litigation.

WHD has historically focused enforcement on industries that employ some of the lowest paid workers with the highest rates of wage violations. WHD analysis determined that these same industries employed high percentages of workers of color. Strong enforcement strategies in these industries are an important tool to advance racial equity and combat poverty. WHD is working to augment these industry-based, worker-focused strategies by systematically leveraging state and local enforcement power. WHD is carrying out a systematic analysis of labor standards and worker protection laws at the state and local levels, including the scope of worker protections, the enforcement capacity of state and local partners, and the remedies available. This analysis will guide development of strategic partnerships and collaborative enforcement strategies to strengthen protection and enforcement in all regions and offices.

Ensuring workers receive the wages they are due is especially important for workers from underserved communities. Most back wages due to workers are paid directly by the employers to those workers. However, workers who cannot be located and are owed back wages may be among the most vulnerable workers. In FY 2022, WHD launched a public service campaign to raise the visibility of the online tool, Workers Owed Wages, which allows workers to search for unclaimed wages. In FY 2023, media, outreach, and stakeholder partnerships will focus on underrepresented

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communities of color, immigrant workers, and those who may not receive wages because they are in a foreign country. WHD will continue developing and expanding practices for finding workers and ensuring they receive their back wages.

WHD – Enforce labor standards to protect and enhance the welfare of the nation's workforce.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of outreach events of a target audience size associated with strategic initiatives	Target	--	--	--	--	60%	78%	78%	WHD increased the focus on outreach events reaching a larger audience as part of strategic initiatives.	Many types of outreach events and activities are tracked in the WHD case management system. Modernization efforts will improve outreach tracking by clarifying data needs and strengthening analysis of this area.	WHD will continue developing communication strategies and plans focused on reaching essential workers and underserved communities as part of strategic initiatives.
	Result	--	--	--	--	79%	--	--			
	Status	--	--	--	--	Y	--	--			
Percent of compliance actions associated to a strategic initiative	Target	--	--	--	65%	67%	70%	70%	By establishing positions dedicated to coordinating industry-level strategies and impact cases, WHD is increasing the proportion of cases with far-reaching impacts and sustained deterrent effects.	Compliance actions conducted in industries not covered by strategic initiatives may also reach vulnerable workers but are not captured by this measure.	WHD will continue to cultivate strategic partnerships with stakeholders serving vulnerable populations to increase agency awareness and receive more leads/referrals.
	Result	--	--	--	73%	72%	--	--			
	Status	--	--	--	Y	Y	--	--			
Percent of FLSA compliance actions (excluding conciliations) with severity score of 30 or more	Target	--	Base	20%	21%	25%	30%	30%	Following the pandemic, onsite full investigations increased which WHD believes increased the ratio of impact cases.	WHD is still learning how effectively the measure captures the full range of potential impact cases.	WHD will continue to analyze results associated with this measure to determine if changes to the tool may be needed.
	Result	--	20%	18%	26%	30%	--	--			
	Status	--	--	N	Y	Y	--	--			

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of back wages paid to workers	Target	--	--	--	79%	82%	85%	85%	Implemented additional actions including outreach to stakeholders, use of online tools, and hiring of technicians and back wage specialists to ensure workers receive the wages they are due.	Despite all efforts to locate workers, some workers are not reached for a variety of reasons, including not being in the country or current contact information is not available.	WHD will further strengthen outreach efforts to stakeholders that serve historically underserved and marginalized communities as another way of ensuring back wages are paid to workers.
	Result	--	--	--	86%	85%	--	--			
	Status	--	--	--	Y	Y	--	--			

Sources: Wage and Hour Investigative Support and Reporting Database

Notes: Results are not entered for the fiscal years when WHD did not have these measures.

OFCCP Performance Goal 2.2 – Promote equitable and diverse workplaces for America’s federal contractor employees.

OFCCP is charged with protecting America's workers by enforcing equal employment opportunity obligations of employers that do business with the federal government. To advance equal employment opportunity, OFCCP conducts enforcement activities, and provides outreach and education, and compliance assistance. The federal government’s historic investments in the nation’s infrastructure, manufacturing, and technology will increase the number of contractors and projects under OFCCP’s jurisdiction, and OFCCP will play a vital role in ensuring that these investments create good jobs that provide equal opportunity to all. The agency is strengthening compliance resources, tools, national training, and education and outreach activities.

Analysis and Future Plans

In FY 2023, OFCCP continued its commitment to tackling long-standing employment practices that create barriers to opportunity and perpetuate inequality in our social and economic systems for underrepresented workers, including workers of color, women, Lesbian, Gay, Bisexual, Transgender, and Queer (LGBTQ+) individuals, workers with disabilities, and veterans. By conducting compliance evaluations of contractors, and addressing complaints, OFCCP works to address systemic barriers to employment opportunity in hiring, compensation, and promotion. In FY 2023, OFCCP continued its collaboration with the Equal Employment Opportunity Commission to expand access to good jobs for workers from underrepresented communities by releasing summary documents of the four HIRE public roundtables held with stakeholders in FY 2022, highlighting promising practices for increasing job opportunities. In FY 2024, agency compliance evaluations will focus on low-wage industries and industries that received infrastructure funding in FY 2023. A Supply and Service scheduling list targeting these industries was released in September 2023 and will be worked on throughout FY 2024. In addition, OFCCP will continue to push for better jobs for women and minorities in the construction industry through Megaprojects that were designated in FY 2023.

OFCCP prioritizes the timely completion of compliance evaluations and has implemented several strategies to close cases more quickly, such as weekly reports, monthly enforcement meetings to discuss cases post desk audit, and the use of a specific approach to more efficiently identify and prioritize cases involving systemic barriers to equal opportunity. However, cases that involve discrimination are complex and involve multiple parties to reach a resolution. OFCCP found discrimination in 5 percent of the 898 supply and service compliance evaluations completed in FY 2023, an increase from 3 percent found in FY 2022. OFCCP began conducting full construction compliance evaluations in FY 2022 Q2 and continued to baseline this measure throughout FY 2023 as there were no closed non-enforcement discrimination cases.

OFCCP rigorously investigates complaints alleging employment discrimination at federal contractor workplaces. In FY 2023, the agency continued efforts to promote greater awareness among individual workers, worker organizations, and other stakeholders of OFCCP’s complaint process. In

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FY 2024, OFCCP will implement a pre-complaint process for complaints and will deploy the complaint module in its CMS. Enabling complaint data directly uploaded, tracked, and reported through CMS in real time will increase efficiency across the agency. OFCCP will continue to provide language access, plain language resources, and complaint forms with culturally competent translations. Additionally, OFCCP will address timeliness of complaint processing by combining the two existing measures (complaint perfection, investigation) into one measure for better tracking.

In FY 2023, OFCCP continued to build on its commitment to reinvigorate systemic enforcement in the construction industry. OFCCP conducted full compliance evaluations of federal construction contractors and federally assisted construction contractors and subcontractors, performing desk audits prior to going onsite, and increasing construction worker outreach and contractor compliance assistance. OFCCP also launched an updated version of the Mega Construction Project Program, to foster equal opportunity on large federal construction projects. The eligibility for Megaproject designation included a price tag of \$35 million or more, multi-year duration, and geographic locations closer to where DOL is leading or is involved with workforce development or other technical assistance programs to accelerate and build capacity. In FY 2024, OFCCP will expand the Megaproject Program by designating additional BIL and CHIPS Act-funded projects as Megaprojects. This program allows OFCCP to coordinate with trade organizations, training organizations, pre-apprenticeship and apprenticeship programs, and other stakeholders to increase opportunities for underserved communities on designated Megaprojects. This program is one of the agency's most impactful tools to expand access to good jobs and a core component of DOL's Good Jobs Initiative.

OFCCP – Promote equitable and diverse workplaces for America's federal contractor employees.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of Education and Outreach Events Focused on Workers' Rights	Target	--	--	--	Base	50%	50%	50%	Collaboration with DOL/other federal/state/local agencies and community organizations to utilize existing resources and educate workers and job seekers, particularly those in underserved communities.	--	OFCCP is working to clearly define event types. In addition, OFCCP will increase stakeholder engagement with underrepresented workers.
	Result	--	--	--	49%	58%	--	--			
	Status	--	--	--	--	Y	--	--			

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of Complaints Processed Within Standard Timeframe	Target	90%	90%	90%	88%	--	90%	90%	OFCCP formed specialized teams to focus on efficiently processing complaints, emphasizing the importance of great customer service when interacting with complainants.	Separating out complaint perfection and investigation into two measures did not yield sufficient investigation data points for analysis.	In FY 2024, OFCCP will revert to the FY 2022 measure name and definition (from "Perfected" in "15 Days" to "Processed"), which includes investigation timeliness, for more meaningful analysis.
	Result	87%	86%	83%	89%	--	--	--			
	Status	N	N	N	Y	--	--	--			
Median Days to Process Supply Service Compliance Evaluations with Discrimination Violations, Prior to Enforcement Referral	Target	900	730	730	950	1,200	1,200	1,200	Early resolution procedures contributed to several discrimination cases successfully closing in under 1,200 days.	--	OFCCP will collaborate with enforcement partners to assist litigating cases. Regional liaisons, technical experts, and data scientists will also offer assistance processing discrimination cases.
	Result	1,356	1,809	1,150	1,294	1,189	--	--			
	Status	I	N	I	N	Y	--	--			
Median Days to Process Construction Compliance Evaluations with Discrimination Violations, Prior to Enforcement Referral	Target	--	--	--	Base	Base	Base	TBD	Constructed a new scheduling methodology focused on industries receiving significant federal investments for infrastructure and economic recovery with a higher risk of noncompliance.	As zero non-enforcement construction cases closed with discrimination in FY 2022 or FY 2023, OFCCP does not have results for this measure and will continue to baseline in FY 2024.	Continue to implement construction enforcement program by conducting full compliance evaluations, including of contractors and subcontractors working on designated Megaprojects.
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: CMS and Complaint Tracking Log

Notes: As separately measuring timeliness of complaint investigations did not yield enough data points for meaningful analysis, OFCCP will be reinstating the Percent of Complaints Processed Within Standard Timeframe measure, which includes investigated complaints along with perfected complaints.

OLMS Performance Goal 2.2 – Promote union financial integrity, transparency, and democracy.

OLMS administers the Labor-Management Reporting and Disclosure Act of 1959, as amended, and related laws. These laws primarily establish safeguards for union democracy and union financial integrity and require public disclosure reporting by unions, union officers, union employees, employers, labor relations consultants, and surety companies. OLMS enforcement activities help protect unions and their members from criminal activities while advancing democratic governing principles. This mission strengthens unions and builds public confidence in them. A strong, well-respected labor movement lifts all workers and is a force for creating equity among diverse communities.

Analysis and Future Plans

Timely resolution of election complaints accelerates the restoration of a democratic voice and a democratically operated union. OLMS continues to fine-tune methods for further reducing its elapsed days (the number of days between a union member filing a complaint and its resolution), including the use of a team-based approach for handling election cases when resources permit and early engagement with the Office of the Solicitor (SOL) in cases that may result in litigation. In FY 2023, however, the average number of days to resolve union officer election complaints rose to 73.7 days, up from 68.8 days in FY 2018. One factor in this increase was the case volume. In FY 2023, OLMS completed 126 union democracy investigations which was 45 percent higher than projected. The complexity of a significant number of the 126 investigations also increased. Fifteen of the investigations involved national/international elections, where OLMS had planned for six, and 22 were intermediate bodies where OLMS had planned for two. OLMS will maintain the goal of 65 days in FY 2024 and FY 2025. OLMS will continue to work closely with SOL as well as increase Division of Enforcement staff to provide more initial guidance to field staff and reduce the case resolution time. Performance targets help OLMS strike a balance between the changes OLMS can make to its processes and outside factors that can affect the resolution of these types of cases, such as cooperation from the unions being investigated or a high volume of cases.

For more than ten years, OLMS has measured the “fallout rate”, the percentage of audits of labor unions that reveal evidence that the labor union has been the victim of fraud or embezzlement. OLMS’ focus on this measure has enabled staff targeting skills to peak and their improved techniques are now engrained throughout OLMS. As a result, OLMS is retiring its fallout goal and starting a new CAP goal. OLMS plans to increase the percentage of violations resolved through voluntary compliance during CAP. This will increase interactions with the unions, improve customer relations, and reduce administrative time from unnecessarily opening and tracking violations under other programs. OLMS has established an FY 2024 target of 73 percent of violations resolved through voluntary compliance.

OLMS seeks to increase disclosure of employer efforts to persuade workers on how to exercise their rights to organize and collectively bargain. OLMS also seeks to increase disclosure of expenditures by employers who surveil and gather information about employees in connection with a

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labor dispute, as well as expenditures to cause employees to persuade other employees about their labor rights. Disclosure of employer activities that constitute “unfair labor practices” is also a priority. In FY 2024 and FY 2025, OLMS will conduct targeted compliance assistance and investigations to better ensure compliance with these reporting obligations.

OLMS’ efforts to empower workers and their unions require that OLMS operations and the data it collects be accurately maintained and presented in its full context. OLMS continued to improve its web site, conduct outreach to stakeholders, engage with the public on matters linking the labor movement to social and economic advancement, and coordinate with other federal agencies. In addition, OLMS created a Labor-Management Partnership Coordinator position to promote the public’s understanding of the benefits to workers and employers of labor-management cooperation through collective bargaining.

OLMS – Promote union financial integrity, transparency, and democracy.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Average number of days to resolve union officer election complaints	Target	69.0	68.0	67.0	66.0	65.0	65.0	65.0	Increased coordination and communication with SOL.	The case volume and complexity of the cases increased in FY 2023.	OLMS will continue to work closely with SOL as well as add additional Division of Enforcement staff to provide more initial guidance to field staff to improve efficiency of these cases.
	Result	65.6	64.9	66.0	55.2	73.7	--	--			
	Status	Y	Y	Y	Y	N	--	--			
Percent of audit violations resolved voluntarily	Target	--	--	--	--	--	73%	TBD	This measure will be implemented in FY 2024.	--	--
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Office of Labor-Management Standards electronic Labor Organization Reporting System and internal data tracked by the OLMS Division of Enforcement.

Strategic Objective 2.3

Improve the security of retirement, health, and other workplace-related benefits for America's workers and their families.

Agency Driving this Objective (select the hyperlink to learn more about this agency)

[Employee Benefits Security Administration](#) (EBSA)

Workers must be confident in their retirement and health benefit plans. EBSA's mission is to ensure the security of the retirement, health, and other workplace related benefits of America's workers and their families. The agency's enforcement program uses a wide variety of approaches to accomplish its mission, such as voluntary compliance programs, civil and criminal litigation, regulations and guidance, and research-based analysis. The economic research program informs EBSA's regulatory and enforcement work and provides important information about benefit plans to the public and policymakers.

EBSA is responsible for protecting more than 153 million of America's workers, retirees, and their families, who are covered by approximately 765,000 private retirement plans, 2.8 million health plans, and 619,000 welfare benefit plans. Together, these plans hold estimated assets of \$12.8 trillion.

FY 2023 Strategic Review Summary of Progress (Adequate Progress)

Findings for this objective were grouped into two themes: Strategic Enforcement and Advancing Equity and Enforcement Capacity. EBSA saw progress in new major case metrics as it shifted emphasis to priority investigations. EBSA identified challenges in meeting performance targets and equity efforts.

Strategic Enforcement and Advancing Equity

EBSA: Timely Investigations

EBSA continued to carefully monitor civil and criminal case inventories and report on any problems with meeting its timeliness measures. EBSA's goals were to encourage timely investigations within current constraints and ensure that valuable cases were not inappropriately closed early to avoid missing timeliness targets. In FY 2023, the agency's timeliness measure results were close to or above target and similar to FY 2022. In both years, EBSA fell shy of the 30-month target of 86 percent with 80 percent of cases being referred for litigation or closed within 30 months of case opening

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(excluding all cases designated as major cases). For the 18-month target of 76 percent, EBSA met the goal in FY 2022 with a result of 76 percent and exceeded the goal in FY 2023, with 78 percent of cases being referred or closed within 18 months of case opening (excluding all cases designated as major cases). Similarly, for the 18-month criminal goal of 87 percent, EBSA exceeded it at 98 percent in FY 2022 and 99 percent in 2023.

EBSA: Targeted Investigations

EBSA's Case Development Report provides investigators with summaries of current targeting projects as well as tools and techniques to identify cases for investigation. In FY 2023, EBSA obtained 352 significant non-monetary corrections as compared to 402 non-monetary corrections in FY 2022.

In recent years, EBSA has expanded its use of internal and external data sources to more effectively allocate resources. EBSA will also continue to focus on statistical sampling and data analysis, development and improvement of data analysis tools, and associated training programs.

EBSA: SECURE 2.0

EBSA provided technical assistance to Congress throughout the development process of the SECURE 2.0 Act of 2022, which requires EBSA to establish:

- an online searchable database for a retirement savings “lost and found,”
- exemptions for certain automatic portability transactions,
- emergency savings accounts linked to individual account plans, and
- performance benchmarks for asset allocation funds.

As provided for in SECURE 2.0, EBSA will continue to work with the Department of the Treasury, the Pension Benefit Guaranty Corporation, and other interested parties to implement components of the law, which covers a wide range of retirement-focused issues during 2024 calendar year. The agency developed a list of regulatory priorities and a strategy for the 2023 calendar year.

EBSA: Outreach and Customer Service

Providing quality customer service is a primary goal of EBSA's participant assistance program. Benefits Advisors closed 197,173 inquiries and recovered \$444.1 million on behalf of 41,250 participants through informal dispute resolution and by connecting people with their pension and health benefits.

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EBSA measures the quality of these interactions through various tools, including a customer satisfaction survey. Overall customer satisfaction scores in FY 2023 were 78 percent, compared to 75 percent in FY 2022. The agency uses an independent polling organization to provide an objective check on the quality of EBSA's interactions with the public.

EBSA continued to develop the foundation for a robust call monitoring program that directly evaluates the quality and accuracy of the participant assistance program. EBSA finalized an evaluation instrument to review incoming calls of Benefits Advisors' interactions with the inquirers for technical accuracy, effective and plain language communication, accuracy of legal research, and appropriate documentation of the conversation in the EBSA Management System database. In FY 2023, the program was fully implemented, and 17,532 calls were reviewed.

In FY 2023, EBSA conducted 2,152 outreach events, reaching 55,854 individuals. In addition to those efforts, EBSA reached hundreds of thousands of people through radio, TV, and other interviews. At one of the largest regional media events, a Benefits Advisor (BA) appeared as a guest on a television program called "OC Health & Education," which is sponsored by the non-profit Orange County Autism Foundation. The BA was interviewed in Vietnamese and English to discuss EBSA's mission, the Employee Retirement Income Security Act of 1974 (ERISA), and laws. The broadcast, which focused on issues of community interest such as healthcare concerns and workplace benefits, was aired to an approximate audience of 250,000.

In support of President Biden's Executive Order 13985, EBSA allocated significant resources to reaching underserved populations. A cross regional group of Benefits Advisors worked to develop additional best outreach practices, establish new contacts to better reach underserved populations, and plan and conduct outreach events to meet EBSA's new outreach targets to underserved populations. EBSA reached 33,036 individuals at 907 events targeted toward underserved communities.

In FY 2023, EBSA also continued to assist employers (particularly small employers), plan sponsors, and their service providers in understanding and complying with their obligations under ERISA and related regulations and procedures. In FY 2023, 10,399 individuals attended the 356 compliance events EBSA conducted in FY 2023 (against a target of 272). This includes:

- 193 health-related events (target 118),
- 96 mental health-related events (target 40),
- 201 underserved events (target 75), and
- 7 national webcasts partnering with the underserved (target 5).

Strategic Goal 2

Additionally, EBSA conducted hundreds of participant assistance activities to educate affected workers about options to protect their retirement and health benefits when facing job loss. In FY 2023, EBSA's total audience at participant assistance events was 37,054 individuals, of which 19,154 were attendees at a Dislocated Worker event. EBSA conducted:

- 751 Rapid Response sessions (target 290),
- 316 Retirement Savings and Health sessions (target 115),
- 143 Retirement Savings and Health sessions for underserved (target 70), and
- 103 Retirement Savings and Health events in non-English (target 23).

EBSA: Combatting Fraudulent Claims

EBSA increasingly devoted resources to insolvent or fraudulent multiple employer welfare arrangements (MEWAs). Troubled MEWAs saddle employees with unpaid claims and health benefits. EBSA is committed to monitoring MEWA solvency through internal tracking and working with state partners to target problematic MEWAs early.

Enforcement Capacity

EBSA: Targeted Enforcement

In FY 2023, EBSA reviewed the work of Certified Public Accountant firms that audited \$203.5 billion in plan assets impacting 3.92 million participants.

EBSA: Equity in Underserved Communities

EBSA continues its activities to establish a methodology to measure its equity efforts and its impacts on outcomes for the communities they serve.

EBSA Performance Goal 2.3 – Improve the security of retirement, health, and other workplace-related benefits for America’s workers and their families.

To accomplish its mission, EBSA uses a comprehensive, integrated approach that includes programs for enforcement, compliance assistance, interpretive guidance, regulations, and research. EBSA’s enforcement program detects and corrects violations, which results in monetary recoveries for employee benefit plans, participants, and beneficiaries or other corrective remedies, including significant reforms for large plans or common service providers. In FY 2023, the agency recovered over \$1.4 billion in direct payment to plans, participants, and beneficiaries.

Several of EBSA’s existing national enforcement projects directly influence underserved communities. These projects include Mental Health Parity and Addiction Equity Act (MHPAEA) enforcement and the Protecting Benefits Distribution project, which covers the Terminated Vested Participant Program (TVPP), abandoned plans, and financially distressed sponsors. These programs have a built-in focus on underserved individuals and communities, including vulnerable elderly populations and individuals struggling with mental health and substance use issues. For example, under the TVPP project in FY 2023, EBSA targeted defined benefit plans in industries with high percentages of foreign-born workers to determine if they have disproportionate incidents of missing participants.

While EBSA has improved outreach to underserved communities through multiple efforts, there is an opportunity to improve data to capture the impact of enforcement on those communities and ensure adequate targeting.

Analysis and Future Plans

In FY 2023, EBSA concentrated a significant portion of its enforcement resources on the Major Case Enforcement Priority, which focuses on cases likely to have the greatest impact. EBSA used metrics to evaluate the efficiency and effectiveness of investigative time and based its enforcement measure targets on careful consideration of historical data, due to the volatility of Major Case results from year to year.

Just over half of EBSA’s enforcement recoveries came from a single initiative, the TVPP, though recoveries declined overall. TVPP cases obtained unusually large recoveries for participants and beneficiaries while expending minimal investigative resources. However, this program’s outsized results skew the enforcement program’s totals. These recoveries will continue to decline over the next few years as plan fiduciaries and sponsors improve their recordkeeping and notification practices with respect to “missing” terminated vested participants and as EBSA increasingly directs its limited enforcement resources to other violation categories. Even with this change in emphasis, however, the agency continues to recover tens of thousands of dollars per investigator per day on the Major Case Program, an extraordinary return on taxpayer investment in ERISA enforcement.

Strategic Goal 2

Considering these factors, in FY 2023, EBSA adjusted its monetary recovery performance measures to reflect the decision to deemphasize – but not eliminate – TVPP investigations and to shift emphasis toward health investigations and, in particular, MHPAEA and other matters related to the Consolidated Appropriations Act, 2021 (CAA). EBSA revised metrics to break its monetary results into three areas:

- Major Case – TVPP
- Major Case – Health
- Major Case – Pension and Non-Health Welfare

The revised metrics focus separately on results based on the amount of staff days devoted to each area so that, regardless of policy and legislative choices beyond EBSA’s control, it will be able to focus on efficiencies and results within each area.

In FY 2023, EBSA used the new enforcement tools added in ERISA Section 712(a)(8) by the CAA and requested comparative analyses for 17 unique non-quantitative treatment limitations (NQTLS). These requests were in addition to the continuing investigations on over 200 previously requested comparative analyses from prior fiscal years. EBSA currently has 96 open NQTL investigations.

As a direct result of EBSA’s increased NQTL enforcement work, plans and issuers have made corrections that impact over 39,000 employee benefit plans and over 4 million participants. EBSA’s NQTL enforcement program has paid special attention to NQTL issues with wide impact, such as inadequate networks that are barriers to finding care, and illegal exclusions of key mental health or substance use disorder (MH/SUD) treatments, such as medication-assisted treatment for opioid use disorder and applied behavioral analysis for autism spectrum disorder. EBSA often works directly with service providers to remove an impermissible NQTL and expand MH/SUD coverage, affecting hundreds of plans at once.

EBSA has recognized the need to place greater resources into ensuring health plans comply with MHPAEA, the No Surprises Act, the Public Law 116-260 transparency provisions, and other ERISA group health plan provisions. With supplemental funding provided under the CAA (which sunsets in FY 2024), EBSA will continue to employ resources to audit plans and issuers for NQTLS that fail to comply with MHPAEA. Given the high level of non-compliance identified during initial enforcement efforts, EBSA anticipates additional funding will be required to continue its MHPAEA enforcement presence and investigative efforts.

Strategic Goal 2

EBSA – Improve the security of retirement, health, and other workplace-related benefits for America’s workers and their families.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Major Case Monetary Recoveries per TVPP Major Case Staff Day	Target	--	--	--	--	\$193,406	\$183,000	TBD	TVPP cases have been a significant source of recoveries from entities that fail to conduct necessary searches and maintain sufficient participant census data.	EBSA’s decision to deemphasize TVPP cases and move resources to other areas has resulted in fewer and smaller recoveries.	In FY 2024, EBSA set targets based on historical data. However, the major case measures only tell part of the story. Often case results, while significant to participants, cannot be measured by monetary recoveries alone. These results are tracked as significant non-monetary results in both pension and health cases.
	Result	--	--	--	--	\$99,155	--	--			
	Status	--	--	--	--	N	--	--			
Major Cases - Pension and Non-Health Welfare Monetary Recoveries per Major Cases Staff Day	Target	--	--	--	--	\$40,947	\$39,500	TBD	Major Cases are a priority because they enable EBSA to use its limited resources in a way that has the greatest possible positive impact on large numbers of plans and participants.	As the agency increases its focus on non-TVPP cases, it expects to see a decline because of the reduced impact of the relatively large recoveries obtained in TVPP cases.	In FY 2024, EBSA set targets based on historical data. However, the major case measures only tell part of the story. Often case results, while significant to participants, cannot be measured by monetary recoveries alone. These results are tracked as significant non-monetary results in both pension and health cases.
	Result	--	--	--	--	\$46,435	--	--			
	Status	--	--	--	--	Y	--	--			

Strategic Goal 2

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Major Case - Health Monetary Recoveries per Major Case Staff Day	Target	--	--	--	--	\$9,921	\$9,700	TBD	Major Cases are a priority because they enable EBSA to use its limited resources in a way that has the greatest possible positive impact on large numbers of plans and participants.	As the agency increases its focus on non-TVPP cases, it expects to see a decline because of the reduced impact of the relatively large recoveries obtained in TVPP cases.	In FY 2024, EBSA set targets based on historical data. However, the major case measures only tell part of the story. Often case results, while significant to participants, cannot be measured by monetary recoveries alone. These results are tracked as significant non-monetary results in both pension and health cases.
	Result	--	--	--	--	\$7,798	--	--			
	Status	--	--	--	--	N	--	--			
Percent of Delinquent Employee Contribution, Abandoned Plan, Bonding, Health-Part 7 Violation, and Other Reporting and Disclosure Non-Fiduciary Breach Cases Closed or Referred for Litigation in the Fiscal Year within 18 Months of Case Opening	Target	70%	76%	76%	76%	76%	76%	76%	In FY 2023, EBSA met this timeliness measure.	EBSA continues to carefully monitor its timeliness measures to ensure that cases are not closed before issues are appropriately explored and resolved.	EBSA will continue to implement additional actions to improve the efficiency and effectiveness of enforcement actions.
	Result	89%	84%	81%	76%	78%	--	--			
	Status	Y	Y	Y	Y	Y	--	--			

Sources: Enforcement Management System

Strategic Objective 2.4

Strengthen labor rights, improve working conditions, promote racial and gender equity, and empower workers around the world.

Agency Driving this Objective (select the hyperlink to learn more about each agency)

[Bureau of International Labor Affairs](#) (ILAB)

ILAB safeguards dignity at work, both at home and abroad – by strengthening global labor standards; enforcing labor commitments among trading partners; promoting racial and gender equity; and combating international child labor, forced labor, and human trafficking. ILAB accomplishes this goal through trade enforcement, policy engagement, technical assistance, and research and reporting. ILAB’s approach is validated by independent research from the United States International Trade Commission (2016) and the Inter-American Development Bank (2014) suggesting that including labor obligations in trade agreements leads to better labor laws and enforcement efforts in trade partner countries. ILAB’s efforts position the United States as a leader on international labor rights by demonstrating the U.S. commitment to work with governments, workers, unions, employers and business organizations, civil society organizations, and other actors to achieve its mission.

Taken together, these activities support U.S. Government efforts to advance equity on all fronts, particularly in countries where vulnerable and marginalized populations are most susceptible to exploitative labor conditions. By addressing exploitative labor conditions and advancing equity in key countries, ILAB supports efforts to combat poverty and structural racism in underserved and marginalized communities.

FY 2023 Strategic Review Summary of Progress (Adequate Progress)

Findings for this objective are grouped into three themes: Equity; Implementing the President’s Trade Agenda; and Policy Documents and Published Reports. Evidence of progress includes the United States – Mexico – Canada Agreement (USMCA) implementation, publication of international policy documents reflecting U.S. labor interests and economic research products and progress combatting child labor and forced labor. Challenges were identified in the USMCA funding. ILAB’s supplemental appropriation for technical assistance will expire on December 31, 2023.

Equity

ILAB has prioritized small businesses for contracts. For the beneficiaries of cooperative agreements and cost increases, ILAB has targeted the most vulnerable populations including Indigenous populations, domestic workers, migrant workers, and populations who historically have been subjected to violence, abuse, and discrimination. In FY 2022, ILAB measured its focus on equity by tracking the percent of newly awarded cooperative agreements, cost increases⁵, and professional service contracts that incorporate an equity lens. In FY 2023, the result for this measure was 69 percent, exceeding the target by one percentage point.

Implementing the President's Trade Agenda

ILAB: Implementing the Labor Provisions of the USMCA in Mexico

In cooperation with the United States Trade Representative, ILAB continued to have success implementing the labor provisions of the USMCA in FY 2023. DOL received 564 hotline tips, of which 36 resulted in investigations. Additionally, eight Rapid Response Labor Mechanism petitions resulted in remedial action, and one petition went to a panel for decision. ILAB will fully obligate USMCA technical assistance funding by December 31, 2023, when the funding expires. This will impact ILAB's technical assistance levels in support of implementation of USMCA labor provisions and Mexico's labor law reform.

ILAB: Monitoring and Enforcing Labor Obligations in Other Free Trade Agreements and Preference Programs and Combatting International Child Labor and Forced Labor

In FY 2023, ILAB's result of 87 percent exceeded its target of 82 percent for the percent of high-engagement trading partner countries or multilateral institutions that implement actions to improve protection of labor rights, including through law or enforcement. Of the 33 high-engagement trade partner countries that took action in FY 2023, 26 countries supported the elimination of child labor and forced labor, 22 countries supported freedom of association and collective bargaining, 25 countries supported the improvement of acceptable conditions of work, and 18 countries supported the elimination of discrimination in employment.

In FY 2023, ILAB exceeded its technical assistance target by supporting and overseeing 83 active technical assistance interventions in 52 countries and conducted oversight for 100 percent of these projects. In FY 2023, ILAB exceeded its target for the number of trade partner countries in which labor rights, including child labor and forced labor, are systematically monitored and analyzed with a result of 154 countries against a target of 147.

⁵ Cost increases covers both modifications to service contracts and grant extensions where funds have been added. It does not cover no cost grant extensions.

Policy Documents and Published Reports

For FY 2023, ILAB exceeded the number of economic research products (target 25; result 34). The Trade and Development Act Report included more than 2,000 suggested actions for countries to take to eliminate child labor, of which almost 1,400 focus on the need to strengthen laws and enforcement. ILAB also launched a new interactive web format for Comply Chain to equip businesses of all sizes to tackle child labor and forced labor in their supply chains. It provides a practical, step-by-step guide on critical elements of an integrated worker-driven social compliance system and new visual guides on global legal compliance, responsible recruitment, auditing for child labor, and other business and human rights challenges. In addition, ILAB enhanced its Sweat & Toil smartphone app to include data visualizations that allow users to identify goods produced by child labor or forced labor by region or sector, explore regional trends, labor inspectorate capacity, and display the sectoral distribution of child labor in countries where this information is available. ILAB also updated its Better Trade Tool to include enhanced search capabilities and updated U.S. import data from 2022, and a new global data dashboard that highlights the risk of child labor and forced labor in global supply chains. Furthermore, ILAB contracted with ICF and Penn State to identify the most effective methods for promoting worker voice through policy interventions and technical assistance programs under the Multilateral Partnership for Organizing, Worker Empowerment, and Rights (M-POWER) initiative.

ILAB Performance Goal 2.4 – Strengthen labor rights, improve working conditions, promote racial and gender equity, and empower workers around the world.

ILAB safeguards dignity at work, both at home and abroad – by strengthening global labor standards, enforcing labor commitments among trading partners, promoting racial and gender equity, and combating international child labor, forced labor, and human trafficking. When other countries do not comply with internationally recognized workers’ rights in violation of their trade-related labor commitments, they gain an unfair advantage that harms American workers and businesses. ILAB uses the leverage, resources, and voice of the U.S. government to empower workers and strengthen labor rights globally and positions the United States as a leader on international labor rights.

Analysis and Future Plans

In FY 2023, ILAB implemented the President’s Trade Agenda by monitoring and enforcing the labor provisions of the USMCA Free Trade Agreement in Mexico and labor obligations in other free trade agreements and preference programs. ILAB expanded its efforts to combat the use of child labor and forced labor in global supply chains by implementing targeted studies to identify downstream goods produced with child labor and forced labor in key mining and agriculture supply chains and launching tracing pilots in cotton and garment supply chains. ILAB leveraged labor attachés in key trade partner countries and other strategic locations to expand its monitoring and enforcement of labor commitments and promote workers’ rights. ILAB worked with interagency partners to implement the Root Causes Strategy, Collaborative Migration Management Strategy, and the Central America Forward Initiative in Northern Central America. ILAB continued efforts to strengthen worker voice around the world, and promoted worker protections, including occupational safety and health and social protections, and expanded the U.S. Government’s presence at international and intergovernmental organizations. Finally, ILAB integrated equity, inclusion, and worker voice into policies, programming, research, technical assistance, and contracting. In FY 2024 and FY 2025, ILAB will take further steps to integrate worker voice and equity and inclusion concerns into its technical assistance program design and implementation.

In FY 2023, ILAB continued to promote worker voice with international partners, provide targeted technical assistance in countries where governments and other actors have demonstrated the political will to improve labor rights, and elevate labor diplomacy. ILAB played a leading role in regional and international organizations to promote equity and inclusion in employment, as well as promote core labor standards, including occupational safety and health. ILAB continued strengthening worker voice through leadership of the M-POWER and working to establish an independent secretariat for M-POWER, ensuring its sustainability and international governance structure. ILAB also developed new methods and tools to trace child labor and forced labor in global supply chains and build capacity of interagency partners to enhance the U.S. Government’s ability to prevent the importation of goods made with forced labor. In FY 2024 and FY 2025, ILAB will continue to develop internal research capacity in the core issue of worker protection by exploring how trade impacts employment outcomes of historically marginalized groups, gender and racial equity, and labor market conditions in other countries.

Strategic Goal 2

ILAB – Strengthen labor rights, improve working conditions, promote racial and gender equity, and empower workers around the world.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of trade partner countries in which labor rights, including child labor and forced labor, are systematically monitored and analyzed.	Target	154	154	154	154	147	154	154	ILAB conducted site visits to support research and monitoring activities; implemented in-country research studies; and performed desk reviews and remote interviews to monitor trade partner countries.	ILAB was unable to conduct all programmed site visits and Posts were not able to support all trips due to political issues or competing priorities in some countries.	ILAB will continue its ongoing good practices and continue to prioritize site visits based on business needs and administration priorities.
	Result	155	154	154	155	154	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Percent of high engagement trading partner countries or multilateral institutions that implement actions to improve protection of labor rights, including through law or enforcement.	Target	--	--	--	80%	82%	84%	85%	ILAB conducted reporting, technical assistance, trade engagement, and labor diplomacy to improve protection of labor rights. ILAB's reach expanded with increased ability to travel abroad.	Limited resources and capacity posed challenges to ILAB's ability to influence trade partner countries to implement actions to improve protection of labor rights.	ILAB will use all available channels and means of leverage to maximize engagements with trade partner countries and ensure DOL's priorities are pursued effectively.
	Result	--	74%	87%	84%	87%	--	--			
	Status	--	--	--	Y	Y	--	--			

Sources: Staff monitoring, enforcement, and engagement records, labor attaché records, grantee Technical Progress Reports, project monitoring and internal records, embassy reporting, administrative records and ILAB's annual Trade and Development Act Report.

Strategic Goal 3: Improve Administration of and Strengthen Worker Safety Net Programs

Strategic Objective 3.1

Ensure timely and accurate income support when work is unavailable by strengthening benefits programs and program administration.

Partner Agencies Driving this Objective (select the hyperlink to learn more about each agency)

[Office of Workers' Compensation Programs](#) (OWCP)

[Employment and Training Administration, Office of Unemployment Insurance](#) (ETA/OUI)

America's economy must have a strong safety net to support unemployed, injured, and ill workers. ETA's Unemployment Insurance programs will focus on supporting unemployed workers and employers. OWCP programs will focus on workers who were injured or became ill on the job. These programs will leverage evidence-based strategies and strengthen the oversight of new and/or existing programs to accelerate delivery of benefits, reemployment, and return-to-work outcomes for workers.

The Department will also address inequity to underserved communities by identifying and mitigating delays and obstacles that impede claimants' abilities to receive assistance. The Department also plans to encourage and provide technical assistance support for state investment in modular solutions to improve information technology systems over the next several years.

FY 2023 Strategic Review Summary of Progress (Area for Improvement)

Findings for this objective were grouped into two themes: Customer Experience and Equity; and Performance. Evidence of progress included OWCP's efforts around program performance, customer service, and equity. Challenges were identified in managing high Unemployment Insurance claims workload in conjunction with the implementation of the *Coronavirus Aid, Relief, and Economic Security (CARES) Act* programs.

Customer Experience and Equity

ETA: Managing High Claims Workload and Making Timely, Equitable, and Accurate Benefit Payments for the UI Regular and CARES Act Programs

The residual impacts of record high levels of UI claims during the COVID-19 pandemic, in conjunction with the implementation and operation of the temporary CARES Act UI programs resulted in states' UI agencies being unable to administer the programs to meet the acceptable levels of performance regarding customer service. This resulted in greater incidences of improper payments and fraud; challenges in ensuring equitable access; and challenges in ensuring timely delivery of UI benefits to eligible claimants.

To address these shortcomings, the American Rescue Plan Act (ARPA) allocated funding⁶ to the Department to “detect and prevent fraud, promote equitable access, and ensure the timely payment of benefits with respect to unemployment compensation (UC) programs.” The Department is actively supporting projects to achieve these goals. Additionally, to help states respond to the impacts of the pandemic, ETA's Office of Unemployment Insurance has and continues to issue comprehensive operating guidance, to deliver technical assistance to states individually and through webinars, toolkits, and consultative engagements, and to provide additional funding opportunities and resources to states.

One specific example involves the Department's deployment of multidisciplinary technical assistance teams (known as “Tiger Teams”) to 36 states to identify immediate needs and issues. Teams focused on improvements in customer experiences and improved operational processes, while also making recommendations and proposing solutions to address fraud and support more equitable access for legitimate claimants. The 36 states are leveraging ARPA grant funds to implement improvement projects based on many of the Tiger Team recommendations. Another example of action taken included the Department leveraging the insights gained from these state engagements to produce two equity-focused technical assistance resources. The first is the Equitable Access Toolkit. This toolkit provides states with actionable solutions for common and emerging issues related to equitable access to UC programs and to develop initiatives and refine strategies towards the goal of promoting equitable access. The second equity-focused technical assistance tool the Department produced, in coordination with the National Association of State Workforce Agencies, is a self-paced, online Fundamentals of Equitable Access in Unemployment Insurance training. This training, intended primarily for state UI staff, describes what equitable access is within UC programs and discusses the role of equity in the integrity of all UC programs. Further, it provides a basic walkthrough of the UI claimant journey to help the learner identify potential barriers and provide states' staff with strategies to achieve equitable access. The training is intended to be used as a resource for learners to better understand and identify equitable access barriers as well as promote equitable access to UC programs via actionable solutions to common barriers.

⁶ ARPA initially provided the Department with \$2.0 billion to support improvements to the UI system. However, the Fiscal Responsibility Act, enacted in June 2023, rescinded \$1.0 billion of these funds. ETA issued UIPL No. 11-23 announcing the Department's plans for leveraging the remaining funds to support UI system improvements.

ETA: Connections Between Unemployment and Reemployment Systems

The Reemployment Services and Eligibility Assessments (RESEA) program produced a growing number of evaluation-related technical assistance events, resources, and products to help states build capacity to meet the evidence requirements in the program's authorizing legislation. Technical assistance resources included peer sharing events and a designated 'evidence building week' for states to hear the latest from RESEA researchers as well as discuss implementation experiences and lessons learned from launching RESEA evaluations. Additional resources were developed to help states to conduct evaluations of RESEA program components or strategies, understand the common pitfalls of designing casual evaluations, encourage small states to undertake evaluations, utilize sample evaluation requests for proposals, and more⁷. Almost all states reported having an evaluation underway as of spring/summer 2023, with a few anticipated to finish their studies over the next year. With all the evidence building underway, it is anticipated that the evidence base will approximately double over the next five years.

In FY 2023, ETA awarded \$329,062,499 in RESEA funding to 52 RESEA states and territories supporting evidence-based strategies and interventions to help UI claimants return to work. The total will reach approximately \$370 million with the inclusion of soon-to-be-awarded outcome payments.

OWCP: High Impact Service Provider (HISP)

In FY 2023, the Energy program continued its HISP Customer Experience (CX) efforts by submitting quarterly reports, conducting an annual assessment, and developing an Action Plan and Customer Journey Map. Feedback collection efforts included a series of surveys. During FY 2023, the program developed five new external surveys (three paper surveys, one event survey, and one web survey), revised the Energy Document Portal (EDP) survey, and translated the existing Resource Center survey into Spanish. The Energy program's feedback collection efforts resulted in approximately 3,300 responses from stakeholders. The program also conducted one-on-one customer phone interviews and a series of customer focus groups. Additionally, the program developed a new event outreach feedback collection and website survey that was implemented on the Division of Energy Employee Occupational Illness Compensation Spanish Language hub.

Three of the paper surveys included an optional equity assessment that was used to gather feedback to address potential program barriers to services within underserved communities. These equity assessments were completed by approximately 1,665 stakeholders. Scores on the equity assessments were generally positive, suggesting that customers felt comfortable talking with the Energy program about the issues they face and felt that they were treated fairly by program employees. A small percentage of respondents identified that they experienced difficulties or challenges with the program because of their ability or disability status, racial or ethnic identity, age, sex/gender identity, sexual orientation, veteran status, religion, social class, geographic location (remote/ rural), or other. The most common responses were from those who indicated that they experienced difficulties because of their age or disability status followed by geographic location.

⁷ RESEA Resources are available on Workforce GPS at https://rc.workforcegps.org/resources/2019/07/30/17/32/RESEA_Evaluation_Evidence_Resources.

OWCP: Equity

In FY 2023, the Energy program improved claimant and medical provider experience in the following ways: Energy's Outreach and Customer Experience Unit analyzed all survey results and provided recommendations for programmatic improvement to OWCP leadership throughout the fiscal year. The program successfully implemented the following recommendations: the development of several claimant-friendly infographics; the revision of the claimant acknowledgement packet; website updates; the launch of a Spanish language hub on the program's public facing website; the development of additional journey maps; an enhancement in EDP that allowed for larger file uploads; several webinars focused on topics requested by survey respondents; and changes to event formats to better serve Energy Program claimants.

The Energy program also conducted at least 20 percent of its outreach efforts towards identified underserved communities, including many rural communities. The program held eight in-person outreach events that were within or near underserved communities, with three of these eight locations (Pahrump, Nevada; Shiprock, New Mexico; and Kayenta, Arizona) also being rural communities. These events were attended by a total of 1,157 stakeholders.

In FY 2022, the Federal Employees' Compensation Act (FECA) and Longshore programs updated the OWCP Employees' Compensation Operations and Management Portal (ECOMP) to provide non-binary gender options for FECA program filing forms, to collect voluntary demographic information from claimants, and to allow claimants to complete a filing barrier customer service survey. In FY 2023, the programs took action based on the survey results and increased outreach to large federal employee unions and local longshore-related unions, as well as updating the FECA and Longshore websites to more prominently display the link to ECOMP case access and claim filing.

The Energy and Black Lung programs coordinated an interagency, cross governmental working group co-lead by the Energy program and DOL's MSHA, that served Native Nations and Tribes. Additional partners include the Department of Justice; OWCP's Black Lung program; National Institute for Occupational Safety and Health; Department of Health and Human Services' Health Resources and Services Administration; Indian Health Services; Veterans Administration; Department of Defense; Equal Employment Opportunity Commission; Environmental Protection Agency; and more. The working group shares best practices, and plans and coordinates outreach activities supporting Native American, Indigenous, tribal communities and/or those residing on Native American reservations with the goal of increasing transparency, translation, and readability of federal information.

The Black Lung program conducted census tract research to identify potentially underserved communities of coal miners and identified communities in Wyoming, Alabama, Indiana, and Illinois and held outreach and engagement events in these states. It conducted initial CX surveys to determine key concerns claimants may have with the quality of program services, identify pain points and barriers, positive points, and promote the use of the Claimant Online Access Link Portal. The program also began the process of updating its claim forms to improve overall usability by simplifying the formatting, language, and questions. The Black Lung and Energy programs also began developing a new form for the voluntary collection of demographic data to better understand the stakeholder community.

Performance

ETA: Unprecedented Increase in Claims Volume Negatively Impacted Performance

Since the pandemic began in the U.S. in early 2020, UI claims rose exponentially, totaling 89.4 million initial claims from mid-March 2020 through the end of September 2021. As a result, states experienced significant backlogs in adjudications and appeals, and reductions in core program performance. Increasing the first payment timeliness rate and reducing the improper payment rate are focuses of a DOL Agency Priority Goal. In FY 2023, states made major progress in improving program performance. First payment timeliness significantly improved from 61.2 percent in FY 2022 to 69.1 percent in FY 2023, exceeding the target of 66.4 percent. However, the FY 2023 result is still below the established Acceptable Level of Performance (ALP) of 87 percent. The pre-pandemic peak for this measure was 85.8 percent in FY 2019. The lower authority appeals promptness fell sharply from the pre-pandemic peak of 90.1 percent in FY 2019 to 33.4 percent in FY 2023 (although it is an increase from the FY 2022 result of 22.1 percent and is exceeded the FY 2023 target).

The UI improper payment rate improved to 16.47 percent in the twelve months ending June 30, 2023, exceeding the target of 17.50 percent. For 2023, the Department reported a total of over \$4.6 billion in estimated improper payments (which includes unknown payments) for the regular UI, extended benefits, Pandemic Emergency Unemployment Compensation, and Federal Pandemic Unemployment Compensation programs on [paymentaccuracy.gov](https://www.paymentaccuracy.gov). The FY 2023 result for detection of recoverable overpayments was 87.81 percent, significantly exceeding the FY 2023 target.

OWCP: Improper Payments

In FY 2023, the FECA program met its improper payment target rate of 3.25 percent. If OWCP is unable to obtain timely and accurate benefit amounts from the Social Security Administration (SSA) (with and without federal earnings), then the Department will not be able to accurately and timely offset benefit payments for FECA claimants. In FY 2023, the FECA program published [Bulletin 23-01](#) which utilizes a matching report from Treasury's Do Not Pay program based on social security number for claimants in receipt of SSA benefits and uses this report to identify cases in possible receipt of dual benefits, and then automates the requests for calculations (without Claims Examiner involvement).

OWCP: Performance

The FECA program continued to assist agencies to improve the federal government's performance in timely filing worker's compensation and wage-loss claims, as well as the return to work of injured employees, to record high levels.

The Energy program conducted more robust quality and accuracy reviews of the claim adjudication process by enhancing supervisory sampling and quality assurance reviews, both of which were tracked in the Accountability Review Tracking System (ARTS).

The Black Lung program's focus on measures within the control of claims staff incentivized efficient claims processing. OWCP enhanced performance by utilizing a data visualization dashboard for real time performance monitoring.

Strategic Goal 3

The Longshore program rolled out several outreach initiatives to inform stakeholders of the importance of timely filing and the consequences for failure to timely file the reports of injury. In FY 2023, OWCP published a Notice of Proposed Rulemaking that focuses on the process used to assess civil penalties to entities that fail to report worker injuries accurately and timely. The changes will help clarify the process, provide individualized failure notices, and allow additional opportunities to contest penalties. The proposal also enhances procedures for contesting OWCP's penalty determinations by protecting the rights of employers and insurance carriers to challenge agency actions before final penalties are set, ensuring transparency and fairness in the enforcement process. In addition, the changes will establish clear guidelines for penalty assessments to improve OWCP's ability to enforce penalties that can withstand legal challenges.

OWCP Performance Goal 3.1 – Increase the efficiency and accuracy with which OWCP provides workers’ compensation benefits for certain qualified workers who are injured or become ill on the job and improve return-to-work outcomes for injured workers.

The role of OWCP is to provide workers’ compensation benefits for workers injured or ill on the job. OWCP implements four statutory federal workers’ compensation programs that provide monetary, medical, and return-to-work benefits for work-related injuries and illnesses including, but not limited to federal employees, coal mine workers, nuclear weapons workers, longshore and harbor workers, contractors serving overseas, and certain other designated employee groups. The agency adjudicates claims, administers the benefit funds authorized for these purposes, and provides oversight of claims resolutions by responsible parties.

Analysis and Future Plans

The FECA program continued to ensure that the workforce receives timely benefits through a modern and efficient workers' compensation system, and work with agencies across the federal government to meet their individualized performance targets. In FY 2023, the rate of return-to-work outcomes was 79.02 percent for injured federal workers during the initial 45-day post-injury period for traumatic injuries, exceeding the target of 69.81 percent and significantly improving upon the government’s FY 2020 baseline performance.

In FY 2022, the Black Lung program began tracking a new performance measure, “Percent of Black Lung claims pending at the start of the fiscal year that are resolved by the end of the fiscal year,” to better manage the pending claims inventory. In FY 2023, the program exceeded the target of 87 percent by issuing decisions on 92 percent of claims pending at the beginning of the fiscal year. Additionally, the program built on performance over the past four years and in FY 2023, completed Proposed Decision and Orders following completion of all claim development for all Responsible Operator Merit Claims within 22 days, exceeding the target of 32 days. In FY 2023, the Black Lung program made efforts to reduce improper payments by reviewing and analyzing medical bills, Do Not Pay matching, and routine audits, and will continue those efforts in FY 2024 and FY 2025.

The Energy program’s unit of quality assurance analysts continued the review of quality of individual cases throughout the year, formalized a process for reviewing quality reports quarterly, and implemented corrective actions where appropriate. The quality assurance analysts also added a new category for review to assess letter decisions of acceptance. In FY 2023, 96.01 percent of sampled Part B and Part E initial claims were rated as being accurate, exceeding the target of 90.50 percent.

The Longshore program continued to build upon successful past performance in FY 2023. The Longshore program received 93.5 percent of First Reports of Injury for non-Defense Base Act cases within 20 days, exceeding the target of 92.5 percent. In FY 2024 and FY 2025, the program will build on this success continuing outreach activities on the importance of timely filing and encouraging the use of electronic submissions.

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OWCP commenced an agency-wide effort to increase claimants' access to medical care by expanding the availability of medical providers enrolled with OWCP to provide them care. In FY 2023, these efforts resulted in an 18 percent increase in the number of providers enrolled to treat OWCP claimants. This was accomplished by engaging medical provider focus groups to discuss barriers in OWCP's medical provider enrollment and billing and authorization process. Pain points identified and addressed in this process included: reducing enrollment barriers, moving away from custom processes and toward industry standards, enhancing provider support, and simplifying the authorization process. OWCP will build on this success in FY 2024 and FY 2025.

OWCP continues to support the Department's efforts to improve its customers' experience and enhance service delivery. In FY 2024, the Energy program will continue to expand the EDP, adding the ability for claimants to complete, electronically sign, and submit the Claim for Additional Wage-Loss and/or Impairment Benefits (EN-10), Impairment Benefits Response Form (EN-11A), and Wage-Loss Benefits Response Form (EN-11B) that currently require wet signatures; and the Black Lung program will implement electronic signatures for the submission of Black Lung claim forms, which will allow claimants to submit claims through the Claimant Online Access Link Mine Electronic Document Submission Portal. The Longshore and FECA programs will continue to utilize its customer service surveys in ECOMP, analyze the results, and take actions in response. The programs will also evaluate additional point-in-time customer service surveys to expand the amount of direct and ongoing input it receives.

Additionally, OWCP finalized DEIA requirements in its solicitation for Medical Provider Network/Medical Bill Processing services. These requirements will advance equity by ensuring that services provided by OWCP's contractors promote a diverse pool of medical service providers; adopt equitable policies and practices when engaging with hiring and/or subcontracting for medical service providers; and identify and remove barriers that underserved communities and individuals may face in accessing medical services under OWCP programs. OWCP will publish the solicitation for Medical Provider Network/Medical Bill Processing services, which will include these new DEIA requirements, in FY 2024.

In FY 2024, OWCP and DOL's Office of the Chief Information Officer will continue to work with SSA on a completely automated data exchange process to minimize overpayments and the financial burden on claimants.

Strategic Goal 3

OWCP – Increase the efficiency and accuracy with which OWCP provides workers’ compensation benefits for certain qualified workers who are injured or become ill on the job and improve return-to-work outcomes for injured workers

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Rate of return-to-work outcomes for injured federal workers during the initial 45-day post-injury period for traumatic injuries	Target	--	--	--	69.12%	69.81%	70.51%	71.22%	OWCP held frequent meetings with agencies (monthly or bi-weekly if struggling with performance) from the start of the fiscal year.	The OMB-approved Protecting Employees, Enabling Reemployment (PEER) Initiative required public reporting against targets and provided additional incentive for agency performance. The initiative formally concluded at the end of FY 2022.	OWCP hopes to have routinized the ongoing agency meetings covering goal performance such that it will continue to improve despite the formal end of the PEER Initiative.
	Result	--	--	--	84.93%	79.02%	--	--			
	Status	--	--	--	Y	Y	--	--			
Percent of Employer's First Report of Injury filed within 20 days: non-Defense Base Act cases	Target	--	88.0%	88.0%	92.0%	92.5%	93.0%	93.5%	The program has conducted several outreach initiatives to inform stakeholders of the importance of timely filing and the consequences for failure to timely file the reports of injury.	Some employers are not subject to civil penalties so are more difficult to influence to increase compliance.	The program will implement outreach initiatives to educate entities on the importance of timely filing and encourage stakeholders to file reports electronically.
	Result	--	90.0%	91.0%	93.5%	93.5%	--	--			
	Status	--	Y	Y	Y	Y	--	--			
Average number of days to complete Proposed Decision and Order following completion of all claim development for all Responsible Operator Merit Claims	Target	35	40	40	34	32	30	28	The program was able to increase the efficiency of claims processing by creating a target that is within the control of claims staff.	Some factors outside the control of claims staff remain, which can cause a delay in claims processing. These factors include delays in obtaining medical or employment evidence needed for a decision.	The program will work to mitigate these delays through careful tracking of aging claims via its data visualization dashboard.
	Result	29	30	35	24	22	--	--			
	Status	Y	Y	Y	Y	Y	--	--			

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of Black Lung claims pending at the start of the fiscal year that are resolved by the end of the fiscal year	Target	--	--	Base	86%	87%	88%	89%	This measure gave the program a fixed, focused target that allowed claims staff to increase efficiency and effectively manage its pending claims inventory.	Although the program was successful in meeting the goal, some claims did not receive decisions by the end of the fiscal year.	The program will continue to monitor its pending claims inventory and will need to emphasize and prioritize the oldest pending claims.
	Result	--	--	Base	91%	92%	--	--			
	Status	--	--	--	Y	Y	--	--			
Percent of sampled Part B and Part E initial claims rated as being accurate	Target	--	--	90.00%	90.00%	90.50%	91.00%	91.50%	The program completed nearly 10,000 quality and accuracy reviews of the claim adjudication process by enhancing supervisory sampling and quality assurance reviews, both of which were tracked in ARTS.	Although the program was successful in meeting the goal, the program identified some review elements that were not clearly defined.	The program will continue to amend and review criteria for supervisory sampling and quality assurance reviews.
	Result	--	--	92.00%	95.14%	96.01%	--	--			
	Status	--	--	Y	Y	Y	--	--			

Sources: Integrated Federal Employee's Compensation System, OWCP Workers' Compensation System, Black Lung Program Automated Support Package, and Energy Compensation System

ETA Performance Goal 3.1 – Support states’ timely and accurate benefit payments for unemployed workers.

The federal-state UI program, authorized under the Federal Unemployment Tax Act and Title III of the Social Security Act, provides temporary, partial wage replacement for unemployed workers, providing them with income support when suitable work is unavailable. To be eligible for benefits, unemployed workers must meet eligibility requirements established by state laws that conform to federal law, including that they are involuntarily unemployed, and are able to work, available for work, and actively seeking work. The federal role is to set broad policy for the program; establish performance measures and standards; provide technical assistance and training to states; monitor state performance; promote conformity and compliance of state laws and operations with federal law; and fund the administration of state and federal UI programs.

Analysis and Future Plans

In FY 2023, the residual impacts of the surge in claims experienced by states during the pandemic and the activities associated with winding down the temporary CARES Act programs continued to impact UI program performance. ETA continued to support states as they began to make progress in improving program performance. In FY 2023, first payment timeliness increased to 69.1 percent and exceeded the FY 2023 target of 66.4 percent. Lower authority appeals promptness increased to 33.4 percent exceeding the FY 2023 target of 30.0 percent. However, the results for both measures remain below the ALP for each measure that states are expected to meet. The ALP for first payment timeliness is 87 percent and for lower authority appeals promptness is 60 percent. Additionally, in FY 2023, states made significant progress reducing the UI improper payment rate to 16.47 percent (in the twelve months ending June 30, 2023). While claims volume returned to pre-pandemic levels in FY 2023, states continued to address ongoing fallout of the unprecedented increase in claims activity experienced in the prior two years. During the past two years, the Department has pursued its Tiger Team initiative. In FY 2024, ETA will focus on supporting states with their implementation of many Tiger Team recommendations. Also, in FY 2024, ETA targets for first payment timeliness and lower authority appeals promptness are 70.25 percent and 45.0 percent, respectively. The target of 15.00 percent for improper payments is above the statutory goal of less than 10 percent⁸ but still below the program’s most recent performance level.

In the wake of the sophisticated and organized fraud attacks that plagued the UI system during the pandemic (and continue to do so), states have increased their anti-fraud activities. ETA continues to work with the UI Integrity Center (a joint federal and state initiative focusing on the prevention, detection, and recovery of improper payments, fraud, and delinquent employer contributions) and to leverage resources provided under ARPA⁹ to provide technology, tools, training, technical assistance, and grants to states. ETA announced major fraud prevention and system

⁸ The requirement to reduce improper payments in the UI program is established in the following laws and guidance: Payment Integrity Information Act of 2019 and OMB Circular A-123, Management’s Responsibility for Enterprise Risk Management and Internal Control, Appendix C, Requirements for Payment Integrity Improvement (OMB Memorandum M-21-19, issued March 5, 2021).

⁹ ARPA initially provided the Department with \$2.0 billion to support improvements to the UI system. However, the Fiscal Responsibility Act, enacted in June 2023, rescinded \$1.0 billion of these funds. ETA issued UIPL No. 11-23 announcing the Department’s plans for leveraging the remaining funds to support UI system improvements.

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improvement funding opportunities in July 2023 (See Unemployment Insurance Program Letter (UIPL) No. 11-23). These activities focus on preventing and detecting fraud, promoting equitable access, and ensuring the timely payment of benefits. The Department has also promoted increased functionality and state usage of the resources offered by the Department-funded UI Integrity Center (which is operated by the National Association of State Workforce Agencies), including the UI Integrity Data Hub. States have significantly increased their participation and use of this tool.

In December 2020, ETA announced a new reemployment measure - Reemployment Rate in the 2nd Quarter after Program Exit Quarter for RESEA Participants (Unemployment Insurance). During FY 2023, ETA developed and tested several regression-based models to identify appropriate performance targets. The testing and development of these models were delayed because the required outcome data inherently lags a few quarters, and it was necessary to capture several quarters of data not influenced by the pandemic. In FY 2024, ETA will select the final model and implement the new measure to be tracked and monitored in FY 2025.

While states mobilized quickly to implement new temporary pandemic-related UI programs, several major challenges were identified in the UI system as a result of the system's experience during the pandemic. After years of low administrative funding and reductions in staff, at the height of the pandemic, states were poorly positioned to address the economic emergency that struck the globe and to provide quality services to the extraordinary numbers of claimants filing for unemployment compensation. In addition, states struggled to program their UI systems and implement the new temporary UI programs. These challenges compounded the hardships to hard-working eligible Americans that depended on the UI system to provide financial support in their time of need. Despite the challenges facing states, over the course of the pandemic, the UI system provided support to over 55 million workers, adding over \$850 billion into states' economies.

In FY 2023, ETA awarded \$329,062,499 in RESEA funding to 52 RESEA states and territories supporting evidence-based strategies and interventions to help UI claimants return to work. The total will reach approximately \$370 million with the inclusion of soon-to-be-awarded outcome payments. In FY 2024, ETA will continue to provide funding to states for the RESEA program operations, including outcome-based payments, develop a UI-based RESEA performance measure, and enhance its capacity to support the program.

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ETA – Support states' timely and accurate benefit payments for unemployed workers.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
First Payment Timeliness (Unemployment Insurance) ¹⁰	Target	87.00 %	87.00 %	87.00%	63.20 %	66.40%	70.25% [r]	TBD	States continue to improve timeliness performance as claims levels and workload decline to pre-pandemic levels, and many states made progress on reducing backlogs of pending adjudications.	States' modernization activities to address system deficiencies impact timeliness performance. In addition, states' new identity verification processes can negatively impact first payment timeliness.	Providing states targeted grants through DOL's Tiger Team initiative to improve operations, communication, and technology; and delivery of technical assistance, tools, and resources.
	Result	85.80 %	67.00 %	60.40% [r]	61.20 %	69.1%	--	--			
	Status	I	N	N	I	Y-	--	--			
Improper Payment Rate (Unemployment Insurance) ¹¹	Target	14.75 %	10.61 %	9.00%	14.00 %	17.50%	15.00%	TBD	States resumed full operations of Benefit Accuracy Measurement and Benefit	States are experiencing less than full personnel strength in integrity programs.	Providing states integrity grants, technical assistance, tools, and resources (e.g., National Identity Verification Offering, UI Integrity Data Hub) https://oui.doleta.gov/unemploy/integrity_plan.asp .
	Result	10.61 %	9.17%	18.71%	21.52 %	16.47% ¹²	--	--			
	Status	Y	Y	N	N	Y	--	--			

¹⁰ The FYs 2020-2023 results for First Payment Timeliness were significantly impacted due to the unprecedented increase in claim volume and other factors related to the impact of COVID-19. While states mobilized quickly to implement new temporary pandemic-related UI programs, because of years of low administrative funding, reductions in staff, outdated technology and a lack of resources, states were poorly positioned to provide quality services to the extraordinary number of claimants filing for unemployment compensation. This resulted in longstanding operational and technological weaknesses in state UI systems and created backlogs continuing into FY 2022. The 87 percent target for First Payment Timeliness is the acceptable level of performance that states are expected to meet and is in regulation (see Standard for Benefit Payment Promptness — Unemployment Compensation at 20 CFR part 640).

¹¹ Targets and results for this measure are for the 12-month periods ending June 30. For example, the 2023 result is for June 30, 2023.

¹² As of FY 2023, the Improper Payment Rate includes overpayment, underpayment, and unknown payments. Prior Improper Payment Rates did not include unknown payments.

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
									Payment Control units. During the pandemic, staff were pulled from these units to process claims. Also, states increased their use of the UI Integrity Data Hub.	Many states have lost long-term, experienced staff after the pandemic and have had challenges backfilling these positions.	

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Lower Authority Appeals Promptness (Unemployment Insurance). ¹³	Target	80.0%	89.0%	90.5%	60.0%	30.0%	45.0%	45.0 %	States continue to make considerable progress toward improving timeliness performance as case backlogs decline and current workload trends towards pre-pandemic levels.	States are implementing changes (including merit staffing) to address deficiencies that impact timeliness; loss of experienced staff after the pandemic and challenges backfilling these positions.	Providing states targeted grants through DOL's Tiger Team initiative to improve operations, communication, and technology; and delivery of technical assistance, tools, and resources.
	Result	90.1%	74.0%	22.5%	22.1%	33.4%	--	--			
	Status	Y	N	N	N	Y	--	--			
Reemployment Rate in the 2nd	Target	--	--	--	Base	Base. ¹⁴	Base	TBD	FY 2023 served as a	FY 2024 will serve as a	
	Result	--	--	--	--	--	--	--			

¹³ The FYs 2020-2023 results for Lower Authority Appeals Promptness were significantly impacted due to the unprecedented increase in claim volume and other factors related to the impact of COVID-19. As a result, the FY 2023 and FY 2024 targets were revised accordingly as states work to meet the ALP for Lower Authority Appeals Promptness. The ALP that states are expected to meet is 60 percent and is in regulation (see Standard for Appeals Promptness — Unemployment Compensation at 20 CFR part 650).

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*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Quarter after Program Exit Quarter for RESEA Participants (Unemployment Insurance)	Status	--	--	--	--	--	--	--	baseline year.	baseline year for developing this measure.	DOL is in the process of developing a target for this measure that will be tracked and monitored in FY 2025.

Sources: First Payment Timeliness: ETA 9050 and 9050p reports; Improper Payment Rate: Benefit Accuracy Measurement (BAM) survey.

¹⁴ ETA's Office of Unemployment Insurance announced in December 2020, a new reemployment measure - Reemployment Rate in the 2nd Quarter after Program Exit Quarter for RESEA Participants (Unemployment Insurance). During FY 2023, ETA developed and tested several regression-based models to identify appropriate performance targets. The testing and development of these models were delayed because the required outcome data inherently lags a few quarters, and it was necessary to capture several quarters of data not influenced by the pandemic. In FY 2024, ETA will select the final model and implement the new measure to be tracked and monitored in FY 2025.

Strategic Goal 4: Statistical Goal – Produce Gold-Standard Statistics and Analyses

Strategic Objective 4.1

Provide timely, accurate, and relevant information on labor market activity, working conditions, price changes, and productivity in the U.S. economy.

Agency Driving this Objective (select the hyperlink to learn more about this agency)

[Bureau of Labor Statistics](#) (BLS)

BLS supports public and private decision making by publishing measures of labor market activity, working conditions, price changes, and productivity in the U.S. economy.

BLS adheres to a set of values and principles that guide it in fulfilling its mission, including:

- Executing its mission with independence from partisan interests;
- Striving to meet the needs of a diverse set of customers for accurate, objective, relevant, timely, and accessible information;
- Protecting the confidentiality of its data providers;
- Employing innovative methods to keep pace with the rapidly-changing economy; and
- Hiring and maintaining a professional, highly-skilled workforce and being good stewards of the taxpayers' money.

FY 2023 Strategic Review Summary of Progress (Noteworthy Progress)

Findings for this objective were grouped into three themes: Building Our Team; Ensuring Equity Through Accessibility; and BLS Products. Evidence of progress included outreach to underserved communities with respect to limited English proficiency workers, efforts to improve workforce talent and diversity, and program performance. Challenges were identified with securing the necessary funding to continue the development of the National Longitudinal Survey of Youth new cohort to its full capacity.

Building Our Team

BLS: Recruitment and Outreach

In FY 2023, BLS continued to actively participate in recruitment activities such as outreach to targeted college campuses, speaker engagements, classroom visits, and career fair opportunities. Also, BLS continued to identify and disseminate job opportunities to a diverse list of organizations.

Other activities included supporting a hybrid work environment for the BLS National Office, fostering an innovation culture, supporting training and development programs, providing speed mentoring to staff, and sharing information on free training and other career development opportunities.

Ensuring Equity Through Accessibility

BLS: Website Accessibility

In FY 2023, BLS ensured that its data were available on its website. The BLS public website was available for data dissemination 99.90 percent of the time. BLS also strives to ensure that customers are satisfied with their ability to access material on the website. However, tracking of the BLS customer satisfaction measure was on hold in FY 2023. In FY 2024, BLS anticipates selecting a replacement for this measure, establishing a baseline result, and setting future targets accordingly.

BLS: DEIA Priorities

In FY 2023, in support of the Department's priorities, BLS identified vital documents for translation efforts in FY 2024, including 15 occupational profiles that may provide LEP populations with an entry point into the American workforce and an article on resume writing. BLS also developed an outreach and engagement strategy to better serve LEP workers, which included detailing its audience segmentation strategy and the outreach vehicles it intends to use to promote the translated materials. Additionally, BLS engaged in several activities to support the Department's DEIA Strategic Plan including maximizing recruitment efforts, increasing leadership and training opportunities, and institutionalizing DEIA in performance plans.

BLS Products

BLS: Accurate and Timely, Objective Statistics and Analysis

On average, BLS publishes over 2 million series, indexes, and other data products across its programs annually. In FY 2023, BLS data series, along with other information on the website, were viewed on the BLS website over 17 million times on average per month. BLS produces various estimates and indexes, including the Consumer Price Index (CPI), which is the nation's principal gauge of inflation, and the Employment Situation, which includes Current Employment Statistics, a survey that measures employment, hours, and earnings by industry and geography from the payroll

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records of employers. In FY 2023, BLS substantially achieved its objective of producing timely, accurate, and relevant data for its Principal Federal Economic Indicators (PFEIs), with an improvement over FY 2022 to the result for the *Percentage of relevance targets achieved for the PFEIs*. BLS regularly evaluates and adjusts its outyear targets accordingly in response to changing conditions.

BLS: Labor Market Information (LMI)

In FY 2023, BLS worked with additional states to develop Demonstration Projects that use Wage records and UI claims files, and other administrative records that include demographic information, to identify available data sources that can be matched with existing employment statistics to produce greater demographic detail. By linking BLS data with state administrative records, states produced additional labor market information with expanded demographics that highlight equity issues. BLS worked with Michigan, Oregon, and Washington to showcase their products at national and regional forums and encourage other states to submit proposals and to participate in the LMI modernization effort. In FY 2024, BLS will continue to work with state partners to build the state LMI office capacity, with a focus on the Southeast region states to explore strategies for improving conditions for workers in the Southeast.

BLS Performance Goal 4.1 – Provide timely, accurate, and relevant information on labor market activity, working conditions, price changes, and productivity in the U.S. economy.

BLS is the principal federal statistical agency responsible for measuring labor market activity, working conditions, price changes, and productivity in the economy. Its mission is to collect, analyze, and disseminate some of the nation’s most sensitive and important economic data to support public and private decision-making. BLS executes its mission with independence from partisan interests while protecting the confidentiality of data providers and strives to meet the needs of a diverse set of customers for accurate, objective, relevant, timely, and accessible information and analysis. BLS serves the public, the U.S. Congress, DOL and other federal agencies, state and local governments, and business and labor. Policies and decisions based on BLS data affect virtually all Americans, and the wide range of BLS data products is necessary to fulfill the diverse needs of a broad customer base.

BLS is committed to maintaining the highest level of scientific integrity in producing official statistics. BLS complies with the Statistical Policy Directives and the Standards and Information Quality Guidelines from OMB, as well as the National Research Council’s *Principles and Practices for a Federal Statistical Agency*. Together, these form the foundation for achieving and maintaining scientific integrity within and among the principal statistical agencies. BLS conforms to the conceptual framework of the Interagency Council on Statistical Policy’s quality dimensions. BLS also measures the timeliness, accuracy, and relevance of its PFEIs and accessibility of and customer satisfaction with its statistical products. These criteria are common among statistical agencies because they represent critical aspects of a statistical program’s performance. Using these common concepts as a basis for measuring and reporting on statistical agency outcomes helps inform decision-makers more consistently about the performance of statistical agencies.

BLS is committed to supporting the President’s Management Agenda of strengthening and empowering the federal workforce, delivering excellent, equitable, and secure federal services and customer experience. BLS data support the President’s priority of providing evidence and supporting evaluation activities, consistent with the *Foundations for Evidence-Based Policymaking Act*. As part of the *Evidence Act*, the Commissioner of BLS is designated as the Statistical Official for DOL to advise the entire Department on statistical policy, techniques, and procedures. Furthermore, by producing gold-standard statistics and analyses, BLS supports the Administration’s vision for DOL to empower workers and build a modern, inclusive workforce and the DOL mission “To foster, promote, and develop the welfare of the wage earners, job seekers, and retirees of the United States; improve working conditions; advance opportunities for profitable employment; and assure work-related benefits and rights.” BLS also publishes data on demographic groups in the U.S. economy, including information on employment, wages, workplace safety, and consumption patterns, which can inform efforts to advance equity.

Analysis and Future Plans

BLS was successful in achieving its objective of producing timely, accurate, and relevant data for its PFEIs in FY 2023. BLS also achieved its commitment to ensure that BLS data are available on the website. BLS tracked customer satisfaction through the Verint Experience Index until May 2022. In FY 2023, BLS explored options for a replacement for this measure. In FY 2024, BLS will continue evaluating options, select a replacement, and resume tracking customer satisfaction with a new measure.

BLS continued releasing objective statistics and analyses that are accurate and released on time and updated the information it collects and studies to remain relevant in describing the dynamic U.S. economy. BLS continued to re-engineer its data sources and collection methods to balance the production of high-quality products while lessening respondent burden and survey cost. Also, consistent with the Administration's initiative to advance equity, BLS highlighted and directed stakeholders to publicly available BLS data sets that describe various demographic groups in the U.S. economy.

In FY 2024 and FY 2025, BLS will continue to expand in-person interactions associated with collecting data from businesses and households, while also offering alternative response modes. In tandem with in-person data collection, BLS will continue to rely on collection via the telephone, email, internet, video collection, as well as expanded use of corporate, administrative, and other large data sets from non-traditional sources that could supplement directly collected data. These data collection alternatives provide greater opportunities to reach people and businesses in underrepresented communities.

In FY 2023, BLS published, for the first time, labor force estimates for detailed Asian groups as part of a strategic priority of the White House Initiative on Asian Americans, Native Hawaiians, and Pacific Islanders. BLS provides monthly and quarterly labor force estimates for Asian ethnic groups, including Asian Indians, Chinese, Filipinos, Japanese, Koreans, Vietnamese, and Other Asians, which allow data users to see labor market differences among the detailed groups.

Also, in FY 2023, BLS published new experimental data building on efforts to better capture the transformation of the retail trade sector based on recommendations from the Committee on National Statistics. These data will help BLS stakeholders better understand the implications of emerging economic trends on employment and productivity measurement.

Looking forward, BLS will continue to release new products in response to the needs of its stakeholders and data users. In FY 2024, the Current Population Survey will publish data from the FY 2023 Contingent Worker Supplement that will include information on the number and demographic characteristics of workers in contingent jobs (that is, jobs that are structured to be temporary) and in alternative employment arrangements, such as independent contractors, on-call workers, temporary help agency workers, and platform workers. These additional data will allow policymakers,

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stakeholders, and researchers to track trends in contingent work by demographic characteristics, and to examine emerging types of work arrangements. Also, in FY 2024, the Consumer Expenditures Survey will implement the second phase of a streamlined questionnaire for collecting the Interview Survey data, as part of a multi-year effort to reduce measurement error and reduce respondent burden. In addition, the Occupational Safety and Health Statistics program will publish, for the first-time, nation-wide occupational injury and illness case and demographic data for job transfer or restriction, providing stakeholders, such as employers and policymakers, expanded data to address workplace safety.

BLS – Provide timely, accurate, and relevant information on labor market activity, working conditions, price changes, and productivity in the U.S. economy.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percentage of timeliness targets achieved for the Principal Federal Economic Indicators (PFEIs)	Target	100%	100%	100%	100%	100%	100%	100%	BLS released all PFEI news releases on schedule.	--	--
	Result	100%	100%	100%	100%	100%	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Percentage of accuracy targets achieved for the PFEIs	Target	100%	100%	100%	100%	100%	100%	100%	BLS substantially achieved this measure, meeting 19 out of 20 of its underlying PFEI accuracy targets.	Producer Price Index covered 98.0% compared to a target of 98.1% for <i>Percentage of domestic output: Goods produced</i> due to a decrease in sample frequency, leading to sample attrition for the Industrial Sand industry.	BLS will evaluate alternative data sources and collection methods to improve sample response.
	Result	100%	100%	95%	100%	95%	--	--			
	Status	Y	Y	N	Y	N	--	--			
Percentage of relevance targets achieved for the PFEIs	Target	100%	100%	100%	100%	100%	100%	100%	BLS substantially achieved this measure, meeting 6 out of 7 of its underlying PFEI relevance targets.	CPI published 8,325 indexes compared to a target of 8,400 for its <i>Indexes published monthly</i> measure due to corrections resulting in redacted series suppressed from publication.	BLS will evaluate alternative data sources and collection methods for correction-prone categories and adjust targets in FY 2025 accordingly.
	Result	75%	86%	100%	71%	86%	--	--			
	Status	N	I	Y	N	I	--	--			

Strategic Goal 4

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percentage of time the BLS public website is available for data dissemination ¹⁵	Target	--	--	99.50%	99.50%	99.50%	99.50%	99.50%	BLS met its target for percent of time the BLS public website is available for dissemination.	--	--
	Result	--	--	99.98%	100%	99.90%	--	--			
	Status	--	--	Y	Y	Y	--	--			
Customer satisfaction with the BLS website through the Verint Experience Index (Mission Achievement)	Target	76	75	75	76	--	--	--	--	--	BLS is exploring replacement measures of customer satisfaction with the BLS website. Once secured, BLS will establish a baseline result and set future targets accordingly.
	Result	75	75	76	75	--	--	--			
	Status	N	Y	Y	N	--	--	--			

Sources: For most cross-cutting measures, internal BLS documents. For the Availability measure, the BLS internal Quarterly Uptime Summary.

¹⁵ Beginning in FY 2021, BLS tracks and highlights the availability of its data by reporting the percentage of time the BLS public website is available for data dissemination. The target of >= 99.50% reflects the BLS commitment to ensure that BLS data are available on the website for stakeholders when they need them.

Management Goal: A Department Grounded in Innovation, Evidence, and Employee Engagement

Management Objective M.1

Drive innovation in administrative, management, and financial services.

Partner Agencies Driving this Objective (select the hyperlink to learn more about each agency)

[Office of the Assistant Secretary for Administration and Management](#) (OASAM)

[Office of the Chief Financial Officer](#) (OCFO)

Administration, management, and financial services are the backbone of the Department of Labor, providing the critical infrastructure required to support the Department's core mission work. Ensuring these services are operating efficiently allows for more resources to go toward the programs that impact America's workers.

OASAM and OCFO are focusing on improving service delivery through modern, streamlined processes and IT infrastructure. OASAM and OCFO are working together to implement programs which promote fiscal integrity and the effective and efficient use of resources, optimize DOL's administrative services, and modernize information technology systems. This work builds on the transition from multiple services providers to centralized functions for human resources, IT, procurement, and personnel security respectively.

OASAM supports the President's Management Agenda's (PMA) Priority 2, in delivering excellent, equitable, and secure federal services and customer experience by:

- Improving the service design, digital products, and customer-experience management of federal [High Impact Service Providers](#) by reducing customer burden, addressing inequities, and streamlining processes, and
- Identifying and prioritizing the development of federal shared products, services, and standards that enable simple, seamless, and secure customer experiences across High Impact Service Providers.

OASAM and OCFO support the PMA's Priority 3, in Managing the Business of Government to Build Back Better and the associated strategies by:

- Fostering lasting improvements in the federal acquisition system to strengthen the U.S. domestic manufacturing base, support American workers, lead by example toward sustainable climate solutions, and create opportunities for underserved communities; and

Management Goal

- Build capacity in federal financial management and through federal financial assistance to catalyze American industrial strategy, address climate-related risks, and deliver equitable results.

FY 2023 Strategic Review Summary of Progress (Adequate Progress)

Findings for this objective were grouped into two themes: Innovative Customer Service; and Enable the Department to Perform its Mission. Evidence of progress included implementation of hiring surge initiatives, secure IT infrastructure, and cancelled appropriations reduction. Challenges were identified in reducing improper payments.

Innovative Customer Service

OASAM: Enhanced Delivery of Services

In FY 2023, the Office of Human Resources (OHR) worked to expediate and improve hiring at DOL by implementing new systems and improving current best practices. For example, OHR procured USA Staffing, a new recruitment system, which has improved the hiring experience for new staff and upgraded workflows for its human resources specialists. The office has also implemented new hiring authorities and improved its virtual onboarding program, which has an approval rate of over 90 percent. In addition to other improvements, such as the extended use of external hiring programs (e.g., Student Enrichment Program), holding virtual job fairs, etc., OHR completed 2,746 hiring actions in FY 2023.

Enable the Department to Perform its Mission

OASAM: Secure IT Infrastructure

The Office of the Chief Information Officer (OCIO) has continued to prioritize cybersecurity and has proactively identified improvements to DOL's cybersecurity framework as critical to the Department. The OCIO goal is to continue to integrate and standardize DOL's IT infrastructure to provide a robust cybersecurity posture, consistent with Executive Order 14028, while increasing the reliability and functionality of DOL's information systems and infrastructure that support mission critical services. OCIO met its targets for all five Cybersecurity measures. This includes reporting all verified cybersecurity incidents within two hours, sending all Open Plan of Action and Milestones (POA&Ms) reports timely, and meeting the planned finish date for all POA&Ms. OCIO also met most of its targets for the enterprise service desk resolution time but missed some targets due to delays in ticket closures. OCIO met its Infrastructure availability targets for the network (including both the Wide Area Network (WAN) and Local Area Network, Microsoft Office 365, the Unified Communications (UC) platform, and the Interactive Voice Response system as well as the target for timely software upgrade notifications. OCIO also met all three of its targets for the number of applications utilizing simplified sign-on (SSO),

Management Goal

availability of DOL's managed WAN, and percentage of workstations and mobile devices with accurate assignment records. In FY 2023, 99 percent of these assets had accurate assignment records which is a significant improvement from the 78.45 percent result in FY 2022.

OCFO: Cancelled Appropriation Reduction

OCFO works with agencies to reduce the amount of their cancelled appropriations. Once cancelled, these funds are no longer available for obligation or expenditure and are returned to the U.S. Department of the Treasury. In FY 2023, DOL agencies cancelled 1.93 percent of their discretionary appropriation, higher than the 1.80 percent target. Since FY 2019, DOL has made significant strides in reducing agencies' cancelled appropriations. Going forward, OCFO will continue to work with agencies in maximizing their appropriations.

OCFO: Improper Payments

DOL is currently required to provide significant improper payments (IP) reporting on the UI and FECA programs. Both programs met their targets in FY 2023. OCFO has begun working with ETA and the Do Not Pay (DNP) Business Center (OMB/Treasury/FedReserve) to improve cross-collaboration, share best practices, and potentially integrate duplicative resources between the DNP and the UI Integrity Center in the future. OCFO continues to work with FECA and DNP to build on the successful, first-in-Government data analytics cross-reference project which addresses improper dual benefits between OWCP, OPM, and SSA.

OASAM Performance Goal M.1 – Optimize the Department of Labor’s enterprise services.

OASAM works to enhance the customer experience of its human resources, information technology, procurement, and other primary customer-facing services by streamlining administrative services to improve the efficiency and quality of service delivery. OASAM completed a transition of nearly all agencies’ functions for human resources, information technology, procurement, and personnel security to shared services models in FY 2020, consolidating staff and resources under one central authority respectively to increase efficiency and effectiveness.

OCIO is a customer service organization dedicated to providing IT solutions and leadership to advance DOL’s mission. Through strategic planning, DOL is defining a vision of its future data and IT environment to facilitate the success of Departmental goals and agency mission needs. This vision encompasses a mission-focused modern and unified information and IT environment incorporating Administration priorities for digital services, open data, world-class customer service, and enhanced alignment and strategic management of the DOL federal IT workforce. DOL’s IT focus is to enable mission-critical capabilities through continued application modernization and the use of emerging technologies, addressing cyber threats, enhancing the infrastructure backbone, and managing budget and resource constraints.

OASAM’s Office of the Senior Procurement Executive (OSPE) provides value-oriented acquisition and contracting operational support to DOL agencies to achieve their mission and departmental needs through innovative solutions while providing the highest level of customer service through leadership, guidance, and oversight of all procurement policy and services.

Analysis and Future Plans

OASAM engaged with its client agencies to adequately plan for administrative services in support of their mission priorities. OASAM obtained feedback from its customers through a variety of sources, including a semi-annual Customer Satisfaction Survey, semi-annual feedback on OASAM leaders, and advisory/governance board feedback. OASAM’s FY 2023 Customer Satisfaction Survey score was 4.35 out of 5, maintaining a result above 4, meaning that customers are satisfied with OASAM services. OASAM will continue to take feedback from the survey and implement actions items to address customer concerns.

A top priority for OCIO is to ensure maximum network availability. In FY 2023, OCIO maintained network availability at 99.96 percent and will continue at 99.90 percent or more in FY 2024 and FY 2025. In addition, DOL performed more than 5,250 on-boardings and off-boardings of staff in FY 2023 in a manner that protects DOL network operations. The office also provided greater economies of scale, flexibility, and improved allocation of IT resources across the enterprise. The office will use its inventory of prioritized legacy information systems and applications to target additional funding mechanisms for modernization initiatives. These modernizations will include enhanced cybersecurity consistent with Executive Order 14028, cloud implementation whenever feasible, and SSO capabilities. As of the end of FY 2023, OCIO has 161 DOL applications with the

Management Goal

SSO capability and will continue to increase applications with SSO capability in FY 2024 and FY 2025. Maintaining a robust cybersecurity posture to protect the Department's systems and applications continued to be a top priority. In FY 2023, for the third consecutive year, OCIO closed all cybersecurity vulnerabilities by the date identified in each POA&M for the systems it manages. In addition, DOL will refresh 25 percent of its laptops, tablets, and mobile devices each year going forward; all Windows-based end-user devices will be upgraded to Windows 11 in FY 2024.

OASAM manages procurement services for the entire Department, which enables the efficient and effective procurement of goods and services, resulting in reduced procurement time, reduced cost, best value, and improved quality of goods and services procured. OSPE provides and promotes DOL-wide procurement vehicles and Best-in-Class contract solutions to leverage the government's buying power as a single enterprise. These vehicles reduce redundancy in contract actions for the same services and achieve cost savings with DOL buying power. Previously, spending under both Best-in-Class and Common Spend Under Management were measured using a dollar amount target, however in FY 2022, the General Services Administration changed the measures to a percentage of eligible obligations. In FY 2023, 14.32 percent of procurement obligations were Best-in-Class solutions while 57.72 percent of procurement obligations were Common Spend Under Management. The FY 2024 targets were raised to 15.10% and 65% for Best-in-Class solutions and Common Spend Under Management respectively.

OSPE continued to use its proven Department-wide small business approach to meet and exceed its small business goals, which include contracts to small businesses, small-disadvantaged businesses, and small women-owned businesses. OSPE has met or exceeded its overall prime small business goal for the last 14 years. The percent of contracts awarded to small-disadvantaged businesses and small women-owned businesses continues to be a priority area. In FY 2023, OSPE exceeded its target of 28.9 percent, for the percent of contracts awarded to small-disadvantaged businesses at 30.09 percent, and exceeded its goal of 5 percent, for contracts awarded to small women-owned businesses at 6.04 percent. In FY 2024 and FY 2025, OSPE will continue its focus on small-disadvantaged, women-owned, and minority-owned businesses through vendor outreach sessions that assist entities interested in doing business with the government in becoming more procurement ready. Additionally, OSPE will host industry days, along with other outreach to facilitate and foster connections between large businesses, HBCUs, Minority Serving Institutions, and small minority-owned businesses for mentoring and partnership opportunities.

Management Goal

OASAM – Optimize the Department of Labor's Enterprise Services.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
OASAM Customer Satisfaction Survey Result	Target	--	--	--	Base	4.00	4.00	4.00	22 out of 24 agencies gave OASAM a rating of 4 or above. Ratings were relatively consistent across customer locations.	Issues with communication and timeliness in responses were identified in survey responses across service providers.	OASAM will prepare action items to improve on specific constructive feedback that was raised in survey responses.
	Result	--	--	--	4.32	4.35	--	--			
	Status	--	--	--	--	Y	--	--			
Percentage of scheduled network availability	Target	--	99.90%	99.90%	99.90%	99.90%	99.90%	99.90%	OCIO monitored DOL's managed network and worked with onsite contacts and Verizon to ensure downtime is minimal.	Downtime did occur due to circumstances outside of OCIO control (e.g., cut fiber optic lines, loss of commercial power, and managed service provider hardware failures).	Monitor the network and ensure downtime is minimal and, research other means of providing managed internet services as part of Zero Trust Architecture to further improve availability.
	Result	--	99.98%	99.96%	99.96%	99.96%	--	--			
	Status	--	Y	Y	Y	Y	--	--			
Percentage of open Plan of Action and Milestones (POA&Ms), assigned to OCIO-managed information systems, with a valid (i.e., not past-due) planned finish date	Target	--	--	95%	95%	95%	95%	95%	The OCIO Cybersecurity Directorate used this metric to manage and reduce the number of past due POA&Ms. This reduces DOL's risk level on the systems having POA&Ms.	Changes to system deployment/functions and prioritization result in some POA&Ms being redone just to meet this metric and not to reduce risk.	OCIO will need to improve POA&Ms management to link program budgets to risk mitigation in future years.
	Result	--	--	100%	100%	100%	--	--			
	Status	--	--	Y	Y	Y	--	--			

Management Goal

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of DOL applications with simplified sign-on capability	Target	--	--	--	95	120	180	200	OCIO transitioned SSO capabilities to Azure Identity. Providing faster onboarding and achieving the target Zero Trust Architecture, security features and capabilities already available in Azure.	Some older DOL applications with large user bases are based on legacy technology and do not meet the standards or technical requirements for compatibility with SSO implementation.	Develop a new framework utilizing specific criteria to prioritize the onboarding of the remaining legacy applications, including remediation of compatibility issues.
	Result	--	--	--	108[r]	161	--	--			
	Status	--	--	--	Y	Y	--	--			
Percent of contracts awarded to small businesses	Target	37.00%	35.00%	37.75%	37.80%[r]	37.85%	37.90%	TBD	The Office of Small and Disadvantaged Business Utilization collaborates with the procurement and program activities to hold vendor outreach sessions and strong involvement from senior leadership.	DOL exceeded its small business goals. It is important to note that in some acquisition areas there are limited opportunities for small business dollars to be awarded.	The FY 2024 Small Disadvantaged Business Plan provides oversight for contract actions and makes recommendations for contract actions to be set-aside for small businesses, as applicable.
	Result	40.07%	40.21%	43.44%	41.18%[r]	39.35%	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Percent of contracts awarded to small disadvantaged businesses	Target	5.00%	5.00%	5.00%	28.00%	28.90%	30.00%	TBD	The Office of Small and Disadvantaged Business Utilization collaborates with the procurement and program activities to hold vendor outreach sessions and strong involvement from senior leadership.	DOL exceeded its goal, however, distribution of small business dollars can affect availability of dollars across other small business categories.	The FY 2024 Small Disadvantaged Business Plan provides oversight for contract actions and makes recommendations for contract actions to be set-aside for small businesses, as applicable.
	Result	26.06%	27.07%	31.44%	29.95%[r]	30.09%	--	--			
	Status	Y	Y	Y	Y	Y	--	--			

Management Goal

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of contracts awarded to small women owned businesses	Target	5.00%	5.00%	5.00%	5.00%	5.00%	5.00%	5.00%	The Office of Small and Disadvantaged Business Utilization collaborates with the procurement and program activities to hold vendor outreach sessions and strong involvement from senior leadership.	DOL exceeded its goal, however, distribution of small business dollars can affect availability of dollars across other small business categories.	The FY 2024 Small Disadvantaged Business Plan provides oversight for contract actions and makes recommendations for contract actions to be set-aside for small businesses, as applicable.
	Result	12.62%	12.80%	14.12%	8.70% [r]	6.04%	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Cumulative percent of addressable spend through Best-Class solutions. ¹⁶	Target	37.00%	--	--	13.00%	12.60%	15.10%	TBD	Working closely with the procurement activities and program areas on the importance of meeting this goal.	The high percentage of Job Corps expenses is a challenge to achieving goals. They are highly specialized, with no government wide Tier 1 Spend Under Management or Best-in-Class vehicles available.	OSPE will continue to work closely with procurement and program activities to coordinate and direct, where feasible, all available spend towards Best-in-Class vehicles.
	Result	40.65%	--	--	13.72%	14.32%	--	--			
	Status	Y	--	--	Y	Y	--	--			
Category Management: Cumulative percent of	Target	--	--	--	56.00%	62.00%	65.00%	TBD	Working closely with the		OSPE will continue to engage with
	Result	31.00%	--	--	63.34%	57.72%	--	--			

¹⁶ Beginning in FY 2022, SUM and BIC targets will be measured as a % of eligible obligations, as had been the case in previous years up until FY 2019. In FY 2020, the targets were changed to measure actual dollars and there were no targets for percentage of eligible obligations in either FY 2020 or FY 2021.

Management Goal

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
common spend that is under management, aligned to category management principles	Status	--	--	--	Y	--	--	--	procurement activities and program areas on the importance of meeting this goal.	The high percentage of Job Corps expenses is a challenge to achieving goals. They are highly specialized, with no government wide Tier 1 Spend Under Management or Best-in-Class vehicles available.	OMB on the possibility of reclassifying DOL Job Corps contracts as Tier 1 Spend Under Management vehicles.
Number of DOL applications with simplified sign-on capability	Target	--	--	--	95	120	180	200	OCIO transitioned SSO capabilities to Azure Identity. Providing faster onboarding and achieving the target Zero Trust Architecture, security features and capabilities already available in Azure.	Some older DOL applications with large user bases are based on legacy technology and do not meet the standards or technical requirements for compatibility with SSO implementation.	Develop a new framework utilizing specific criteria to prioritize the onboarding of the remaining legacy applications, including remediation of compatibility issues.
	Result	--	--	--	108[r]	161	--	--			
	Status	--	--	--	Y	Y	--	--			

Sources: Alchemer Web Application Survey System; Acquisition Management System; Federal Procurement Data System; Cyber Security Assessment and Management system; Enterprise Trouble Management System and Concord E-Health systems

Notes: The Small Business targets are set by the Small Business Administration annually; OMB had different category management measures in place for FY 2020 and FY 2021.

OCFO Performance Goal M.1 – Promote fiscal integrity and the effective and efficient use of resources through innovation.

OCFO provides financial management leadership, direction, and guidance to the Office of the Secretary of Labor and all DOL program agencies on matters arising from financial statutes, as appropriate. OCFO oversees DOL-wide accounting, financial management, and financial system, and leads DOL’s annual audit of the Consolidated Financial Statements and efforts to address findings resulting from the audit. Accurate and timely financial information demonstrates DOL’s accountability to stakeholders and facilitates data-driven operational, budget, and policy decisions. OCFO oversees DOL’s internal controls by assisting program management in establishing and ensuring strong controls over all financial resources in DOL.

Analysis and Future Plans

OCFO leads the Department through its annual audit in which DOL’s programs, accomplishments, challenges, and management’s accountability for the resources entrusted to DOL is summarized in the Agency Financial Report. OCFO tracks the number of material weaknesses¹⁷ identified through the annual audit after the conclusion of the fiscal year. There was one material weakness identified during the FY 2023 audit and OCFO is working to address the finding.

Additionally, OCFO provides DOL’s managers and decision makers with the financial management tools to drive high performance and accountability and to responsibly manage financial resources. A measure of spending efficiency is the “percent of discretionary appropriations cancelled after the five years period of obligation authority has expired” which tracks the amount of federal funds that are cancelled. OCFO works with agencies to reduce the amount of their cancelled appropriations. Once cancelled, these funds are no longer available for obligation or expenditure and are returned to the U.S. Department of Treasury (Treasury). OCFO continued to process payments in a timely manner. It is paramount that DOL must pay invoices on time; failing to do so is a waste of taxpayer dollars.

In FY 2024, OCFO will finalize integration of G-Invoicing with DOL’s New Core Financial Management System (NCFMS) and complete the G-Invoicing initiative across the Department. Beyond that, DOL will continue working with Treasury and OMB to implement a government-wide Financial Management Quality Service Management Offices solution for DOL NextGen financial management and transaction processing.

¹⁷ The most serious of findings resulting from an audit are identified as a “material weakness” which is a deficiency, or a combination of deficiencies, in internal controls, such that there is a reasonable possibility that a material misstatement on the Department’s financial statement will not be prevented, or detected and corrected, on a timely basis.

Management Goal

OCFO – Promote fiscal integrity and the effective and efficient use of resources through innovation.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of material weaknesses	Target	0	0	0	0	0	0	0	OCFO and ETA/UI worked with 53 states and territories to get a better sense of the data regarding CARES Act funding. This exercise provided valuable information to the Department.	The pandemic created a number of problems that made reporting data a challenge. Outdated systems created backlogs which led to issues for the auditors. OCFO continues to address these challenges.	OCFO is working with the program and auditors to create a comprehensive plan to work to eliminate the material weakness.
	Result	1	0	1	1	1	--	--			
	Status	--	--	--	--	--	--	--			
Percentage of payments made without incurring prompt payment interest	Target	95.00%	95.00%	95.00%	98.00%	98.00%	98.00%	98.00%	OCFO uses this daily generated data to execute an agency scorecard to highlight interest trends. In addition, OCFO follows up weekly on invoices that are coming due.	New workflow processes have created some barriers and increased workload which resulted in minimal occurrences where receipt of goods is not completed and/or approved in a timely manner.	OCFO will continue its outreach to the Contracting Officer's Representative community to help assist with creating receipt of goods and provide other assistance to ensure minimal to no accrued interest is being paid on behalf of the agency.
	Result	100.00%	99.22%	99.73%	99.91%	99.89%	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Percent of discretionary appropriations returned to Treasury	Target	1.95%	1.90%	1.85%	1.80%	1.80%	1.80%	1.80%	In its Tri-annual certification process, OCFO works to ensure that obligations are deobligated timely. OCFO also posts a summary of balances that are set to cancel for program review.	DOL agencies could do more to increase their awareness to create a plan of which obligations are no longer valid and ensure the balances are deobligated and re-obligated to support the programs mission.	OCFO will send a summary of unobligated balances of funds near cancellation to financial managers regularly. OCFO will continue its expiring funding target program and
	Result	1.69%	1.60%	1.85%	1.54%	1.93%	--	--			
	Status	Y	Y	Y	Y	N	--	--			

Management Goal

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
											to provide training and guidance.

Sources: Agency Financial Reports; NCFMS

Notes: The targets for the measure "number of material weaknesses eliminated" are based on previous year independent audit findings.

Management Objective M.2

Strengthen the Department’s commitment and capacity for evidence-based decision-making.

Partner Agencies Driving this Objective (select the hyperlink to learn more about each agency)

[Office of the Assistant Secretary for Administration and Management](#) (OASAM)

[Office of the Chief Financial Officer](#) (OCFO)

[Office of the Assistant Secretary for Policy](#) (OASP)

Decisions should be based on evidence – especially those that affect the employment, safety and health, and retirement and benefits security of America’s workers. The Foundations for Evidence-Based Policymaking Act (Evidence Act) outlines major government-wide reforms for making data more accessible and useful for decision-making. To meet this objective, DOL must first strengthen its internal capacity, both in ensuring transparency and availability of data, and by advancing the framework that supports the decision-making process.

DOL is taking significant steps to make evidence-based decision making a part of the culture by improving the integration of budget and performance with evaluation and risk management. A strong culture of evidence-based decision making is creating improved policies and programs that support and protect America’s workers.

FY 2023 Strategic Review Summary of Progress (Adequate Progress)

Findings for this objective were grouped into two themes: Improved Integration of Services and DOL’s Data Strategy. Evidence of progress included the use of agency-specific management plans to align strategies and activities to Departmental priorities. Challenges were identified in Department-level integration of performance, budgeting, evaluation, and risk management.

Improved Integration of Services

OCFO and OASAM: Incorporate Budget and Performance with Evaluation and Risk Management

OCFO and OASAM convened a workgroup (the Enterprise Risk Management Council) as part of a larger effort to better integrate enterprise risk management (ERM), performance management, budget, and evaluation into the strategic decision-making process. The workgroup ensures that the Budget, Strategic Plan, Agency Management Plans (AMP), Risk Profile, and Evaluations all inform one another. All four offices review AMPs, which map out an agency’s actions and priorities over the upcoming year.

Management Goal

OCFO: Risk Management

In FY 2022, DOL continued to mature its Risk Management program by building ERM into the management disciplines at DOL. Agencies within the Department have identified their top risks and have built mitigation plans to reduce threats to program objectives. In FY 2023, 90 percent of agencies found that ERM practices better inform strategic and operational decision-making.

DOL's Data Strategy

In FY 2022, OASP led efforts to publish DOL's first Enterprise Data Strategy, to align to the statutory requirements in the [Evidence Act](#). In the FY 2023 AMPs, OASP worked with OASAM to include data projects in all management plans, linking them to the larger mission, emphasizing greater access to data through establishing restricted use programs, and leading the creation of data-as-a-service.

OASAM Performance Goal M.2 – Integrate budget and performance with evaluation and risk management to improve decision-making.

DOL is committed to improving decision-making by integrating the management disciplines of budget formulation and execution, performance management, evaluation, and risk management. OASAM's Departmental Budget Center (DBC) and the Performance Management Center (PMC) will build on past successes in integrating budget and performance disciplines. PMC and DBC will also continue to coordinate with the Chief Evaluation Officer and the Chief Data Officer, as well as the Office of the Chief Financial Officer, who manages the ERM function. Through integration of budget, evidence, and key risks into DOL internal management plans, DOL agencies will develop and execute strategies and activities to achieve their mission and management priorities.

Analysis and Future Plans

PMC surveyed DOL agencies and asked whether they believe their AMP is effective for their agency's strategic planning and budget execution. In FY 2023, 67 percent of the survey respondents indicated that they believe the AMP is effective. PMC sought to raise this result by working with agencies closely on AMP development and fostering an increased level of comfort around the annual performance planning process. In addition to general effectiveness feedback, PMC also collected feedback on specific elements and requirements of AMPs. PMC used the feedback to adjust the AMP requirements for FY 2024 AMP development. For example, feedback indicated a need to streamline the guidance and attachments published for the AMP development process. The FY 2024 guidance has been reorganized to assist agencies in tracking separate components and requirements with clear explanations of necessary items, addressing concerns about complexity and redundancy. PMC will continue collecting agency feedback on the process and adjusting future planning requirements accordingly. In FY 2024, PMC will revise this measure to a new measure which gauges stakeholder satisfaction with the AMP development process. The new measure targets PMC's effectiveness in providing guidance and managing the AMP development process versus the overall effectiveness of the Agency's AMP documents.

DBC received a rating of 4.3 out of 5 for budget formulation and execution on the OASAM Customer Satisfaction Survey, meaning that customers are satisfied with these services. The survey helped DBC identify strengths and areas of improvement within its work products and procedures. As a result of agency feedback to the survey, DBC began an ongoing and iterative process to write budget formulation and execution guidance using plain language. In addition, DBC continued to offer training sessions and office hours to better assist agencies with their understanding of budget guidance and its requirements. In FY 2024 and FY 2025, DBC will continue to build upon agency feedback and incorporate structural improvements to the budget processes within DOL.

Management Goal

OASAM – Integrate budget and performance with evaluation and risk management to improve decision-making.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Budget Formulation and Execution Customer Satisfaction Score	Target	--	--	--	--	4.00	4.00	4.00	Identifying and addressing agency feedback on the strengths and areas of improvement within budget formulation and execution.	Receiving agency feedback only once throughout the fiscal year.	Continue offering training sessions and writing budget guidance in plain language.
	Result	--	--	--	--	4.30	--	--			
	Status	--	--	--	--	Y	--	--			
AMP Stakeholder Satisfaction Score	Target	--	--	--	--	--	Base	TBD	--	--	--
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			

Sources: Alchemer Web Application Survey System.

OCFO Performance Goal M.2 – Integrate risk-based decision-making to enhance the Department’s operations.

The ERM provides an enterprise-wide, strategically aligned portfolio view of organizational challenges and opportunities to more effectively prioritize and manage risks to mission delivery. DOL integrates ERM into agency operations planning, performance management, and budget processes to make strategic, risk-based decisions to make the Department more resilient, effective, and efficient. Involving risk-based decision-making in the strategic planning, organizational performance management, and budget processes enables the Department to better allocate scarce resources to address the highest priority risks, enhance performance, drive efficiencies, and promote cost savings.

Analysis and Future Plans

OCFO, in coordination with OASAM, collaborated with agencies and the ERM Council (ERMC) to continually mature the Department’s ERM program. The ERMC directed each component agency to identify and assess major risks to achieving their mission and goals. The ERMC continued to integrate with major management structures to feed strategic decision making. These include budget formulation and execution, development of agency learning agendas, and the development and execution of AMPs. Additionally, the ERMC continues to direct agencies to develop risk appetite statements around their respective goals in the FY 2022-2026 DOL Strategic Plan to reinforce the connection between ERM, performance, and strategic planning. ERM will continue to be integral in providing support to component agencies on the Organizational Health initiative.

OCFO – Integrate risk-based decision-making to enhance the Department’s operations.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Percent of agencies that find that ERM practices better inform strategic and operational decision-making	Target	--	--	--	Base	90%	90%	TBD	Continued collaboration with OASAM and OASP on building the ERM program into the Strategic Review and Organizational Health initiatives.	Inability to address all high-level risks due to agency staffing/budget constraints and competing priorities.	OCFO will continue to mature the program through further integration with the Strategic Review process.
	Result	--	--	--	90%	90%	--	--			
	Status	--	--	--	--	Y	--	--			

Sources: Enterprise Risk Management Effectiveness Survey.

OASP Performance Goal M.2 – Invest in strategic and evidence-based decision-making, policy and regulatory development.

OASP is the principal policy, regulatory, data governance, and evaluation office for the Department. To that end, OASP plays a crucial role in helping design and execute evidence-based strategies across the Department. Broadly, OASP continues to conduct new policy-relevant evaluations and research for agencies and Department leadership, building a base of evidence and data for further policy development and refinement and program administration.

Analysis and Future Plans

OASP worked to incorporate evidence-based strategies into the policy and regulatory development process, including conducting rigorous economic analysis to inform regulations; engaging external researchers; and producing reports, among other activities. The office also made investments in new infrastructure to increase agencies' ability to store and leverage data as a strategic tool.

FY 2023 performance results centered on activities of the Chief Evaluation Office and the Office of Data Governance. This work supported implementation of the Evidence Act and implementation of the first two findability, accessibility, interoperability, and reusability (FAIR) principles.¹⁸ In FY 2023, the Chief Evaluation Office and Office of Data Governance within OASP led the development and release of several strategic planning documents that will guide activities and capacity building over the next several years including but not limited to a multi-year Evaluation Plan, an Evidence Building Plan, an Evidence Capacity Assessment, and an Enterprise Data Strategy.

Broad planning for FY 2024 and FY 2025 continues this focus on evidence production and use to support Departmental decision-making. Important parts of this planning are reflected in OASP's FY 2024 performance measures. The Department has bolstered data and evidence components in AMPs to significantly expand the ways in which these important topics are addressed and improved. This will multiply the impact of existing and prospective efforts and reinforce the link between successful capacity building for data and evidence, and successful conduct of agency mission.

¹⁸ <https://www.go-fair.org/fair-principles/>

Management Goal

OASP – Invest in strategic and evidence-based decision-making, policy and regulatory development.

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Number of Quarterly Regulatory Briefings	Target	--	--	--	--	4	4	TBD	Provided an overview to agencies that might not otherwise be involved in the review or discussion of proposed and final rules or other priority documents/topics.	--	--
	Result	--	--	--	--	4	--	--			
	Status	--	--	--	--	Y	--	--			
Percent of data sets added to public API with appropriate metadata	Target	--	--	--	--	--	100%	TBD	This measure will be implemented in FY 2024.	--	--
	Result	--	--	--	--	--	--	--			
	Status	--	--	--	--	--	--	--			
Number of Quarterly Evaluation Briefings	Target	--	--	--	--	4	4	TBD	Provided the Equity Board and DOL leadership with access to federal and external expert guidance and findings.	--	--
	Result	--	--	--	--	7	--	--			
	Status	--	--	--	--	Y	--	--			

Sources: OASP's Program Direction and Support internal monitoring; Chief Evaluation Office List of Completed Studies.

Management Objective M.3

DOL as a model workplace

Agency Driving this Objective (select the hyperlink to learn more about this agency)

[Office of the Assistant Secretary for Administration and Management](#) (OASAM)

Many factors contributed to the Department's success in carrying out its mission, but no factor contributes more than the dedication, perseverance, and ingenuity of the DOL workforce. DOL is capitalizing on this moment to advance its future.

The Department is rebuilding the size of its workforce after several years of decline and developing the skills and capacity of its staff. DOL's staff is testing new ways of working, including increased workplace flexibilities and using modern technology to execute its mission. DOL is doing all of this with the overarching goal of increasing DEIA throughout the Department. As DOL harnesses the unmistakable benefits of a more diverse, equitable, inclusive, and accessible workplace, it is not only making DOL a model workplace but also setting a foundation to address inequity for our Nation's workers.

OASAM supports the PMA's Priority 1, strengthening and empowering the federal workforce, and the associated strategies:

- Attract and hire the most qualified employees, who reflect the diversity of our country, in the right roles across the federal government.
- Make every federal job a good job, where all employees are engaged, supported, heard, and empowered, with opportunities to learn, grow, join a union and have an effective voice in their workplaces through their union, and thrive throughout their careers.
- Reimagine and build a roadmap to the future of federal work informed by lessons from the pandemic and nationwide workforce and workplace trends; and
- Build the personnel system and support required to sustain the federal government as a model employer able to effectively deliver on a broad range of agency missions.

FY 2023 Strategic Review Summary of Progress (Adequate Progress)

Findings for this objective shared a single theme: Cultivating a Diverse Workforce. Evidence of progress included new partnerships with HBCUs, new courses to promote DEIA best practices, and the creation of platforms to share DEIA resources and information.

Cultivating a Diverse Workforce

OASAM: DEIA Recruitment, Hiring, and Onboarding

DOL has made DEIA one of its major focuses and has continued to push forward many initiatives to advance DEIA at DOL. For example, OASAM led the creation of the Southeast Region Hiring Initiative (SE Hiring Initiative), facilitating Summer Summits at three HBCUs. Summits promoted sustainable relationships between DOL and the schools and highlighted professional opportunities for HBCU students and graduates. Also, OASAM partnered with Cornell University to launch five courses to provide DOL managers and supervisors with a heightened awareness around hiring best practices, which advance equal employment opportunity and DEIA in the workplace.

OASAM launched several initiatives that will have a long-lasting impact on the Department's DEIA posture. These include increased utilization of the Workforce Recruitment Program, integration of applicant lived experience into the hiring process, the promotion of essential language skills, the cultivation of career pipelines through entry-level hiring, and agency strategic recruitment and hiring plans. Other initiatives include a Departmental student volunteer program, a new online system to highlight hiring authorities, and the launch of Equity@DOL, an executive-level body comprised of members of the DOL community whose experience and expertise will help ensure that a wide and inclusive range of perspectives inform the work of advancing DEIA principles within DOL. OASAM will continue to leverage existing resources and continue to execute the Department's DEIA Strategic Plan while collecting more data on the effectiveness of these efforts.

OASAM Performance Goal M.3 – DOL as a model workplace

OASAM is rebuilding the Department's workforce by providing leadership, guidance, and technical expertise to achieve a workforce that is reflective of the American public we serve and comprised of vetted candidates for suitable character and conduct. OASAM led the development of the Department's DEIA Strategic Plan, which outlines the values and vision for DOL's workforce.

OASAM's OHR is dedicated to providing best-in-class Human Resources services by working with DOL agencies as partners. OHR is leading the Department's efforts through strategic agency engagement and recruitment planning to rebuild its workforce and support the Administration's plans to rebuild the American economy. OHR is building long-term capacity to support the Department's recruitment and hiring through the development of strategic partnerships that will enable DOL to better reach diverse and inclusive talent pools.

OASAM's Security Center (SC) is dedicated to ensuring a safe and secure workplace, responsible for the protection of life and property of DOL owned/leased facilities and ensures that federal and contract employees are suitable and/or fit for employment with DOL. The SC is also implementing initiatives directed by the Suitability Executive Agent (the Office of Personnel Management) and the Security Executive Agent (the Office of the Director for National Intelligence), on ensuring a Trusted Workforce. The SC is also responsible for the development and maintenance of appropriate working relationships with federal, state, and local agencies that perform critical security, national security, emergency response, and law enforcement functions.

OASAM's Civil Rights Center (CRC) is responsible for enforcing nondiscrimination, equal opportunity (EO) and equal employment opportunity (EEO) requirements for two primary populations: employees of, and applicants for employment with, DOL (through its Office of Internal Enforcement); and individuals served by the nation's employment and workforce related service programs (through its Office of External Enforcement). CRC contributes significantly to DEIA activities across the Department by influencing recruitment practices and retention efforts to ensure equal opportunity in DOL's workforce. Emphasis is particularly placed on anti-harassment prevention and response including training to establish a culture of accountability in the Department. CRC also advances equity interests through its external enforcement and compliance programs, including through policy guidance and training designed to promote nondiscrimination and equal opportunity in DOL supported programs across the nation.

The OASAM Workplace Equality Compliance Office (WECO) manages the Reasonable Accommodation Resource Center (RARC) to support the Department's compliance with its obligations to provide appropriate accommodations for employees and applicants with disabilities. The reasonable accommodation process is a critical mechanism that the Department utilizes to improve the work experience for DOL personnel. WECO will continue to strengthen the accommodation program so that DOL becomes a model workforce that leads in the employment of people with disabilities.

Analysis and Future Plans

OHR improved hiring outcomes and reduced burden on hiring managers, particularly for mission critical positions. Through strategic agency engagement and recruitment planning, OHR supported the Administration's plans to rebuild the American economy and workforce. A critical aspect of the recruitment process is to track hiring manager satisfaction scores. These scores provide invaluable insights into the effectiveness of the hiring process. When hiring managers are satisfied, it not only enhances their ability to select top talent, but also fosters a positive workplace environment. DOL currently ranks in the top five federal agencies for hiring manager satisfaction, with an average of 83 percent in FY 2023. This is particularly impressive given the sheer volume of DOL hiring activity over the past two years. In FY 2024 and FY 2025, OHR will target a hiring manager satisfaction index score of 85 percent from all agencies, to continually improve hiring managers levels of support and services during the recruitment process.

Since FY 2020, OHR achieved a notable decrease in the average time to hire, reducing it by over 9 percent, with the timeline shrinking from 102 days in FY 2020 to 96 days by FY 2023. Despite facing challenges such as implementing a new talent management platform (USA Staffing) and hiring manager review time exceeding targets, OHR held steady to the timeline of 96 days in FY 2023. In FY 2024 and FY 2025, OHR will continue to target the OPM standard of 80 days to hire new employees, and 90 days for average days to hire SES employees from the closing date of the vacancy announcement. Targeting the 80-day OPM hiring standard is important for many reasons. First, it directly impacts DOL's ability to attract top talent. In today's competitive job market, candidates have options, and a lengthy hiring process can deter them from accepting a delayed offer, leading to missed opportunities. Secondly, swift hiring ensures that critical positions are filled promptly, reducing the risk of unassigned workload, which compromises productivity. Additionally, it can help save resources, as prolonged vacancies often necessitate costly and inefficient temporary solutions. By continuing to improve and reduce the hiring process timelines, DOL highlights its commitment to efficiency but also enhances its reputation as an employer of choice.

OHR sought innovative ways to promote opportunities, receive DOL employees' feedback, and make data-driven decisions and approaches to recruitment. Data from the Federal Employment Viewpoint Survey has reflected an increase in employee engagement from 68 percent in FY 2019 to 75 percent in FY 2023. In FY 2024 and FY 2025, OHR will target an Employee Engagement Index of 76%.

In FY 2023, OASAM advanced the Department's DEIA Strategic Plan by enhancing outreach, recruiting from underserved communities, offering paid internships, leveraging special hiring authorities, promoting Pathways Programs for college students and recent graduates, providing employee engagement and training opportunities, and conducting data analysis to track progress and identify gaps.

Management Goal

In FY 2024, OASAM plans to support building a modernized workforce by:

- Supporting agencies in the development of their annual recruitment and hiring strategic plan to include identifying specific actions the agency will take to increase outreach and hiring efforts focused on underserved communities.
- Utilizing the Pathways Programs to increase the number of college students and recent graduates recruited from underserved communities.
- Using the results of the equity gap analysis to implement identified best practices and solutions to address potential equity gaps.
- Deploying a strategy to increase participation in non-mandatory leadership and career development programs, such as implementing leadership development opportunities like the SES Candidate Development Program and Aspiring Executive Development Academy, identifying leadership course offerings for pipeline positions, identifying low- to no-cost training opportunities, and increasing mentor program participation.
- Improving accessibility in hiring by evaluating information and communications technology used during recruitment and onboarding processes to identify barriers that may disparately impact underserved communities, particularly people with disabilities, and identifying areas where best practices for inclusion or accessibility are not being utilized.
- Developing an agency-specific Language Access Plan and translating vital documents (i.e., applications, consent forms, and information on the right to file complaints of discrimination). OASAM will develop a plan to identify, as applicable, whether bilingual requirements for outreach to and engagement with underserved communities and vulnerable workers need to be included in position descriptions.
- Building on the DOL Organizational Health initiative. OASAM uses performance results to assess programs and services, meet stakeholder needs, and establish priorities and implement these practices to monitor organizational effectiveness and the ability to adapt to change.

In FY 2023, SC continued to ensure a robust personnel security program by appropriately vetting prospective personnel. SC also engaged in the implementation efforts for Trusted Workforce 2.0 (TW 2.0), an initiative to reform the Government's personnel vetting process for applicants and incumbents to positions for national security, suitability, and fitness for employment. This initiative will transition legacy reinvestigations to Continuous Vetting and Federal Bureau of Investigation (FBI) Rap Back programs (DOL staff holding National Security Clearances were previously enrolled in FY 2022 as part of the iterative milestone TW 1.5). SC will expand enrollments into the FBI's Rap Back and continuous vetting programs to new hires, as well as non-sensitive public trust and low risk populations. SC will continue to enhance its system to track vetting applicants and incorporate TW 2.0 requirements. The SC utilized its personnel security program to ensure efficiency in the vetting process and afford transparency to client agencies. The average number of days to submit a background security investigation request to the Department of Defense (DOD) decreased from 11 days in FY 2019 to 7 days in FY 2023. The average number of days to adjudicate a background investigation for suitability increased from 6 days in FY 2019 to 32 days in FY 2023 but remained below its target of 90 days. SC decreased the average number of days to adjudicate a background investigation for national security from 17 days in FY 2020 to 10 days in FY 2023. In FY 2024 and FY 2025, SC will continue to meet the government-wide targets for average number of days to submit a background investigation to DOD,

Management Goal

average number of days to adjudicate a background investigation for suitability, and average number of days to adjudicate a background investigation for national security.

To further promote inclusion within the Department, CRC provided training and technical assistance to employees, managers, and supervisors on antidiscrimination and antiharassment, with a particular emphasis on the proper tools to confront and resolve incidents of discrimination or harassing conduct before they violate the law, and to hold individuals accountable for their actions. CRC continued to provide guidance and information about and facilitate the provision of reasonable accommodations for DOL employees and applicants for DOL employment with disabilities. In FY 2023, CRC/RARC exceeded its target for a reasonable accommodation request to be successfully deployed by averaging 20 days to fulfill these requests, below the target of 35 days. RARC plans to continue to meet the target of 35 days in FY 2024 and FY 2025. In late FY 2023, the RARC was transferred organizationally to the OASAM WECO. In FY 2024, the RARC within the OASAM WECO plans to support DOL as a model workplace by implementing revisions outlined in the Reasonable Accommodation Department of Labor Manual Series (DLMS). WECO RARC is also working on a new reasonable accommodation case tracking system, which will further streamline the lifecycle of a reasonable accommodation request and allow for greater efficiency and transparency of case processing for all stakeholders. Finally, WECO RARC will also work on developing and updating the reasonable accommodation program's internal and external web presence providing information and resources for DOL employees and prospective applicants to utilize when requesting a reasonable accommodation at DOL.

CRC administers DOL's EEO complaint program, including intake, counseling, investigation, adjudication, and compliance monitoring of EEO complaints; develops and submits civil rights-related program plans and accomplishment reports; and provides training and technical assistance to DOL managers, supervisors, and employees about internal EEO matters. CRC also supports efforts designed to resolve workplace complaints and increase awareness of the EEO complaint program and the Department's Harassing Conduct policy. In terms of compliance with regulatory processing requirements, since FY 2018, CRC has exceeded the targets on its key performance indicators, completing 98 percent or more of all investigations, EEO counseling sessions, and Final Agency decisions within regulatory timeframes in any given year. The deployment of the digital complaint tracking and reporting system (CTRS) has assisted CRC in ensuring continued success since FY 2018, despite the rapidly changing environment pre/post pandemic. CRC will continue to refine CTRS to ensure it is maintained as an effective and efficient tool, so that resources are focused on substantive matters. In FY 2024 and FY 2025, CRC plans to continue to meet its target of 95% for percent of EEO counseling sessions completed within regulatory timeframes, percent of formal EEO investigations issued within regulatory timeframes, and percent of formal EEO investigations issued within regulatory timeframes.

Management Goal

OASAM – DOL as a Model Workplace

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Average number of days to hire a new employee	Target	80	80	80	80	80	80	80	DOL has transitioned to USA Staffing in FY 2023 to develop a more efficient hiring and communication system.	DOL needed to maintain two hiring systems during the transition to USA Staffing.	OASAM will continue to refine hiring process and utilize USA Staffing interconnections
	Result	86	102	94	96	96	--	--			
	Status	I	N	I	N	N	--	--			
Hiring Manager Satisfaction Index Score	Target	85%	85%	85%	85%	85%	85%	85%	Recruitment and outreach efforts have increased hiring manager satisfaction with the number of qualified applicants and their skill sets.	Process timeliness is an ongoing challenge due to internal and external factors.	By utilizing USA Staffing and planning for upcoming interconnections, OASAM will continually improve hiring process timelines.
	Result	72%	78%	81%	80%	83%	--	--			
	Status	N	I	I	N	I	--	--			
EVS: DOL Agency Employee Engagement Index (annual)	Target	--	--	--	--	76%	76%	76%	DOL worked to develop strong communication and action plans to generate improved response rates and after-action planning.	Many items can impact employee's engagement and overall satisfaction.	By continuing to focus on key metrics highlighted within the PMA's Workforce Priorities, OASAM will improve employee engagement across the board.
	Result	68%	73%	73%	75%[r]	75%	--	--			
	Status	--	--	--	--	N	--	--			
Average number of days to submit a background security investigation request to DOD	Target	14	14	14	14	14	14	14	Leveraging systems to assign caseload and tracking timeliness.	Internal and external system integrations are still required to reduce manual touchpoints.	OASAM will continue refining processes and enhancing systems to streamline processes and gain efficiencies. This will include assessing possible shared IT services from Investigation Service Provider.
	Result	11	9	4	4	7	--	--			
	Status	Y	Y	Y	Y	Y	--	--			

Management Goal

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Average number of days to adjudicate a background investigation for suitability	Target	90	90	90	90	90	90	90	SC discontinued use of vetting procedures under COVID-19. Temporary vetting procedures caused the increase of adjudication timeliness, and OASAM adopted the eAdjudication tool.	Internal and external system integrations are still required to reduce manual touchpoints.	OASAM will continue refining processes and enhancing systems to streamline processes and gain efficiencies. This will include assessing possible shared IT services from Investigation Service Provider.
	Result	6	6	6	39	32	--	--			
	Status	Y	Y	Y	Y	Y	--	--			
Average number of days to adjudicate a background investigation for national security	Target	--	20	20	20	20	20	20	SC discontinued use of vetting procedures under COVID-19. Temporary vetting procedures caused the increase of adjudication timeliness, and OASAM adopted the eAdjudication tool.	Internal and external system integrations are still required to reduce manual touchpoints.	OASAM will continue refining processes and enhancing systems to streamline processes and gain efficiencies. This will include assessing possible shared IT services from Investigation Service Provider.
	Result	7	17	4	2	10	--	--			
	Status	--	Y	Y	Y	Y	--	--			
Reasonable Accommodation: Average number of days for an RA request to be successfully deployed (by items)	Target	--	--	--	37	35	34	34	Enhanced and continued interactive process with employee and supervisor, as well as the use of interim accommodations	Delivery timeframes due to extenuating circumstances are outside the control of RARC, but interim accommodations and communication with the employee and supervisor assist with bridging the gaps in time.	OASAM will continue with enhanced interactive process and exploring interim accommodations as well as continuing revisions of the DLMS.
	Result	--	--	--	37	20	--	--			
	Status	--	--	--	Y	Y	--	--			

Management Goal

*Target reached (Y), Improved (I), or Not Reached (N)		FY/PY 2019	FY/PY 2020	FY/PY 2021	FY/PY 2022	FY/PY 2023	FY/PY 2024	FY/PY 2025	What Worked	What Didn't Work	Program Performance Improvement Plan
Internal Enforcement: Percent of EEO Counseling Sessions Completed within Regulatory Timeframes	Target	96.0%	96.0%	96.5%	96.5%	95.0%	95.0%	95.0%	CRC implemented a digital tracking system, assisting in streamlining complaint processing at all stages of the complaint process.	External factors (such as witness cooperation) continue to be impediments to ensuring 100% efficiency.	Continued refinement of the digital tracking system to ensure it remains a useful and efficient tool for CRC.
	Result	98.0%	99.0%	100.0%	99.5%	100.0%	--	--			
	Status	Y	Y	Y	Y	--	--	--			
Internal Enforcement: Percent of Formal EEO Investigations Issued within Regulatory Timeframes	Target	88%	86%	90%	92%	90%	95%	95%	CRC implemented a digital tracking system, assisting in streamlining complaint processing at all stages of the complaint process.	External factors (such as witness cooperation) continue to be impediments to ensuring 100% efficiency.	Continued refinement of the digital tracking system to ensure it remains a useful and efficient tool for CRC.
	Result	100%	98%	100%	100%	99%	--	--			
	Status	Y	Y	Y	Y	--	--	--			
Internal Enforcement: Percent of Final Agency Decisions Issued on Formal EEO Complaints within Regulatory Timeframes	Target	88%	92%	92%	92%	90%	95%	95%	CRC implemented a digital tracking system, assisting in streamlining complaint processing at all stages of the complaint process.	External factors (such as witness cooperation) continue to be impediments to ensuring 100% efficiency.	Continued refinement of the digital tracking system to ensure it remains a useful and efficient tool for CRC.
	Result	98%	98%	100%	100%	100%	--	--			
	Status	Y	Y	Y	Y	--	--	--			

Sources: OPM Electronic Questionnaire for Investigations Processing system. USA Staffing, Office of Personnel Management's Chief Human Capital Officers' Managers' Satisfaction Survey; Federal Employee Viewpoint Survey. Internal Civil Rights Center Tracking systems; Complaints Tracking and Reporting System

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Other Information

Quarterly Reviews

To continually improve the efficiency and effectiveness of its programs, DOL uses results-based, data-driven management techniques. Each DOL agency prepares an Agency Management Plan that details the strategies and resources it will apply to reach goals and objectives at all levels of the organization. Departmental leaders review performance against those plans each quarter to monitor progress and hold agencies accountable for implementing the plans, achieving milestones, and adjusting as needed.

This review process has focused Departmental leadership on strategic management of core functions using program performance data, risk assessments, evaluations, and budgets. Identification and discussion of key measures; annual and seasonal targets; and how budgets, workload, and strategies affect results have helped clarify priorities and improve performance.

Program Evaluations and Evidence-Building

The CEO in OASP leads DOL's evaluation agenda, working closely with agency staff to implement program evaluations to answer key questions. The results from evaluations inform policy and improve DOL's performance-based management initiatives in support of the GPRMA. Further, as described in DOL's Evidence-Building Plan for Fiscal Years 2022-2026, CEO coordinates key evidence-building activities (as per the Foundations for Evidence-Based Policymaking Act of 2018, Public Law No. 115-435). For more information, see <http://www.dol.gov/asp/evaluation/>.

Measures Discontinued

Because this is primarily a planning document that uses historical information to inform future strategies and targets, it is organized around goals and measures selected to represent Departmental goals for the budget year (FY 2025). Under GPRMA, performance goals, measures and targets are identified for reporting purposes in the Congressional Budget Justification (CBJ) issued during that fiscal year. Therefore, DOL is obliged to report results for measures with PY 2022 or FY 2023 targets in its FY 2022 Annual Performance Report, which was published as part of the FY 2024 CBJ in March 2023 (www.dol.gov/dol/budget/).

The table below provides this information for performance measures that have since been revised, replaced, or discontinued. Results are not provided for measures that were collecting baseline data.

Measures Discontinued

Measure (Agency)	Target	Result	Why not included?
	FY 2023	FY 2023	
	PY 2022	PY 2022	
Strategic Objective 1.1			
Percent of USERRA investigations completed within 90 days (VETS)	--	--	The statutory language now requires measuring the percent of cases completed within 90 days or within any approved extensions. VETS implemented an updated measure to align with the revised statutory language.
Strategic Objective 2.2			
Percent of Complaints Perfected Within Standard Timeframe (15 Days) (OFCCP)	90%	95%	In FY 2024, OFCCP will be reverting to the measure name and definition used in FY 2022 and in prior years, Percent of Complaints Processed Within Standard Timeframe. The reinstated measure includes both perfection and investigation timeliness for more meaningful analysis.
Percent of targeted audits that result in a criminal case (OLMS)	17.5%	18.3%	Replaced with measure “Percent of audit violations resolved voluntarily”
Percent of disclosure reports filed electronically (OLMS)	91.0%	99.6%	This measure has been overwhelmingly successful and there is very little room for improvement. OLMS still intends to finalize the electronic filing requirement of the remaining forms filed infrequently.
Management Objective M.2			
Percent of DOL agencies rating Agency Management Plans “effective”	65%	67%	Replaced with measure “AMP Stakeholder Satisfaction Score”
Number of public data sets available through Application Programming Interface (OASP)	75	--	In FY 2023, OASP tracked its efforts to increase the number of data sets findable and searchable and enhance the utility of those data sets. In FY 2023, OASP validated and geocoded 139 data sets. Going forward, OASP will track the percent of data sets added to public API with appropriate metadata.
Percent of DOL data sets using a shared service for data validation (OASP)	15%	--	In FY 2023, OASP tracked its efforts to increase the number of data sets findable and searchable and enhance the utility of those data sets. In FY 2023, OASP validated and geocoded 139 data sets. Going forward, OASP will track the percent of data sets added to public API with appropriate metadata.

Measures Discontinued

Measure (Agency)	Target	Result	Why not included?
	FY 2023	FY 2023	
	PY 2022	PY 2022	
Number of short briefs published based on research/evaluation products distilling potential policy implications (OASP)	8	12	The number of short briefs produced are dependent on each evaluation project's life cycle. Therefore, in some years there may be several short briefs while in others there may not be greater, equal or any number of briefs compared to the previous year. Because of the nature of short briefs production, which is related to the stage of a given project, measuring the number of briefs each year does not signal the level of annual performance nor the contributions to building a meaningful evidence portfolio and achieving DOL's strategic objectives.
Number of Data Sets Available for Research (OASP)	6	14	This measure was tied to specific high-value and visible initiatives that DOL wanted to prioritize. CEO is launching its restricted use research program in early FY 2024 with the data sets compiled during FY 2023. The work in FY 2024 is turning toward institutionalizing this process and expanding its customer base.